



Republic of the Philippines
SENATE
Pasay City

JOURNAL

SENATE SITTING AS AN
IMPEACHMENT COURT
ON THE IMPEACHMENT TRIAL OF
VICE-PRESIDENT
SARA ZIMMERMAN DUTERTE

IMPEACHMENT TRIAL NO. 5
MONDAY, 13 JULY 2026

PREPARED BY THE
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SENATE OF THE PHILIPPINES

IMPEACHMENT TRIAL NO. 5

Monday, July 13, 2026

CALL TO ORDER

At 2:00 p.m., Monday, July 13, 2026, the Senate President, Hon. Win Gatchalian, with the Senate sitting as an Impeachment Court, called the impeachment trial of Vice President Sara Zimmerman Duterte to order.

PRAYER

Sen. Joseph Victor "JV" G. Ejercito led the prayer, to wit:

Ama naming makapangyarihan, lumalapit kami sa Iyo na may pagpapakumbaba. Batid namin na ang karunungan ng tao ay may hangganan, ngunit ang Iyong katotohanan at katarungan ay nananatili magpakailanman

Sa pagtupad namin ng aming tungkulin bilang mga Senator-Judges, hinihiling namin ang Iyong gabay sa lahat ng aming gagawin. Pagkalooban Mo nawa kami ng tapat na puso at malinaw na pag-iisip sa buong panahon ng paglilitis na ito. Panginoon, nakikiusap po kaming akayin Mo kami sa landas na makatarungan na may patas na pagtingin sa karapatan ng bawat isa. Dalhin Ninyo kami sa liwanag, sapagkat nakapiring ang aming mga mata. Hindi man po namin hiningi ngunit ipinagkatiwala sa aming Konstitusyon ang timbangan ng katarungan. Kumiling nawa ito sa karapat-dapat na pagkalooban nito.

Nawa ang Inyong Salita ang maging gabay sa aming paglilingkod at pagdala sa amin sa katotohanan. Kagaya po ng winika sa Leviticus 19:15: "Do not pervert justice, do not show partiality, but judge your neighbor fairly." Lagi po naming tatandaan ang tagubilin Ninyong ito.

Ama, anuman ang maging bunga ng paglilitis na ito, hindi nawa ito makita bilang tagumpay ng isa at pagkatalo ng iba, kundi para sa ikabubuti ng sambayanang Pilipino. Lahat po ng aming gagawin ay para sa ikalulugod Mo at hindi para sa kapakinabangan ng sinumang tao, mga partido, o kanilang mga pansariling interes, kundi ito'y para sa pagpapatibay ng aming mga institusyon, ng pamahalaan, at sa pagpapanatili ng tiwala ng mamamayan sa demokrasya ng aming bayan.

Buong puso po kaming nananalangin na sa lahat ng aming gagawin, lagi't lagi namin Kayong pinupuri.

Amen.

ROLL CALL

Upon direction of the Senate President, the Clerk of Court, Atty. Renato N. Bantug Jr., called the roll, to which the following senator-judges responded:



Aquino, B.	Marcos, I. R.
Cayetano, P. S.	Padilla, R.
Ejercito, J. V.	Sotto III, V. C.
Escudero, F. G.	Tulfo, E. T.
Gatchalian, W. T.	Tulfo, R. T.
Go, C. L. T.	Villanueva, J.
Hontiveros, R.	Villar, C. A.
Lacson, P. M.	Villar, M. A.
Lapid, M. M.	Zubiri, J. M. F.

With 18 senator-judges present, the Chair declared the presence of a quorum.

Senator-Judges Cayetano (A) and Legarda were also present.

Senator-Judges Estrada and Marcoleta were under detention and unable to attend.

Senator-Judges Dela Rosa and Pangilinan were absent.

PROCLAMATION OF THE SERGEANT-AT-ARMS

The Sergeant-at-Arms, PMGen Alfred S. Corpus, commanded all persons, on pain of penalty, to keep silent while the Senate is sitting for the trial of the Articles of Impeachment against Vice President Sara Zimmerman Duterte.

APPROVAL OF THE JOURNAL

Upon motion of the Presiding Officer, Senator Francis "Chiz" G. Escudero, there being no objection, the Body dispensed with the reading of the *Journal* of the Senate sitting as an Impeachment Court on July 8, 2026 and considered the same as approved.

CALLING OF THE CASE

Upon direction of the Presiding Officer, the Clerk of Court called Case No. 004-2026, titled "*In the Matter of the Impeachment Trial of Vice President Sara Zimmerman Duterte.*"

APPEARANCES

The Presiding Officer directed the parties to enter their appearances.

For the prosecution, Prosecutor Lorenz R. Defensor entered the appearances previously entered on behalf of the prosecution.

For the Respondent, Atty. Sheila Sison entered the same appearances.

INQUIRY OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R) sought clarification from the counsel for the defendant, Atty. Mark Vinluan, regarding his earlier statement that Vice President Duterte's response to questions about the alleged "Operation Romanov" was unconventional but justified, considering the threat on her and her family. He confirmed whether it was the same "Operation Romanov" mentioned by vlogger Princess Maui during the Vice President's online press conference. Atty. Vinluan answered in the affirmative.



Asked whether Princess Maui would be presented as a defense witness, Attorney Vinluan said the defense reserved the right to determine its witnesses depending on the evidence presented by the prosecution but declined to identify them at this stage.

Senator-Judge Tulfo (R) noted that he first heard the term "Operation Romanov" during the Maisug Leaders' Forum on January 28, 2024 in Davao City, where it was mentioned by Mayor Sebastian Duterte, and asked whether it was related to the references made by Princess Maui and Atty. Vinluan.

In reply, Attorney Vinluan said he could not comment since he had no personal knowledge of Mayor Duterte's statement. When asked what he meant when he said that the Vice President's response as unconventional, Attorney Vinluan explained that the term was merely a description of the statements she made during the press conference and that the word should be understood in its ordinary meaning.

MANIFESTATION OF PROSECUTOR DEFENSOR

Before the examination of the prosecution's second witness, Prosecutor Defensor informed the Court that they received a letter dated July 10, 2026, from Director Melvin A. Matibag of the National Bureau of Investigation (NBI), requesting that his testimony be scheduled at the earliest opportunity due to his attendance in a regional summit on scam center compounds and transnational organized crime organized by the Federal Bureau of Investigation (FBI) and the Royal Thai Police. He requested that Director Matibag testify the following day immediately after the testimony of the prosecution's second witness, Atty. Jeremy A. Lotoc.

The Presiding Officer sought clarification, noting that Atty. Zuleika Lopez, Chief of Staff of the Office of the Vice President (OVP) had previously been scheduled to testify the following day. Prosecutor Defensor confirmed the existing schedule and explained that, after Director Matibag's testimony, the proceedings would continue with the previously announced order of witnesses, including Attorney Lopez and Capt. Belinda Bello, head of the Legislative Security Bureau of the House of Representatives (HOR).

Senator-Judge Cayetano (A) stated that he would not object to the request if there were no objections from the Members but expressed concern over accommodating the request, cautioning that allowing a bureau head to dictate the Court's schedule could set a bad precedent and affect the orderly presentation of evidence. He emphasized that the senator-judges had likewise set aside official responsibilities to attend the impeachment trial.

In response, Prosecutor Defensor explained that it was only requesting to advance Director Matibag's testimony by one day without altering the sequence of the remaining witnesses, while stating that the prosecution would abide by the Court's ruling.

The Presiding Officer recalled the prosecution's previous statements that Director Matibag would not testify during the current week and that only Attorney Lotoc, Attorney Lopez, and Captain Bello will be presented as this week's witnesses. He pointed out that Director Matibag had not been included in the witness list and that no subpoena had been issued requiring his appearance during the week, correcting the statement that the testimony is merely being advanced by one day.

Prosecutor Defensor clarified that, while the prosecution had earlier identified its witnesses for the week, it also informed the Court that it would later specify the date of Director Matibag's testimony after requesting the issuance of a subpoena. He said the prosecution had intended to present Director Matibag on Wednesday, after the testimony of Captain Bello. The Presiding Officer acknowledged the explanation but noted that, in light of the one-witness-per-day rule,

no subpoena had been issued to Director Matibag for the week. Upon the Presiding Officer's request for confirmation, the Clerk of Court confirmed that no subpoena had been issued.

Senator-Judge Cayetano (A) clarified that his earlier remarks were not directed at the prosecution but recalled that the change in schedule affects the preparation of the senator-judges. After seeking clarification on the applicable notice rules from the Presiding Officer, he reiterated the importance of adhering to the Court's procedures to ensure the orderly and efficient conduct of the impeachment trial.

OBJECTION OF ATTORNEY VINLUAN

Attorney Vinluan opposed the prosecution's request to advance the testimony of Director Matibag, arguing that it would violate the Court's previous directive on the order of witnesses, the five-day notice requirement, and the principles of fair play and procedural due process. He maintained that the defense had prepared its case based on the previously announced witness schedule and that a last-minute change would prejudice its ability to conduct an effective cross-examination. Presiding Officer Escudero clarified that the five-day notice period is for witnesses not mentioned in the pre-trial order.

Attorney Vinluan also requested that the prosecution provide the defense with a copy of Director Matibag's invitation to the international conference and disclose whether a corresponding travel authority had been issued. He explained that the defense had received information that a similar FBI regional summit had already been held in Bangkok the previous month and wished to verify whether Director Matibag's attendance justified the requested modification of the witness schedule.

REMARKS OF SENATE PRESIDENT GATCHALIAN

Senate President Gatchalian expressed support for the manifestation of Senator-Judge Cayetano (A), emphasizing that the senator-judges, like the prosecution and defense, prepare in advance for the scheduled presentation of witnesses. He noted that many senator-judges devoted the weekend to studying the expected testimonies and preparing their questions based on the previously announced witness schedule.

Senate President Gatchalian reiterated that the senator-judges devoted considerable time to reviewing the voluminous documentary evidence and preparing questions for the scheduled witnesses. He cautioned that the last-minute inclusion of additional witnesses would deprive the senator-judges of sufficient time to study the evidence and prepare their inquiries, thereby affecting the orderly and fair conduct of the proceedings.

Reading the transcript verbatim, Presiding Officer Escudero confirmed the prosecution's earlier manifestation that while Director Melvin Matibag had not been scheduled to testify during the week, it would determine by today whether to present him on Wednesday, depending on the progress of the trial.

ORDER OF THE PRESIDING OFFICER

Deferring action on the prosecution's request, the Presiding Officer directed the prosecution to submit Director Matibag's letter, furnishing copies to the respondent's counsel. Upon the defense's manifestation, he further ordered the prosecution to submit any available travel authority and supporting documents, including the official invitation from the foreign organizers, if already issued. He clarified that the documents would be considered solely for the Court's evaluation of the request and directed that the defense be furnished copies and given the opportunity to comment before the Court rules on the matter.



PRESENTATION OF THE PROSECUTION'S SECOND WITNESS

The Presiding Officer directed the prosecution to proceed with the presentation of its second witness and recognized Atty. Virgil Ligutan, counsel for the prosecution, to conduct the examination. Attorney Ligutan called on Atty. Jeremy C. Lotoc of the NBI to the witness stand, after which the Clerk of Court administered his oath.

OFFER OF COUNSEL FOR THE PROSECUTION

Attorney Ligutan offered the testimony of Attorney Lotoc to establish his position as Chief of the NBI Cybercrime Division in 2024; his participation in the bureau's investigation into the respondent's alleged threats during the November 23, 2024 online media briefing; the NBI's findings that the respondent's statements constituted serious and credible threats, which led to the filing of complaints for three counts of grave threats and one count of inciting to sedition; and the authenticity of the NBI affidavit of investigation, its annexes, related video recordings, and other matters material to the impeachment proceedings.

The respondent's counsel interposed no objection to the offer of testimony, subject to cross-examination.

DIRECT EXAMINATION OF THE WITNESS

Attorney Ligutan proceeded to make the following direct examination of the witness:

Mr. Ligutan. *Daghang salamat, Mr. Presiding Officer. Honorable Judges.*

Attorney Lotoc, *maupay na kulop ha imo.*

Mr. Lotoc. *Maupay man, Sir.*

Mr. Ligutan. Waray-Waray *po.* We are both Waray-Waray, at the same time Cebuano.

Atty. Lotoc, *puwede bang malapit pa sa microphone para marinig ng sambayanan lahat ng isasagot mo sa mga tanong ko.*

Mr. Lotoc. Yes, Sir.

Now, Mr. Lotoc, kindly state your name—*edad*, and other personal circumstances.

Mr. Lotoc. I am Atty. Jeremy C. Lotoc, 50 years of age, and currently the Regional Director of the NBI Bangsamoro Autonomous Region in Muslim Mindanao (BARMM), Sir.

Mr. Ligutan. *Sinabi mo ikaw ay isang abogado, Atty. Lotoc, 'di ba?*

Mr. Lotoc. *Opo.*

Mr. Ligutan. Now, *iyong tanong: kailan ka naging miyembro ng ating Philippine Bar?*

Mr. Lotoc. I was admitted to the Philippine Bar and took my Lawyer's Oath in 2013, Sir.

Mr. Ligutan. 2013. Now, Mr. Lotoc, *ano ba iyong current position mo, occupation mo, kung mayroon man?*

Mr. Lotoc. The Regional Director IV of the NBI Bangsamoro Autonomous Region in Muslim Mindanao, Sir.

Mr. Ligutan. *Ikaw ay isang NBI Regional Director IV for BARMM. Now, iyong tanong is: how long have you been with the NBI?*

Mr. Lotoc. I've been in the NBI for the past 12 years, Sir.

Mr. Ligutan. 12 years, *ano? Ang tanong is—based on my counting that would be since 2014, tama po ba?*

Mr. Lotoc. *Opo*, Your Honor.

Mr. Ligutan. Now, *kailan ka ba na-designate* as the NBI Regional Director *ng* BARMM?

Mr. Lotoc. I was designated in January this year as Regional Director of the NBI, BARMM, Sir.

Mr. Ligutan. January 2026. Now, prior to your designation as the NBI Regional Director for BARMM, *ano ba iyong* previous position *mo* within NBI?

Mr. Lotoc. I was the Regional Director for Region 4B or MIMAROPA, Sir. I think July 2025.

Mr. Ligutan. July 2025, you became—okay. Now, prior to your designation as NBI Regional Director for MIMAROPA, what was your previous position, *kung mayroon man*?

Mr. Lotoc. I was the Chief of the NBI Cybercrime Division, Your Honor.

Mr. Ligutan. Chief *ng* NBI Cybercrime Division. Now, *kailan ka na-designate* as Chief *ng* NBI Cybercrime Division?

Mr. Lotoc. I was designated in February 2023, Sir.

Mr. Ligutan. 2023, 'no? Now, *sinabi mo ikaw ay naging* Chief *ng* NBI Cybercrime Division. Now, *iyong tanong*, Atty. Lotoc is: what were your primary duties and functions *bilang hepe ng* NBI Cybercrime Division?

Mr. Lotoc. Primary duties, among others: to plan, direct, supervise the investigation of cybercrime cases pursuant to Republic Act No. 10175 and other relevant laws; and part of my duties and responsibilities is to investigate high-profile cases pursuant to the Republic Act No. 10867, specifically crimes committed by, through, and with the use of information and communication technology, Sir.

Mr. Ligutan. Now, Mr. Witness, of course, you are aware *na ikaw ay tumitestigo sa* impeachment trial *ng* respondent. Now, *iyong tanong* is: *kilala mo ba iyong* respondent *sa kasong ito*?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Okay. *Iyong tanong* now is: why do you know her?

Mr. Lotoc. She is the incumbent Vice President of the Philippines, and she is the subject of the investigation by the NBI Cybercrime Division, Your Honor.

Mr. Ligutan. So, *nasabi mo* she is the subject of an investigation *ng* NBI Cybercrime Division. Now, *iyong tanong*, Atty. Lotoc, is: *kailan ba? Kailan nagsimula iyong* investigation *ng* NBI Cybercrime Division on the Respondent?

Mr. Lotoc. November 23, 2024, Sir.

Mr. Ligutan. November 23, 2024. *Iyong tanong* now, Atty. Lotoc, is: why? Why did the Cybercrime Division commence an investigation on the Vice President?

Mr. Lotoc. We were directed by the then-Director-Judge Jaime B. Santiago to conduct an investigation with regard to a certain video involving an online press conference held on November 23, 2024, where the Vice President uttered that she had already contracted a person to kill the president, Liza Marcos, and former Speaker of the House, Sir.

Mr. Ligutan. Now, *iyong tanong*, Atty. Lotoc, is: *sa pagkakaalam mo—kung alam mo—ba't* *iyong* NBI *iyong inatasang gumawa ng imbestigasyon na ito*?

Mr. Lotoc. Well, under the law, specifically Republic Act No. 10867, the NBI has primary jurisdiction to undertake investigations on cases among others, cases involving threats to security, an assault against the persons of the highest officials, Sir.

Mr. Ligutan. So, threats or assaults on or against highest officials, *ang sabi mo, di ba?* Now, *iyong tanong*, Atty. Lotoc, is: *sino ba iyong mga* highest officials *na kung may* threat or *may* assault *sa kanila*, NBI has to do an investigation? *Sino iyong mga* officials *na ito*?

Mr. Lotoc. Yes, Your Honor. They are the President, the Vice President, the Senate President, the Speaker of the House, and the Chief Justice of the Supreme Court, Sir.

Mr. Ligutan. All right. Now, so you mentioned *Presidente*, Vice President, *at saka iyong iba pa*. Now, you mentioned, Atty. Lotoc, that the NBI conducted an investigation on the respondent's statements during an online media briefing on November 23, 2024.

Iyong tanong now, Atty. Lotoc, is: what exactly did the respondent say on that day that resulted in the investigation?

Mr. Lotoc. On that online press conference held on November 23, 2024, the Vice President uttered the following: "*Huwag kang mag-alala, ma'am, sa security ko sapagkat may kinausap na akong tao. Ang sabi ko sa kaniya, pag pinatay ako, patayin mo si BBM, si Liza Marcos, si Martin Romualdez—no joke, no joke. Nagbilin na ako, ma'am. Ang sabi ko sa kanya, pag namatay ako, huwag kang tumigil hangga't hindi mo sila mapapatay.*" And he said yes."

Mr. Ligutan. Now, Atty. Lotoc, *iyon iyong* statement. Now, *sino ba iyong mga miyembro, miyembro ng* investigation team *na galing sa* division *mo, iyong* Cybercrime Division?

Mr. Lotoc. We have Atty. Van Angluben, the then Executive Officer for Operations *ng* Cybercrime Division; Atty. Vanessa Asuncion, the Executive Officer for Administration back then; John Mark Calilung, the agent of case; and myself, Your Honor.

Mr. Ligutan. You mentioned agent John Mark Calilung.

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. The same person who testified before you?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Now, Mr. Witness, how did your division commence the investigation?

Mr. Lotoc. I instructed the team, specifically agent Calilung, that with this particular case, we have to follow the five phases or stages of Cybercrime Investigation, Sir.

Mr. Ligutan. So you instructed John Mark Calilung to follow four stages of the investigation?

Mr. Lotoc. The team and John Mark Calilung, Sir.

Mr. Ligutan. Now, you mentioned Atty. Lotoc, *iyong* four stages *ng* Cybercrime Division for the information *ng ating* honorable judges *at saka iyong publiko*. This is the question now: *ano ba iyong* four stages *ng* investigation *na ito*?

Mr. Lotoc. Your Honor, for that particular case, first, the identification and presentation of the digital evidence; the collection and hashing of that same digital evidence – that's the second phase; the analysis and attribution phase, the third one; and then the legal evaluation and case filing as the final phase, Sir.

Mr. Ligutan. So, these are the four stages. Now, if you know, what was agent Calilung's response and, if any, *sa naging* instruction *mo sa kaniya na sundin* *iyong* four stages *ng* Cybercrime Investigation?

Mr. Lotoc. Well, he said yes, and then he proceeded to identify; he proceeded to, yeah, identify and preserve.

Mr. Ligutan. Identify—I'm sorry, continue.

Mr. Lotoc. Identify and preserve the digital evidence in question, Sir.

Mr. Ligutan. Now, you said that you instructed agent Calilung to identify and preserve *na-mention mo*, "digital evidence."

Ang tanong now is, what is this evidence that you are referring to?

Mr. Lotoc. It refers to a certain video, Your Honor, involving an online press conference held on November 23, 2024, which was streamed through the Facebook page of one, Atty. Herminio Lopez Roque Jr. or Harry Roque, Your Honor.

Mr. Ligutan. So, it was the Facebook page of Harry Roque who has livestreamed the video?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Okay. Now, Mr. Witness, after Agent Calilung identified and preserved *iyong sinasabi mong* video, which you said is the first stage of the investigation, *ano iyong nangyari* after that, *kung meron man, at saka kung alam mo*?

Mr. Lotoc. Yes, Your Honor. The agent on case proceeded to collect that digital evidence and generated a hash value of that digital evidence, and at the same time, stored that in a data carrier, Your Honor.

Mr. Ligutan. *Alam mo*, Attorney Lotoc, these are the first time *na narinig natin iyong term na "hash value."* I think it is just proper *na iyong* next question *ko, para malaman ng publiko.* Attorney Lotoc, *ano ba iyong "hash value" na iyan?*

Mr. Lotoc. Well, under the Implementing Rules and Regulations of Republic Act 10175, or the Reorganization and Modernization Act of NBI, hash value refers to mathematical algorithm applied to the information, like the file, the physical disk, or the logical disk—in this case, the digital evidence—thereby creating a digital fingerprint or DNA for that information or digital evidence, Your Honor.

Mr. Ligutan. So, to create a fingerprint for the video. Is that what you are saying?

Mr. Lotoc. Yes, Your Honor. In this case, the video.

Mr. Ligutan. All right. Now, Mr. Witness, after the identification, preservation, collection, and hashing—and so far these are the two stages—what happened next, if any, in relation to your investigation on the Vice President's statement?

Mr. Lotoc. We proceeded to the analysis and attribution phase.

Mr. Ligutan. Now, *ano iyong nangyari, kung meron man, at saka kung alam mo*, in this analysis and attribution phase?

Mr. Lotoc. In the analysis, we established the intent, the motive, the capability of the Vice President to carry out the threat she mentioned, as well as we proceeded to identify the individuals present in that press conference on November 23, 2024, Sir.

Mr. Ligutan. Okay. So, *sinabi mo*, you proceeded to identify the different individuals in that meeting. *Siguro iyong publiko*, they are now interested. So, what happened? What happened *pagkatapos ninyong mag-proceed sa pag-identify, sino ba iyong nasa video na iyan?*

Mr. Lotoc. First, we have identified media personalities from Philippine Daily Inquirer, from the Manila Times, from the Reuters, SMNI, et cetera. And then we have also identified the Vice President herself, who, in her presence, openly and publicly, uttered that she had already contracted a person to kill the President, Liza Marcos, and the former Speaker of the House, and instructed the person to be relentless in killing the three, and it was streamed through the Facebook page, again, of Harry Roque, Your Honor.

Mr. Ligutan. You said to be relentless in the killing. Okay.

Now, after finding out that indeed the Vice President uttered that, "to be relentless in the killing," what happened next, if any, in relation to the investigation you conducted?

Mr. Lotoc. We continued the open-source investigation to determine if there were utterances made by the Vice President in the previous dates, Your Honor.

Mr. Ligutan. Now, *ano ba iyong naging resulta, kung meron man, at saka kung alam mo, sa naging open-source investigation ng NBI into sinasabi mong mga* previous statements *ng Vice President?*

Mr. Lotoc. We have found a press conference dated October 18, 2024, streamed through the official Facebook page of the Office of the Vice President, and we were able to identify—for us, being the investigator—at least three material lines or utterances made by the Vice President, Sir.

Mr. Ligutan. Okay. So, you said in that press conference, *sinabi mo*, you found three utterances or statements *ng Vice President.*

Mr. Lotoc. Among others, Sir, yes.

Mr. Ligutan. Among others. So, let's focus on these three. *Ano ba iyong three statements na sinasabi mo?*

Mr. Lotoc. Well, the first one, the Vice President uttered: "*Gusto kong tanggalin iyong ulo niya ba.*" And then the second one, the Vice President uttered: "I realized toxic *na itong relationship,*" referring to the relationship between the Vice President and the President.

And then number three, "I imagine myself cutting his head."

Mr. Ligutan. Okay. Now, recap, *sinabi mo*, "*Gusto kong tanggalin iyong ulo niya.*" And then *sinabi mo rin sa* third, "I imagine cutting his head."

Based on your investigation, Attorney Lotoc, *kaninong ulo ba iyong rine-refer ng Vice President na gusto niyang tanggalin?*

Mr. Lotoc. The President of the Republic of the Philippines, Sir.

Mr. Ligutan. *Iyong ulo ng Presidente ng Republika ng Pilipinas.*

Mr. Lotoc. *Opo.*

Mr. Ligutan. What proof, if any, do you have that the Vice President said this?

Mr. Lotoc. We have that video, Your Honor, dated October 18, 2024.

Mr. Ligutan. Now, *kung maaalala mo*, Mr. Witness, *saang* portion—or portion *ng* video *na iyan maririnig iyong Vice President sinasabi iyong mga katagang* "*Gusto kong tanggalin iyong ulo niya...* I imagine myself cutting his head?"

Mr. Lotoc. Your Honor, if I may refer to my notes?

Mr. Ligutan. Your Honor, I move that—

The Presiding Officer. Witness may do so.

Mr. Ligutan. Thank you so much.

Mr. Lotoc. Thank you, Your Honor.

Mr. Vinluan. Your Honor, may my co-counsel be allowed also to peruse such notes?

The Presiding Officer. Yes. Counsel for Respondent may observe as the witness peruses his notes.

Mr. Ligutan. Your Honor, may we also be allowed to do the same through Attorney—

The Presiding Officer. Similar order with respect to the Counsel for the Prosecutor.

Mr. Lotoc. Your Honor, from time stamps 1 hour, 35 minutes, and 57 seconds to 1 hour, 36 minutes, and 10 seconds; and then 1 hour, 36 minutes, and 52 seconds; and then 1 hour, 36 minutes, and 58 seconds.

Mr. Ligutan. Okay. So far, Your Honor, for the record—

Okay, Your Honor, please, sorry. The gentleman mentioned two time stamps. So, question: if those portions are shown to you, will you be able to identify the same?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. At this juncture, Your Honor, please, the video has already been identified, marked, and identified by our previous witness, and it is marked as Exhibit P-IV-11 for the prosecution. We move that these two portions with individual time stamps, as mentioned, be shown to this witness for his identification, Your Honor, please.

The Presiding Officer. Where is the USB, counsel?

Mr. Ligutan. Your Honor, we move that we be allowed to unseal the marked exhibit, Your Honor, please, that was presented last time. It's with us, it's with the prosecution.

The Presiding Officer. Kindly unseal the document in the presence of the Counsel for Respondent. Witness is instructed to unseal the USB. This has been previously marked. So, after

the unsealing, Counsel for the Prosecutor and for the Respondent are instructed to kindly accompany each other to the tech booth to make sure it is the same—one and the same—USB that will be played.

[Long Pause]

Kung may balak kayong buksan uli, huwag ninyo na masyadong i-tape nang marami para hindi masyadong matagal kapag i-a-unseal.

Mr. Ligutan. For the record, these will be time stamps: 1 hour, 35 minutes, to 57 seconds, to 1 hour, 36 minutes, and 10 seconds for the first time stamp—I mean, for the first portion; and the second portion is from 1 hour, 36 minutes, to 52 seconds, to 1 hour, 36 minutes, and 58 seconds.

[Audio Video presentation]

The Presiding Officer. There's one more counsel, right?

Mr. Ligutan. Yes, Your Honor. Waiting for the second video consisting of six seconds only, Your Honor, please.

[Audio Video presentation]

Thank you so much, Your Honor, please.

May I proceed, Your Honor, please?

The Presiding Officer. Counsel may proceed.

Mr. Ligutan. Mr. Witness, what relation, if any, do those videos have—portions of the videos have with the video you mentioned earlier?

Mr. Lotoc. That's the same video I mentioned, Your Honor.

Mr. Ligutan. Okay, thank you so much. Let's proceed.

Attorney Lotoc, now, after you discovered these previous statements by the Vice President, what happened next, if any, in relation to the investigation you conducted on the Vice President's statements on November 23, 2024?

Mr. Lotoc. Yes, Your Honor. We have also discovered reactions from the recipients, specifically from the President himself, the Speaker of the House, relevant government agencies tasked to secure the life of the President and the national security, Your Honor.

Mr. Ligutan. Okay. Thank you so much.

Mr. Witness, let's focus on the President *kasi* it's his head. *Ulo ng Presidente* iyong gustong tanggalin ng Vice President. Let's focus on the President. Now, what did he say again in particular?

Mr. Lotoc. If I may refer to my notes, Sir?

Mr. Ligutan. Your Honor?

The Presiding Officer. You may do so.

Mr. Lotoc. Thank you, Your Honor.

Yes, Your Honor. Among others, "*Nakakabahala ang mga pahayag na narinig natin nitong mga nakaraang araw. Nandyan ang walang pakundangang pagmumura at ang pagbabanta ng planong ipapatay ang ilan sa atin. Kung ganoon na lang kadali ang pagplano sa pagpatay ng isang Presidente, paano pa kaya ang mga pangkaraniwan na mamamayan? Iyang ganiyang kriminal na pagtatangka ay hindi dapat pinalalampas; iyan ay aking papalagan.*"

Mr. Ligutan. Thank you so much.

Okay. Attorney Lotoc, you said that the former Speaker of the House of Representatives also gave *iyong tugon niya sa naging mga pagbabanta ng Bise Presidente laban sa buhay niya*. Could you just summarize exactly *ano ba* *iyong tugon ng* former Speaker ng House of Representatives?

Mr. Lotoc. Yes, Your Honor, if I remember it right, I think the Speaker issued a statement during the Plenary session on November 25, 2024, which was published in the ANC Digital. And then, among others, the former Speaker stated that the utterances were dangerous, unprecedented, *isa itong banta sa demokrasya at sa seguridad ng bansa*.

Mr. Ligutan. All right. Now, Mr. Witness, Attorney Lotoc, *sinabi mo rin na may mga ahensya ng gobyerno na nagbigay din ng kanilang tugon sa mga pagbabanta ng Bise Presidente*. If you may, *anong mga ahensya na ito?*

Mr. Lotoc. Yes, Your Honor, for one, the Presidential Communications Office, the Philippine National Police, the National Security Council, and the Armed Forces of the Philippines.

Mr. Ligutan. Okay. Let's focus muna sa Presidential Communications Office. *Ano ba iyong statement ng Presidential Communications Office, kung alam mo?*

Mr. Lotoc. If I remember it right, the PCO classified the threat as an active threat.

Mr. Ligutan. As an active threat.

Mr. Lotoc. And directed the Presidential Security Command to, I think, investigate the matter.

Mr. Ligutan. As an active threat.

Mr. Lotoc. It was the Executive Secretary who directed the Presidential Security Command. So, based on that statement.

Mr. Ligutan. Okay. Now, *sinabi mo rin iyong Philippine National Police. Iyong tanong is kung maalala mo: Ano ba iyong sinabi ng PNP in response sa naging mga pagbabanta ng Bise Presidente sa buhay ng Presidente at saka iyong dalawa pa?*

Mr. Lotoc. Your Honor, if I may refer to my notes?

Mr. Ligutan. Your Honor?

The Presiding Officer. You may do so, Mr. Witness.

Mr. Lotoc. Thank you, Your Honor.

The Philippine National Police issued a statement relative to the press conference made by the Vice President, "The Philippine National Police treats any threat to the safety and security of the President, and all public officials, with the utmost seriousness. In light of the Vice President Sara Duterte's recent statement, which directly referenced an assassin contracted to target the President, the PNP recognizes the grave nature of this matter. The safety of the President is a national concern, and any direct or indirect threat to his life must be addressed with the highest level of urgency." *Hindi ko na binasa lahat*, Your Honor.

Mr. Ligutan. Okay. Attorney Lotoc, now, the PNP used—based on your statement, as the response of the PNP—used the term "assassin" in referring to the person contracted by the Vice President to kill the President and two others?

Mr. Lotoc. Your Honor, it was not just the PNP; even the Presidential Communications Office also used the term "assassin," Your Honor.

Mr. Ligutan. Okay. Now, what about the National Security Council? *Ano ba ang sinabi ng NSC, kung alam mo?*

Mr. Lotoc. Again, Your Honor, if I may refer to my notes.

Puwede na ba?

Mr. Ligutan. Your Honor, may the witness be allowed to refer to his notes once more?

The Presiding Officer. You may do so, Mr. Witness.

Mr. Lotoc. Thank you, Your Honor.

Your Honor, the question was about the statement of the NSC, right?

Mr. Ligutan. Yes.

Mr. Lotoc. "The National Security Council considers all threats to the President of the Philippines as serious. Any and all threats against the life of the President shall be validated and considered a matter of national security."

Mr. Ligutan. Okay. Now, *sinabi mo rin na iyong Armed Forces of the Philippines (AFP), nagbigay din ng kanilang response sa naging pagbabanta ng Bise Presidente. Kung alam mo, 'tsaka kung maaalala mo, ano ba iyong sinabi ng Armed Forces of the Philippines?*

Mr. Lotoc. Same, Your Honor, if I may refer to my notes.

The Presiding Officer. You may do so, Mr. Witness.

Ms. Sison. For the record, we are borrowing—

Just for the record, Your Honor—

Mr. Ligutan. For orderly proceeding, Your Honor, please, I think it is proper for Atty. Sison to ask to be recognized first.

Ms. Sison. Yes, Your Honor. We will do that.

If I may be recognized, Your Honor?

The Presiding Officer. It depends. What is the pleasure of counsel for respondent, Attorney Sison?

Ms. Sison. We'll just state an observation on the note.

Mr. Ligutan. Your Honor, I think she should ask to be recognized first.

The Presiding Officer. Counsel, we agreed that only one counsel shall speak insofar as the presentation of a witness is concerned. This was objected to by the counsel for respondents, even if it was asked for by the counsel for the prosecutors.

Ms. Sison. We will do that, Your Honor.

Mr. Ligutan. Your Honor, for the record, we are not objecting, but, you know, for a proper proceeding, Atty. Sison should ask to be recognized.

The Presiding Officer. The Chair will make a ruling. Atty. Vinluan can handle the *ano*, with your permission, Attorney Sison.

Ms. Sison. Thank you, Your Honor.

Mr. Vinluan. Your Honor, I'd just like to share the observation that the witness is reading from a notes, from his notes, and not directly from the document that he identified.

Mr. Ligutan. And if I may reply to that, Your Honor, to that non-issue. Your Honor, if I may?

The Presiding Officer. Yes, counsel for the prosecutor.

Mr. Ligutan. Your Honor, *wala po sa rules na kailangan na iyong tugon ng isang witness, sinabi niyang notes, dapat based sa isang dokumento.*

In fact, Your Honor, please, *iyong iniisip ng ating rules, iyong mga notes na ginawa mismo ng witness.*

For the public, if you're interested, you may look at Rule 130, Section 16 ng Rules of Court. *Andoon iyon. Pupuwedeng tingnan ng isang testigo iyong notes na ginawa niya—Rule 130, Section 16, Your Honor, please.*

The Presiding Officer. Before I recognize the counsel for respondent, Senator-Judge Lacson, what is your pleasure, Sir?

Senator-Judge Lacson. Thank you, Mr. Presiding Officer.

This is relevant to the discussion.

The Presiding Officer. The gentleman may proceed, and he has two minutes.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE LACSON

Senator-Judge Lacson. Yes. You requested to refer to your notes, *ano*? A number of times during your direct examination. *Ang tanong ko*: Are you referring to an investigator's notes or notebook, or simply notes?

Mr. Lotoc. No, Your Honor. During the investigation, I have copies of the affidavit of investigations that we have.

Senator-Judge Lacson. Okay. Yeah. I asked that question because my understanding of an investigator's notes or notebook, to be credible, and may even be used as part of the examination or evidence in chief, depending on its authenticity and purpose, and the rule of evidence, is that the contents therein were written on the exact dates when the subjects of those notes actually happened. *Ito ba iyong ginawa niya mismo*?

Mr. Lotoc. Yes, Your Honor. During the investigation, Your Honor.

Senator-Judge Lacson. Thank you. Thank you for the clarification.

The Presiding Officer. Thank you, Senator-Judge Lacson.

Noted and entered into the records.

Counsel for respondent, what is your pleasure?

DIRECT EXAMINATION OF THE WITNESS

(Continuation)

Mr. Vinluan. Your Honor, that was a manifestation, Your Honor. We just want to put it for the record.

The Presiding Officer. There being objections, the witness may proceed and answer, or counsel may proceed with his questions.

Mr. Ligutan. The Armed Forces of the Philippines, *anong sinabi ng* Armed Forces?

Are we done? Not yet. *O, kaya*, let's go back.

Mr. Lotoc. Yes. If I may, Your Honor?

The Presiding Officer. Witness may continue to answer.

Mr. Lotoc. Thank you, Your Honor.

On November 23, 2024, Gen. Romeo S. Brawner, Chief of Staff of the Armed Forces of the Philippines, issued the following statements: "The Armed Forces of the Philippines is a professional organization focused on its mandate to protect the people and the state. Our personnel are loyal to the Constitution and the Chain of Command." *Hindi ko na po binasa lahat*, Sir.

Mr. Ligutan. Okay. Now, after you and your team discovered these responses, Attorney Lotoc, what happened next, if any, *kung mayroon man*, *'tsaka kung alam mo*, in relation *sa* investigation *ninyo sa mga* statements *ng* Vice President on that day, November 23, 2024?

Mr. Lotoc. We issued subpoena to the media personalities present during the online press conference of November 23, 2024, Sir, for them to appear on December 4, 2024.

Mr. Ligutan. You issued a subpoena to the media personalities that you said *andoon sa* media conference *na iyon* to appear on December 4, 2024. Now, *sino ba iyong mga* media personalities *na pina-subpoena ng* NBI?

Mr. Lotoc. Again, Your Honor, if I may refer to my—

The Presiding Officer. You may do so, Mr. Witness.

Mr. Lotoc. Thank you, Your Honor.

First, to the late Dempsey Cyden Reyes of the Philippine Daily Inquirer, and then to Redhor

Marky J. Mendoza of the Manila Times, Bonz Magsambol of Rappler, Anna Rosario Malindog-Uy of the Manila Times, Jayson Rubrico of the SMNI, and Mikhail Flores of the Reuters, Your Honor.

Mr. Ligutan. Okay. Now, Mr. Witness, *iyong tanong* now is: *Bakit kailangang i-subpoena ng NBI itong mga media personalities na ito na mag-appear sa NBI sa araw na iyon, December 4, 2024?*

Mr. Lotoc. Your Honor, they were there during the online presscon, and they participated in the press conference. *So, ang tingin namin, mayroon silang personal knowledge kasi nandoon din sila at nag-participate po sila, kaya* we deemed it proper to issue subpoena on them, Your Honor.

Mr. Ligutan. Now, so you said na they were subpoenaed to appear on December 4, 2024, in the NBI. Now, what happened on that day, December 4, 2024, if any, and if you know, in relation to the investigation you conducted?

Mr. Lotoc. The agent of the case reported to me that Mr. Reyes and, I think, Mr. Magsambol appeared before the Office of the Cybercrime Division and participated in the process of the interview.

Mr. Ligutan. Now, how do you know—how do you know that these two individuals, at least si Dempsey Reyes—again, may his soul rest in peace—and Magsambol, appeared before the NBI on that day, December 4, 2024?

Mr. Lotoc. Yes, Your Honor. Aside from the fact that the agent on case reported that to me, he showed to me the minutes of meeting, wherein the signatures of the late Mr. Reyes and Magsambol were affixed on it, Your Honor. *Nakapirma ho sila doon sa minutes of meeting, Sir.*

Mr. Ligutan. All right. Now, thank you so much, Attorney Lotoc.

Now, Attorney Lotoc, you said that your team interviewed members of the media. You issued subpoena to them, and they appeared. Now, what else happened, if any, in relation to the investigation you conducted?

Mr. Lotoc. We issued subpoena *ad testificandum* to the Vice President herself to shed light in the investigation we are conducting, Sir.

Mr. Ligutan. So, you're telling the public that you, NBI, also issued a subpoena to the Vice President?

Mr. Vinluan. Asked and answer, Your Honor.

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Okay. I'll proceed, Your Honor.

Now, what proof, if any, do you have that, in fact, the NBI issued a subpoena addressed to the Vice President?

Mr. Lotoc. We have a copy of that subpoena *ad testificandum* dated November 25, 2024, Sir.

Mr. Ligutan. Now, *kung iyong subpoena na binigay ng NBI sa Bise Presidente na may petsang Nobyembre 25, 2024 ay ipapakakita sa iyo, makilala mo ba iyong dokumento na ito?*

Mr. Lotoc. Opo.

Mr. Ligutan. Now, we are now in the process of presenting to you a subpoena *ad testificandum* dated on even date, December 25, 2024, that is...

The Presiding Officer. Counsel for the parties are authorized to approach and read the document.

Mr. Ligutan. For the record, this is previously marked as exhibit P-IV-4 for the prosecution. Have you perused the same Atty. Lotoc?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Question: What relation, if any, does that document have with the subpoena you mentioned?

Mr. Lotoc. This is the same subpoena I mentioned, Sir.

Mr. Ligutan. Thank you so much.

So, the NBI issued a subpoena to the Vice President.

Mr. Vinluan. Your Honor, can we just make a comment?

The Presiding Officer. Counsel for the respondent is recognized.

Mr. Vinluan. Your Honor, may we just put on record that Exhibit P-IV-4 is a photocopy and the original or the certified copy thereof was not produced.

Mr. Ligutan. We are ready to produce that, and that is the next step we are supposed to do.

The Presiding Officer. Noted, please proceed.

Mr. Ligutan. We have a copy of the certified true copy. We invite the defense to check the same for comparison, Your Honor, please.

The Presiding Officer. Counsel for the respondent.

Mr. Vinluan. Your Honor, it is a faithful reproduction of the certified true copy, Your Honor.

The Presiding Officer. Noted for the records. Counsel for the prosecutors may proceed.

Mr. Ligutan. Now, Mr. Witness, we would like to know how did the Vice President respond, if any, if at all, and if you know to the NBI subpoena issued to her?

Mr. Lotoc. Well, the Vice President did not appear, Your Honor, instead, she sent her lawyer, Attorney Paul Lawrence Lim, if I am not mistaken.

Mr. Ligutan. Okay, she did not appear.

Mr. Lotoc. Yes.

Mr. Vinluan. Has been answered.

Mr. Ligutan. Okay. Now, question: If you know, what was the Vice President's reason for failing to appear at the NBI, in the NBI, despite the subpoena issued to her?

Mr. Lotoc. I think the Vice President, in effect, was saying there were office matters to attend to, so, she cannot attend the scheduled subpoena.

Mr. Ligutan. Office matters.

Now, how did the respondent, the Vice President, inform you that she could not attend the subpoena because she was attending to "office matters?"

Mr. Lotoc. There was a letter, I think, dated November 28, 2024, which was submitted by the counsel of the Vice President, Sir.

Mr. Ligutan. So the letter, December 20, 2024. *Now, kung iyong kopya ng letter na iyan ipapakita sa iyo, maa-identify mo ba iyong letter na ito?*

Mr. Lotoc. Opo.

Mr. Ligutan. Now, we are in the process of showing you a copy of the letter dated November 28, 2024.

The Presiding Officer. Counsel for the prosecutor may approach, as well as counsel for the respondent.

Mr. Lotoc. Yes, Your Honor, this is the same letter that I've mentioned.

Mr. Ligutan. Your Honor, can I make a manifestation at this point?

The Presiding Officer. The prosecutor may proceed.

Mr. Ligutan. Your Honor, the letter from the Vice President's lawyer is not marked in exhibit. At this juncture, Your Honor, please, if the defense will agree, we move that the same be marked as an additional exhibit for the prosecution, and the specific marking that we are asking the court to follow is exhibit P-IV-32 for the prosecution, Your Honor, please.

The Presiding Officer. Counsel for the respondent.

Mr. Vinluan. We have no objection to that, Your Honor.

The Presiding Officer. So ordered; so marked.

Mr. Ligutan. Thank you so much.

Now, so, what did the – Your Honor, please, do we have to pause for the marking or do I proceed?

The Presiding Officer. Please proceed, counsel.

Mr. Ligutan. Thank you so much, Your Honor, please. Thank you so much.

Now, so what did the NBI do? *Ano ang ginawa ng NBI after iyong Bise Presidente hindi sumipot sa NBI despite the subpoena, kung meron man?*

Mr. Lotoc. Yes, Your Honor, we deemed it proper to issue another subpoena to give the Vice President another time so she can prepare, and at the same time, in reply to the letter submitted by the lawyer, we issued also a letter dated December 2, 2024, because the Vice President, in that letter from her lawyer, was asking copy of the complaint and the question to be propounded by the NBI to the Vice President.

Mr. Ligutan. All right. Now let's go to that letter. *Puntahan natin iyong letter na iyan.*

Now, *kung alam mo, ano ba iyong sinabi ng NBI sa letter na iyan na pinadala sa Vice President after hindi siya sumipot despite the subpoena sent her?*

Mr. Vinluan. Your Honor, the document would speak for itself. No need for the witness to read.

Mr. Ligutan. I think the counsel...

The Presiding Officer. Witness may answer, if he knows.

Mr. Lotoc. Yes, among others, Sir, *sinabi ho doon sa letter namin noong December 2, 2024, na ini-inform namin ang Bise Presidente na iniimbistigahan din po namin iyong alleged threat against sa kanyang life, at sinabi naming na kailangan namin iyong kanyang presensiya para may makuha kaming information para ho may mapagsimulan kami doon sa investigation against threat to her life, Your Honor.*

Mr. Ligutan. Now, what proof, if any, do you have that the NBI issued another subpoena addressed to the Vice President?

Mr. Lotoc. We have that copy of the subpoena dated, if I'm not mistaken, December 2, 2024, Sir.

Mr. Ligutan. Atty. Lotoc, *kung iyong kopya ng pangalawang subpoena ipapakita sa iyo, ma-i-identify mo ba?*

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, we are now in the process of showing you that subpoena, the defense may accept.

The Presiding Officer. Counsel for the prosecutor as well as counsel for respondent may approach to compare.

Mr. Ligutan. And for the record, that second subpoena addressed to the Vice President has been previously marked as exhibit P-IV-6 for the prosecution.

Mr. Lotoc. That's the same subpoena I mentioned, Sir.



Mr. Ligutan. Okay. So, that's the same subpoena. Do we have any observation from the defense?

The Presiding Officer. Counsel for respondent.

Mr. Vinluan. The document is a machine copy, Your Honor.

Mr. Ligutan. Machine copy. Your Honor, we move that the certified true copy in our possession be compared with the photocopy identified by the witness, Your Honor, please.

The Presiding Officer. Counsel, this has not been marked, right?

Mr. Ligutan. This has been marked this time, Your Honor, the second subpoena.

The Presiding Officer. This has been marked already.

Mr. Ligutan. Yes, Your Honor.

Mr. Vinluan. Same observation, Your Honor, as the last document.

The Presiding Officer. Meaning, it is a photocopy?

Mr. Vinluan. It is the same as the photocopy of... The copies are the same, but it's not the original, just a photocopy of the original, Your Honor, that was certified.

The Presiding Officer. I do not get it, counsel.

Mr. Vinluan. Your Honor, the other document that the prosecution is showing is a certified copy, Your Honor. So, in other words, it is a... It is the same as the photocopy that was previously marked, Your Honor.

The Presiding Officer. But certified.

Mr. Vinluan. Correct, Your Honor.

The Presiding Officer. Noted.

Mr. Ligutan. Thank you.

The Presiding Officer. You may proceed.

Mr. Ligutan. Now, you also mentioned, Atty. Lotoc, iyong isang letter, this time, it's dated December 2, 2024. Now, *kung iyang letter na iyan ay ipapakita sa iyo, ma-i-identify mo ba ito?*

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. Now, we are in the process of showing you a copy of that letter that is previously marked as exhibit P-IV-5 with sub-marking P-IV-5(a). May you peruse the same and answer that question. After perusing the document, what relation, if any, does this document have with the one you mentioned?

Mr. Lotoc. The same document that I mentioned, sir.

Mr. Ligutan. Thank you so much. Now, Mr. Witness, *sa pangalawang subpoena.*

Mr. Vinluan. Your Honor, the document, again, is a photocopy, machine copy.

Mr. Ligutan. Your Honor, we move that the certified true copy that we have in possession be compared with the photocopy that is marked in exhibit for the prosecution, Your Honor please.

The Presiding Officer. Counsel for respondent is instructed to so view the certified true copy and make the corresponding manifestation of their observation.

Mr. Vinluan. Faithful reproduction of the certified copy, Your Honor.

The Presiding Officer. Noted.

Mr. Ligutan. Thank you so much. May I proceed.

The Presiding Officer. Counsel, you may proceed.

Mr. Ligutan. Now, Attorney Lotoc, *ano ba ang naging tugon kung meron man, at saka kung alam mo, ng Bise Presidente sa pangalawang subpoena na inisyu ng NBI?*

Mr. Lotoc. Yes, Your Honor. The Vice President, again, did not appear, but, instead, sent her lawyer with another letter.

Mr. Ligutan. Another letter.

Mr. Lotoc. Yes, Your Honor. Submitted to the Office of the Cybercrime Division.

Mr. Ligutan. Okay. Now, *kung alam mo, ano ba ang nilalaman ng letrang iyan, pangalawang* letter ng Vice President, in response to the second subpoena ng NBI?

Mr. Lotoc. If I remember it right, *sinasabi doon*, we must take the obvious, the NBI is under the administrative supervision ng Secretary of Justice, who is an *alter ego* of the President; and the executive secretary is the chief *alter ego* so *minarapat daw niya makinig sa kaniyang counsel at hindi na mag-appear sa subpoena ng NBI*, Your Honor.

Mr. Ligutan. Now, what proof, if any, do you have of that letter?

Mr. Lotoc. We have a copy of that letter, Your Honor.

Mr. Ligutan. *Kung iyong kopya ng letter na iyan ipapakita sa iyo, ma-identify mo ba?*

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Now, we are showing you a copy of the letter dated December 10, 2024. The question after you peruse the same, what relation, if any, does that document have with the letter you mentioned?

Mr. Lotoc. The same document that I mentioned, sir.

Mr. Ligutan. Your Honor, manifestation.

The same letter coming from the Vice President's counsel is not marked in exhibit by the prosecution, same with the previous letter. We move that the same, with agreement from the defense counsel, be marked as our Exhibit P-IV-33 for the prosecution. It is a photocopy of that letter, Your Honor please.

The Presiding Officer. What does the counsel for the respondent say?

Mr. Vinluan. No objection to that, Your Honor.

Mr. Ligutan. No objection. Thank you so much.

The Presiding Officer. Noted. Kindly have it marked?

Mr. Ligutan. Your Honor, proceed.

Now, Mr. Witness, what else, if any, did the letter state? If any.

Mr. Lotoc. Well the counsel for the Vice President stated that the Vice President is confident that the NBI will also investigate the alleged threat against her life. *Iyon po iyong tenor ng letter na iyon*, Sir.

Mr. Ligutan. Now, *ito iyong tanong* now. You mentioned earlier that the Vice President stated that she already contracted an assassin to kill the President and the two others. Now, Attorney Lotoc—

Mr. Vinluan. Objection, Your Honor—

Mr. Ligutan. Wait, wait, wait. I'm not yet done. No question yet.

The Presiding Officer. Please proceed, counsel.

Mr. Ligutan. As the head of the investigation team, what was your impression of the Vice President when she declared that she already contracted an assassin to kill the President, the First Lady, and the former Speaker of the House of Representatives?

Mr. Vinluan. Objection, Your Honor.

Mr. Ligutan. On what ground?

Mr. Vinluan. Calls for an opinion.

Mr. Ligutan. Opinion. You may cite the rule, Your Honor. Please.

Mr. Vinluan. And misleading as well, Your Honor. She never mentioned the word "assassin."

Mr. Ligutan. Your Honor, may I reply to that, Your Honor, please.

The Presiding Officer. Counsel for the prosecution is recognized.

Mr. Ligutan. The term "assassin" is not a fiction. It is the same term used by the PNP and by the PCO. So, it's not plucked out of thin air, Your Honor, please. So we have basis for using the term "assassin."

Mr. Vinluan. But, Your Honor, the counsel mentioned that it was VP Sara who mentioned it, and that was phrased as his answer, so we are objecting to that, Your Honor.

The Presiding Officer. With the understanding that the witness will base his answer on his investigation or knowledge in so far as the investigation that he himself conducted and led his concern, and not as a conclusion of fact and law.

The witness may answer.

Mr. Ligutan. What was your impression?

Mr. Lotoc. Yes, Your Honor. To me, as the chief investigator at that time, the utterances made by the Vice President was serious, and the threat was real and actual, Sir.

The Presiding Officer. Mr. Witness—if I may intercede counsel—is this contained in your investigation report?

Mr. Lotoc. Yes, Sir.

The Presiding Officer. You may proceed, counsel.

Mr. Ligutan. "*Seryoso tsaka totoong pagbabanta.*" Now, what made you say that, *na iyong pagbabanta ng Bise Presidente ay both seryoso at totoo?*

Mr. Lotoc. Well, Your Honor, we considered the content and context of the utterances made by the Vice President in November 23, 2024, as well as the utterances made by the Vice President in October 18, 2024, and the reactions from the recipients, as well as reactions from several government agencies, Sir.

Mr. Ligutan. Content and context. Now, exactly, *iyong tanong* is, exactly, exactly, how did you analyze the content and the context of the entire press conference?

Mr. Lotoc. We considered several factors, Your Honor, in the analysis of that content and context.

Mr. Ligutan. Several factors. To be exact, *kung alam mo, ilang factors kinonsider niyo?*

Mr. Lotoc. At least four.

Mr. Ligutan. At least four.

Mr. Lotoc. Your Honor, number one, the delivery or manner in which the utterances were spoken.

Mr. Ligutan. That's one.

Mr. Lotoc. Number two, the literal meaning of the statement, Your Honor; number three, the nature of the instruction; and, number four, the relationship between the parties, Sir.

Mr. Ligutan. So four factors. Now, Attorney Lotoc, let's go to the first factor? Let's go to the first factor. The delivery of the manner in which the threats were spoken—what made you say that the respondent was both serious and real when she uttered those threats?

Mr. Vinluan. Objection, Your Honor, calls for an opinion.

Mr. Ligutan. Your Honor, if I may.

The Presiding Officer. Based on his investigation, counsel, he may testify as to that. Witness may answer.

Mr. Lotoc. Yes, Your Honor. The Vice President was furious and fuming mad when she uttered those.

Mr. Ligutan. Could you repeat it? Furious and?

Mr. Lotoc. Fuming mad, sir.

Mr. Ligutan. Furious and fuming mad.

Now, what made you say *na iyong Bise Presidente* was both furious and fumingly mad?

Mr. Lotoc. Well, *nakita ho namin doon sa video noong ni-run ho namin*, Your Honor. If I'm not mistaken, I think, more or less *walong beses ho siyang galit na galit at nagmumura at minumura iyong Presidente, si First Lady*, and then *si former Speaker of the House*, Sir.

Mr. Ligutan. *Walong beses.*

Mr. Lotoc. If I'm not mistaken, more or less, Sir.

Mr. Ligutan. Now, and you are referring to the video.

Now, in what particular portions of the video, okay, did the Vice President hurl invectives or *sa Tagalog, pagmumura; kung sa Cebuano, pamalikas; kung Waray-waray—*

Mr. Lotoc. *Buyayaw.*

Mr. Ligutan. *Buyayaw. Mga ilang beses? Walo?* In what particular portions?

Mr. Lotoc. Your Honor, if I may refer to my notes.

The Presiding Officer. You may do so.

Mr. Lotoc. Thank you, Your Honor.

Mr. Ligutan. In the interest of time, Your Honor, please. While the counsels are doing that, I move that the previously marked and identified Exhibit P-IV-10, which is the flash drive containing the video of that press conference, be unsealed in the presence of counsels from both sides.

The Presiding Officer. You may proceed.

Mr. Litugan. And then you may now answer, Mr. Witness, *anong mga timestamps ba ito?*

Mr. Lotoc. Your Honor, from timestamps 53:27 and 53:39.

Mr. Litugan. So, 53:27 to 53:39. The second timestamp, if you may?

Mr. Lotoc. 54:03 and 54:08.

Mr. Litugan. 54:03 to 54:08. That's the second timestamp. What about the next timestamp, if you know?

Mr. Lotoc. 55:42 and 56:07.

Mr. Litugan. 55:42 to 56:06. What about the fourth timestamp, if you know?

Mr. Lotoc. 58:38 up to 58:47.

Mr. Litugan. 58:38 to 58:47 seconds. What about the fifth timestamp, if you know?

Mr. Lotoc. 01:02:25, 01:02:32, Sir.

Mr. Litugan. 01:02:25 to 01:02:32. What about the next, the sixth timestamp, if you know?

Mr. Lotoc. 01:05:08 up to 01:05:31.

Mr. Litugan. 01:05:08 to 01:05:31. What about the last timestamp, Mr. Witness?

Mr. Lotoc. 1:08:43 and then 1:08:54, Your Honor.

Mr. Litugan. 1:08:43 to 1:08:54

Your Honor, we move that those seven timestamps identified by the witness be shown in sequence, Your Honor, please.

The Presiding Officer. So ordered. Counsel for the prosecutors will kindly give the flash drive to be unsealed by the witness, as witnessed by counsel for the respondents. Thereafter, for the counsel of the parties to kindly accompany each other to the tech booth so that the USB may be played with respect to the specified timestamps of the witness.

[Audio Video Presentation]

Mr. Litugan. I think we have two more.

[Audio Video Presentation]

Mr. Litugan. I think we have two more.

[Audio Video Presentation]

Mr. Litugan. Your Honor, I think that will be the last.

The Presiding Officer. Counsel, that's the seven timestamps?

Mr. Litugan. Let me confirm, Attorney Magallon.

Okay, we have one more. We have two more, Your Honor, please. I was told we have two more timestamps, Your Honor, please.

The Presiding Officer. Two more.

Mr. Litugan. Thank you.

[Audio Video Presentation]

Mr. Litugan. And the last one.

[Audio Video Presentation]

Mr. Ligutan. Okay, Your Honor, those were the seven timestamps, portions of the video where the Vice President hurled invectives and profanity. So, the question is, may I proceed, Your Honor?

The Presiding Officer. Counsel, to clarify, did the Vice President hurled invectives period, not necessarily against the three officials mentioned?

Mr. Ligutan. Most of them were against the three officials, Your Honor, please.

The Presiding Officer. I only counted or heard one or two. Out of the seven, I heard Representative Chua, but he's not one of the subject matters of this case.

But just for the record, does the witness confirm that? Out of the seven timestamps, there are approximately two or three that mentioned either all three or one of the top officials? Would that be correct, Mr. Witness?

Mr. Lotoc. I think more than that, sir, if you can see the context.

Mr. Ligutan. Make your voice louder.

Mr. Lotoc. If I'm not mistaken, I think, five times referring to either Martin Romualdez, or Liza Marcos, or the President.

The Presiding Officer. The rest were either congressmen or a particular congressman?

Mr. Lotoc. If I'm not mistaken, sir, yes.

The Presiding Officer. Counsel, you may proceed.

Mr. Ligutan. Now, Mr. Witness, *itong mga* seven timestamps, *kung saan nagmumura iyong Bise Presidente*, why is this a factor, a classifying threat, serious and real?

Mr. Lotoc. Yes, Your Honor. It's very much a factor. Because we want to establish the intent of the Vice President, and that intent is crucial in our investigation, and we want to determine whether those utterances made by the Vice President were just a product of a temporary fit of anger, was it just spur of the moment, or were they really serious actual and real threats, Your Honor.

Mr. Ligutan. So, what was your conclusion? Was it serious, real?

Mr. Lotoc. Yes, Your Honor. Serious and real.

Mr. Ligutan. Let's go to factor No. 2. So, two out of four factors. Now, *sinabi mo iyong* literal meaning *ng mga* utterances *ng* Vice President. *Iyong* literal meaning, why is this a factor in your conclusion *na seryoso at totoo iyong pagbabanta ng Bise Presidente?*

Mr. Lotoc. Yes, Your Honor. *Klaro po doon sa* utterances *ng Bise Presidente*, even before, the online press conference held on November 23, 2024, the Vice President had already contracted a person to kill the President, Liza Marcos, and the former Speaker, Your Honor.

Mr. Ligutan. *Siguro*, so the public will understand, I want you to answer in Tagalog. *Bakit mahalaga sa inyo, sa imbestigasyon ninyo na iyong pagkokontrata ng tao na papatay sa Pangulo saka dalawa pa, nangyari ito bago pa man iyong press conference? Ba't mahalaga sa imbestigasyon ninyo iyan?*

Mr. Lotoc. Yes, Your Honor. *Mahalaga ho iyan para sa amin.* Basically, it's indicative of intent that the utterances were deliberately made up by the Vice President, and it really shows serious, actual and real threat, Your Honor.

Mr. Ligutan. All right. Now, Attorney Lotoc, let's go to the third factor. Yung third factor *daw* is *sinasabi mo, iyong* nature *ng* instruction. Now, can you tell the public and the Court, *ano bang ibig sabihin ng* factor No. 3, nature of the instruction?

Mr. Lotoc. Yes, Your Honor. In those utterances, the Vice President said, "*Huwag kang tumigil hangga't hindi mo sila mapapatay.*" It shows persistence on the part of the Vice President that she was determined to carry out those utterances. And from the point of view of law enforcement agency like the NBI, it is alarming for us, sir.

Mr. Ligutan. It is alarming from the point of view of law enforcement agents. In Tagalog, if you may, *bakit mo nasabing nakakaalarma iyong sinabi ng Bise Presidente iyong* instruction *na huwag kang titigil hangga't hindi mo napapatay ang Pangulo, ang Unang Ginang, at former Speaker ng House of Representatives? Bakit mahalaga? Bakit alarming iyan?*

Mr. Lotoc. Well, Your Honor, *puwede hong* mag-take advantage *iyong ibang grupo diyan, ibang indibidwal*, God forbid, *may mangyari sa Bise Presidente*, for one reason or the other. *Nati-trigger ho ngayon iyong* instruction, and then *papatayin ngayon iyong*, God forbid again, *ang Presidente*, Liza Marcos, *ang* former Speaker, and in fact, even *iyong* triggering *na* phase *na* *iyon*, *puwedeng* mag-take advantage *doon yung ibang grupo*, thinking *na kapag inassassinate natin ang tatlo— ang sisisihin ang Bise Presidente*. So, *marami hong anggulo*, Your Honor, *para ho sa amin sa* law enforcement, *medyo magiging* disorder, *magiging* chaotic, *magiging* anarchy *iyong* society *kapag hindi siya na-address. Iyon po yung sa amin* as investigators, sir.

Mr. Ligutan. But was she not only joking, Attorney Lotoc?

Mr. Vinluan. Objection, leading, Your Honor.

Mr. Lotoc. Your Honor, there's basis for that, Your Honor.

The Presiding Officer. Sustained.

Mr. Ligutan. Now, let's proceed, Mr. Witness. So far, you mentioned *ito iyong mga* factor, *ano—* manner, literal meaning, nature of the instruction. *Ano ba iyong* fourth factor, *kung alam mo?*

Mr. Lotoc. The relationship between the parties, meaning the relationship between the Vice President and the President.

Mr. Ligutan. Now, what about the fourth factor, why is it significant to the investigation?

Mr. Lotoc. Well, in one of the utterances made by the Vice President, she characterizes the relationship with the President as "toxic."

Mr. Ligutan. Toxic.

Mr. Lotoc. If I am not mistaken, at least three times *niya binigkas* *iyong* term *na* "toxic" referring to the relationship between her and the President, sir.

Mr. Ligutan. Now, what were your reasons, if any, that made you conclude *na nasabi na ng Vice President na toxic iyong relationship niya* between her and the President?

Mr. Vinluan. Objection, calls for an opinion, Your Honor.

Mr. Ligutan. Your Honor, investigation.

The Presiding Officer. Witness may answer, part of his investigation.

Mr. Lotoc. Well, *una, iyong resignation niya as Secretary ng Department of Education. Pangalawa, iyong utterances niya noong October 18, noong sinabi niya na "I realized, toxic na itong relationship," "Gusto kong tanggalin iyong ulo niya" ba, and then "I imagine myself cutting his head."*

Mr. Ligutan. What else, if any?

Mr. Lotoc. The reaction of the recipient of those utterances, Your Honor. The reaction from the President himself, sir.

Mr. Ligutan. So, the reaction from the President himself. Now, you already mentioned *kanina ano iyong reaction ng President. Iyong tanong* now Attorney Lotoc is, why did you consider *iyong reaction ng mga recipients ng pagbabanta, kagaya ng Presidente?* Let's focus on the President. *Bakit niyo kinonsider iyong reaction nila?*

Mr. Lotoc. Well, we want to establish whether the recipient of those utterances felt intimidated by those statements, or did they take it as serious and actual threat, material *po sa amin iyon*, Your Honor, if only to establish the *mens rea*.

Mr. Ligutan. *Mens rea ng krimen.* Now, let's focus on the President. *Ito iyong premise now—based on your investigation, what was your impression of the President, based on his reaction? Was he intimidated?*

Mr. Lotoc. Well, *iyong opening statement ng Presidente ang sabi niya, "Nakakabahala ang mga narinig natin nitong mga nakaraang araw. Ito ay isang kriminal na pagtatangka, papalagan ko ito."* Yes, Your Honor, the President took the threat by the Vice President as serious and real.

Mr. Ligutan. Now, Mr. Witness, aside from the reaction *ng mga recipients*, we focused on the President, *ano pa iyong ibang mga factors na na-consider ninyo, kung mayroon pa man?*

Mr. Lotoc. Your Honor. This is from the point of view of the investigator—we find it disturbing when we tried to compare the utterances made in October 18 and the utterances made in November 23. And *may nakita ho kami doon*, at least, *tatlo o apat na medyo, sabi ko nga*, disturbing from the point of view *namin*.

Mr. Ligutan. "Disturbing." *Tatlo o apat na disturbing na?*

Mr. Lotoc. *Iyong mga utterances*, Your Honor.

Mr. Ligutan. Utterances.

Now, let us go to that where you said you compared the utterances in October 18 *tsaka* November 23, *ang sabi mo*, you found at least three or four disturbing statements. *Tama ba?*

Now, *ano ba iyong three statements na ito?*

Mr. Lotoc. Your Honor, we are trying to establish the patterns and the consistencies of those utterances. For instance, *noong October 18, ang sabi niya is: "Walang No. 1 ang Pilipinas na ito. Para sa akin, No. 2 lamang ito. Walang No. 1."*

And then, we compared it in November 23, *ang sabi niya, ni-reiterate niya: "I do not recognize anybody above me."* That is No. 1, Your Honor.

Then No. 2, *ang sabi niya noong October 18: "Hindi marunong maging Presidente ang nakapoo. Kasalanan ko ba iyon?"*

And then, we compared it in November 23, *ang sabi niya doon: "This country will go to hell because that person who is sitting, sabi niya, is, doesn't how to be a President and who is a liar."*

Mr. Ligutan. All right.

Mr. Lotoc. Then, No. 3, *ang sabi niya sa October 18, "Mayroon akong limang impeachable offense na alam kay BBM, pero papasa ba diyan sa House?" Siyempre, hindi.* And then, *ikinompare namin ang November 23, ang sabi niya doon is: "He was lying through his teeth para makuha lang ang boto ng mga tao."* And then, *nagmura na siya: "P.I. ka, BBM, Liza Marcos, and Martin Romualdez,"* Your Honor.

Mr. Ligutan. What do you mean by "P.I.?"

Mr. Lotoc. *Putang-ina*, sir.

Mr. Ligutan. All right.

You said that you found these three comparisons disturbing. Now, *ano ang significance ng three comparisons na ito sa imbestigasyon ninyo, kung mayroon man?*

Mr. Lotoc. Yes, Your Honor. Based on these utterances and consistencies in the utterances made by the Vice President, it appears that these statements have tendency to stir up the people against the government; have tendency to disturb the peace of the community; have tendency to undermine the public peace and order, sir.

Mr. Ligutan. Now, Mr. Witness, given all these findings, *sinabi mo seryoso tsaka totoo iyong mga pagbabanta ng Bise Presidente, ano ang ginawa ng division mo, kung mayroon man*, in relation to the investigation?

Mr. Lotoc. We executed, Your Honor, an Affidavit of Investigation and we recommended criminal charges—three counts for grave threats and one count for inciting to sedition, sir.

Mr. Ligutan. Now, *na-mention mo iyong Affidavit of Investigation*. For clarity, *anong date ng Affidavit of Investigation na nasabi mo?*

Mr. Lotoc. February 10, 2025, sir.

Mr. Ligutan. *Kung iyong Affidavit of Investigation and the annexes ipapakita sa iyo, maa--identify mo ba ang affidavit na ito?*

Mr. Lotoc. Yes, sir.

Mr. Ligutan. I am showing you now a copy of the Affidavit of Investigation, *may petsang* February 10, 2025—that is previously marked for the prosecution as Exhibit P-IV-3—you peruse the documents and annexes.

I move that the Defense be allowed to peruse the same.

And the question is, what relation, if any, do these documents have with the documents you mentioned?

The Presiding Officer. Counsel for both parties may approach.

Mr. Vinluan. Manifestation, Your Honor.

The Presiding Officer. Counsel for the Respondent may proceed.

Mr. Vinluan. Your Honor, we just like to manifest that the marked document, permanently marked by the Prosecution, does not contain any annexes. And the other set of documents that he is comparing it to has annexes.

Mr. Ligutan. I can reply to that, Your Honor, please.

The Presiding Officer. Counsel for the Prosecution will please reply.

Mr. Ligutan. No. 1, the Affidavit of Investigation, the annexes thereto *ay makikita iyong mga annexes*, most of them, as separate documents that have been pre-marked.

Uulitin ko: iyong mga hinahanap ng depensa na mga annexes sa Affidavit of Investigation, nasa record ng Senado iyan because na markahan separately because they have been identified separately also by the previous witness.

I hope that satisfies.

The Presiding Officer. What does Counsel for the Respondent say?

Mr. Vinluan. Your Honor, is that an admission that the Affidavit of Investigation was stripped of its annexes?

Mr. Ligutan. No. Your Honor, if I may. *Ang klaro naman ng sinabi ko.* Can I reply to that, Your Honor, please?

The Presiding Officer. The Chair would like to clarify the matter instead. Are all the annexes listed and identified in the footnotes of the Affidavit of Investigation marked or pre-marked by the Prosecution?

Mr. Ligutan. I can answer that. Most of them, Your Honor, please, and I can identify *ano iyong mga hindi na-mark at saka* raised at the time.

The Presiding Officer. So, most, not all?

Mr. Ligutan. Yes, Your Honor, please.

The Presiding Officer. And, for the record, that the Affidavit of Investigation that the witness is identifying and that you have marked does not contain any of the annexes mentioned in the Affidavit of Investigation, without prejudice, of course, to the annexes that you already marked?

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. And identified by this and other witnesses?

Mr. Ligutan. Yes, Your Honor. Not attached specifically to the Affidavit, but found in the same record of the Honorable Court.

The Presiding Officer. Not attached to the document that the witness is identifying right now?

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. Does that satisfy the Counsel for the Respondent?

Mr. Vinluan. Your Honor, we are not objecting as to how they marked it. We are just manifesting it, for the record.

The Presiding Officer. That it is not there?

Mr. Vinluan. Yes.

The Presiding Officer. So, noted.

Witness may answer.

Mr. Lotoc. Yes. This is the same document that I mentioned.

Mr. Ligutan. All right. May I proceed, Your Honor, please?

The Presiding Officer. You may proceed.

Mr. Vinluan. Just to manifest, Your Honor.

The Presiding Officer. Counsel for the Respondent is recognized.

Mr. Vinluan. Just to manifest, Your Honor, that, again, the comparison was made with the certified true copy, not the original, Your Honor.

The Presiding Officer. So, noted.

Please proceed, Counsel for the Prosecutor.

Mr. Ligutan. Thank you so much.

Atty. Lotoc, *sa pahinang 28 ng Affidavit of Investigation, may makikitang pirma sa ibabaw ng pangalang SA Jeremy Lotoc. Nakikita mo ba iyan? Ang tanong: kaninong pirma ito?*

Mr. Lotoc. This is my signature, sir.

Mr. Ligutan. And *sa pahinang 29 ng Affidavit may makikitang pirma sa ibabaw ng pangalang SA Jeremy Lotoc. Kaninong pirma ba ito?*

Mr. Lotoc. Again, *sa aking pirma ho ito, Sir.*

Mr. Ligutan. Your Honor, at this juncture, the Prosecution manifests and move that the same—the two signatures of the witness be marked as P-IV-3-1, that is for the first; and the other one P-IV-3-2. Reason is, these signatures have not yet been marked in exhibit, Your Honor, please.

The Presiding Officer. Counsel for Respondent?

Mr. Vinluan. No objection to that, Your Honor.

Mr. Ligutan. Thank you so much.

May I proceed, Your Honor?

The Presiding Officer. You may proceed.

Mr. Ligutan. Atty. Lotoc, in paragraphs 202 *tsaka* 203 *ng naging answer ng* Vice President dated May 25, 2026 to the Articles of Impeachment, which document forms part of the record of this Court, *sinasabi ng* Vice President *na* she was merely exercising her freedom of expression, *sinabi niya*, that is protected, *iyong pagbabanta niya*. Are you aware of this defense?

Mr. Lotoc. Yes, Your Honor.

Mr. Ligutan. Attorney Lotoc, as a lawyer and as the head of the NBI Cybercrime Division, that is the basis, Your Honor, do you agree with this?

Mr. Vinluan. Objection, Your Honor, calls for an opinion. This is not part of the investigation.

Mr. Ligutan. He is a lawyer, Your Honor, as a matter of fact—

The Presiding Officer. It does call for an opinion and it is not part of their investigation, Counsel. Kindly reform your question. I know where you are getting at, but kindly reform your question.

Mr. Ligutan. Okay. Your Honor, Attorney Lotoc, you are aware of the defense that it is a freedom of expression.

Mr. Lotoc. Yes, sir.

Mr. Ligutan. Okay. In your investigation, did you consider this, if at all, and if any?

Mr. Vinluan. Objection, Your Honor, leading.

Mr. Ligutan. No, there is basis, if at all, if any.

The Presiding Officer. Witness may answer.

Mr. Lotoc. Yes, of course, Your Honor. We considered that whether *mag-po-fall ba siya sa* confines *ng* freedom of speech.

Mr. Ligutan. And what was your finding? That is the basis now, what was your finding?

Mr. Lotoc. Well, *una*—three reasons, Your Honor, *kung okay lang*:

No. 1: When the second highest official of the land openly and publicly uttered that she had already contracted a person to kill the highest official of the land, the First Lady, and the former Speaker, and that she instructed the person to be relentless in killing them, we failed to see any amount of freedom of speech in that utterances, Your Honor. That is number one;

No. 2. We talked to ourselves, if we allow the argument that it is within the bounds of freedom of speech, if we allow that to become the norms of our society, then who would prevent anybody from doing the same to anyone? *Puwede na pong sabihin, "Patayin mo si Senator ganito pag ito ang nangyari; patayin mo si Congressman ganito, pag ganito ang nangyari; patayin mo si Justice ganito, pag ganito ang nangyari."* So, imagine, Your Honor, the anarchy, the disorder and the chaos that it would bring to our country; and

No. 3. Your Honor, as a lawyer and being in the law enforcement, freedom of speech protects lawful expression but it does not protect utterances that satisfies the elements of a criminal offense like this one.

Mr. Ligutan. "Satisfies the elements of a criminal offense like this one." *Ito iyong tanong* now: Attorney Lotoc, based on your finding, based on your affidavit of investigation, did the Vice President commit a crime?

Mr. Lotoc. Based on our finding—

Mr. Vinluan. Objection, Your Honor, leading and calls for conclusion of law.

Mr. Ligutan. Based on his investigation, let the witness answer.

The Presiding Officer. Sustained, but the Presiding Officer will ask the question to the witness. Based on your investigation, Attorney Lotoc, was there enough basis to file a criminal complaint, as you did, for the crimes you charged the Vice President with? *Prima facie* evidence only, not as to whether or not she indeed committed it or not, because only a court of justice can determine that.

Mr. Lotoc. Yes, Your Honor, based on our findings, we believe that the Vice President committed the crime of grave threats and inciting to sedition.

The Presiding Officer. Only insofar as satisfying the requirement of *prima facie* evidence sufficient to file a case.

Mr. Lotoc. *Prima facie* evidence with reasonable certainty of conviction.

The Presiding Officer. Yes, that would be a more complete description of what you have to comply with before you can file a case.

Mr. Lotoc. Yes, Your Honor. Yes *po*.

The Presiding Officer. Counsel, may proceed.

Mr. Ligutan. Thank you so much.

Let us continue. Attorney Lotoc, *kita magpapadayon hinin atod mga pakiana ng imong pagbaton niyon akod magpakilala.*

Mr. Vinluan. Your Honor, Your Honor, may I be allowed to make a manifestation? Your Honor, as I understand, only Filipino and English was—because I cannot understand, Your Honor, what he was saying. So, can we just ask that he state his statements in Filipino or English, Your Honor.

Mr. Ligutan. Your Honor, Filipino language encompasses all the languages dialects. It includes our very own Waray-waray.

The Presiding Officer. Counsel, counsel, the rules state only Filipino and English, but I will let it go once in a while but not each time.

Mr. Vinluan. We will submit, Your Honor.

Mr. Ligutan. Thank you, Your Honor.

The Presiding Officer. You may proceed, counsel for the prosecutors.

Mr. Ligutan. Now, you mentioned that the respondent's lawyer, Attorney Lim, through a letter said that the Vice President was confident in your office's assurance that the alleged threats to her were also being investigated, *maalala mo sagot mo iyon doon?*

Mr. Lotoc. Yes, Your Honor. *Opo*.

Mr. Ligutan. Now, what did the NBI do, if any, on the alleged threats this time *sinasabi niya*, to her, to the Vice President, *kung meron man?*

Mr. Lotoc. Yes, Your Honor, we started the investigation on the alleged threat against the life of the Vice President.

Mr. Ligutan. You started. So, what was the result, if any, if at all, if you know, to that investigation?

Mr. Lotoc. Well, Your Honor, the fact that we issued a letter dated December 2, 2024, we informed the Vice President that we are investigating on that alleged threat against her life, and that we want information, any information that would give us any investigative lead on that matter, Your Honor. Unfortunately, the Vice President did not appear.

So, *wala po kaming nakitang pagsisimulan na imbestigahan*. Well, *naging—may nakita kami sa*, I think, 75 PNP personnel, insofar as the security of the Vice President is concerned, per record, *sa news na inalis sa VPSPG* and then *inilipat sa Manila*. And I think the reason being is that *may issue ng peace and security, kung hindi ako nagkakamali*. *Iyon po iyong—*

Mr. Ligutan. *Nakita niyo?*

Mr. Lotoc. —*medyo nakikita naming security issues*.

Mr. Ligutan. Now, if you know, if you know, *ilan ba iyong natira sa Vice Presidential Security and Protection Group*, if you know, *pagkatapos ma-remove iyong sinasabi mong 75 personnel* of that VPSPG, if you know?

Mr. Lotoc. Well, if I am not mistaken, based on the record—the COA record—I think more or less 335 security personnel. *Kung hindi ako nagkakamali base doon sa—*

Mr. Ligutan. 335 personnel protecting a single person, the Vice President?

Mr. Lotoc. Based on that record, Your Honor. Based on the news *iyon*.

Mr. Ligutan. 335. Last point, last point, Your Honor, please.

The Presiding Officer. Wind up, counsel.

Mr. Ligutan. Yes, Your Honor. Now, Mr. Witness, you mentioned earlier that your office considered in this investigation, in the November 23, 2024 online briefing *na aside kay respondent, iyong bise presidente tsaka iyong mga media personalities*, okay, *na nabanggit mo, sino pa, kung meron pa, iyong nandoon sa online briefing na iyon, kung alam mo?*

Mr. Lotoc. Well, *iyong pinakaunang part ng video, si Attorney Zuleika Lopez*.

Mr. Ligutan. Atty. Zuleika Lopez. Now, *iyong tanong*, Mr. Witness, *ano iyong na-observe mo, kung meron man*, okay, about Atty. Zuleika Lopez during that online media briefing?

Mr. Vinluan. Objection, vague, Your Honor.

Mr. Ligutan. Your Honor, what is vague. Okay.

The Presiding Officer. Witness is smart enough to answer if he knows. Witness may answer.

Mr. Lotoc. Thank you, Your Honor.

Well, based on that video, it appears *na nagko-complain si Attorney Zuleika*, referring *doon sa paglipat niya* from HOR to women correction facilities, I think, and then *iyong health issue niya*. So, *parang kino-complain din niya na iyon*. *At iyong nangyari sa kaniyang pagka-held in custody sa HOR*.

Mr. Ligutan. All right. Now, Attorney Lotoc, what significance, if any, do these complaints *ni Attorney Lopez* have, okay, in your investigation on the threats made by the Vice President in that online media briefing?

Mr. Lotoc. Yes, Your Honor. We take that into account. *Tiningnan namin yung situation, iyong issue ni Atty. Zuleika*. But when we see the bigger picture, taken all the pieces of the puzzle, *una*, it has nothing to do with the Vice President contracting a person, because even before Zuleika Lopez appeared in that video, the Vice President had already contracted a person to kill the President, and Liza Marcos, and the former Speaker. And when we consider all the facts and circumstances, the instance where Attorney Zuleika was complaining, it does not diminish, it does not alter, it does not affect the totality of the findings that we have in our investigation, sir.

The Presiding Officer. Is counsel for the prosecutor done? Attorney Ligutan, are you done?



Mr. Ligutan. Yes, Your Honor.

The Presiding Officer. You're done? Before cross-examination, the Chair would like to recognize, with the permission of Senator-Judge JV, Senator-Judge Bam Aquino had earlier sought recognition. The Chair will recognize him first, thereafter, Senator-Judge Tulfo (E); thereafter, Senator-Judge Ejercito; and then Senator-Judge Hontiveros.

Senator-Judge Aquino is recognized. You have two minutes, sir.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. Yes. *Maraming salamat*, Mr. Presiding Officer.

Attorney Lotoc, *meron pa po bang ibang grupo sa NBI ang nag-imbestiga doon po sa mga utterances ni Vice President Sara Duterte noong November 23, 2024?*

Mr. Lontoc. During our time? Insofar as the Cybercrime Division is concerned, *iyong Cybercrime Division*, Your Honor, and the team that *was—iyong binuo ni former Director Judge—*

Senator-Judge Aquino. So, *kayo lang po?*

Mr. Lontoc. At that time, sir, *hindi ko na po alam ngayon kung sino iyong mga team na—kasi nalipat na po ako sa ibang region*, sir.

Senator-Judge Aquino. Okay. *Iyong tanong ko po kasi ay nakatukoy doon sa taong nakausap o sinasabing na-kontrata ni Vice President Sara Duterte para patayin yung Presidente, First Lady, at former Speaker. So, itinuloy niyo po ba iyong imbestigasyon para mahanap ang taong ito?*

Mr. Lontoc. Well, aside from the fact, Your Honor, *na nag-issue kami ng subpoena sa Vice President para makakuha ng information, kasi we need a validated information, we need a confirmed information, noong inisyuhan namin ng subpoena iyong mga media personalities bawat isa sa kanila na nag-appear, tinanong din po namin—Nandoon ka ba noong sinabi ito ng Bise Presidente?*

Senator-Judge Aquino. *Hindi ko po itinatanong kung sinabi ba ito o hindi dahil may witness din po tayo noong nakaraang linggo na nagsabing nasabi nga ito at napanood naman nating lahat.*

Mr. Lontoc. *Opo.*

Senator-Judge Aquino. *Ang tanong ko, itinuloy ninyo ba iyong imbestigasyon para matukoy ang taong ito?*

Mr. Lontoc. *Nagtanong kami, Your Honor. We tried to elicit information both from those people who have personal knowledge during the online press conference. Unfortunately, wala kaming ma-establish na validated information, na confirmed. So, in fact, hanggang ngayon, nag-aantay po kami. Hindi ho katulad dito, sa nangyari, may apparent commission of the crime dahil nariyan iyong video.*

Senator-Judge Aquino. Okay. So, *ang ibig ninyo pong sabihin, bilang NBI, hindi ninyo nahanap ang taong ito, pero literal ninyo itong—ang sabi ninyo, literal itong pag-assess ninyo roon sa statement dahil ito mismo iyong nasabi ng Vice President.*

Mr. Lontoc. Well, Your Honor, if the second highest official of the land *sinabi iyan, hindi ho biro iyan, medyo mabigat iyan, ang yung pagkasabi pa niya may kasamang galit at mga pagmumura*, so we took it very seriously, Your Honor.

Senator-Judge Aquino. I have a question for the defense.

Sa lahat ng mga sagot ninyo, Attorney Vinluan, parang hindi ko nakita na tinanggi ng inyong kliyente o ng depensa na may nakausap ang Bise Presidente na tao para gawin iyong mga bagay na ito. Tama ba? Wala ito sa mga sagot ninyo?

Mr. Vinluan. We deny that, Your Honor.

Senator-Judge Aquino. You deny it?

Mr. Vinluan. That was not accurate, Your Honor, and we will present evidence, counter evidence.

Senator-Judge Aquino. Okay. So, let me clarify.

Sa lahat ng sagot ninyo so far, hindi pa ninyo itinatanggi ito, pero in your time presenting evidence, you will deny that there was a person contracted by the Vice President.

Mr. Vinluan. Your Honor, to clarify, I don't understand, Your Honor, when we were asked, but—

Senator-Judge Aquino. In your answer. You have an answer. There is an impeachment complaint—

Mr. Vinluan. We denied it, Your Honor. We denied it in our Answer which we filed before the Senate Impeachment Court.

Senator-Judge Aquino. Okay. You denied it in your Answer?

Mr. Vinluan. Correct, Your Honor.

Senator-Judge Aquino. If I remember correctly, *ang nabanggit doon ay* freedom of expression. Was there an exact statement there *na hindi totoo na meron ngang kinontrata o kinausap ang Bise Presidente para gawin ito?*

Mr. Vinluan. We maintain our position that we denied it, Your Honor, if there is in our Answer.

Senator-Judge Aquino. Okay. Mr. Presiding Officer, I don't want to take up time, but I do want to check the official records and look for this because I don't remember seeing that in any of your answers.

Mr. Vinluan. Your Honor, all allegations were denied.

Senator-Judge Aquino. It's a general denial, a blanket denial.

Mr. Vinluan. That was the general denial, and there were also specific denials.

Senator-Judge Aquino. Okay. We'll take a look, Mr. Presiding Officer. *Hahanapin natin ito.* And if I may come back to this once we take a look at the records, Mr. Presiding Officer.

The Presiding Officer. The gentleman may do so at the appropriate time.

With the permission of Senator-Judge Erwin Tulfo, since *nakatayo na po si* Senator-Judge Ejercito, *papaunahin ko na po muna siya.*

Senator-Judge Ejercito is recognized. You have two minutes, sir.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE EJERCITO

Senator-Judge Ejercito. Thank you, Mr. Presiding Officer.

Tanong ko lang, just to clarify, may we know if the NBI has the authority to issue subpoena against impeachable officials? *Kasi kanina po, sa mga pinresent kanina,* subpoena *po ang inyong ipinadala sa* Vice President, instead of a mere invitation. *I-clarify ko lang po.*

Mr. Lontoc. Yes, Your Honor. Under Republic Act 10867, the NBI has the authority to issue a subpoena. As a matter of fact, the case involving the Vice President falls under Section 5, paragraph G, which the NBI has primary jurisdiction to undertake investigation, Your Honor.

Senator-Judge Ejercito. Likewise, for the information of everyone, may we know what constitutes a grave threat that will prompt the NBI to conduct an investigation as compared to a light threat? What are the elements that are needed to be present to be considered a grave threat?

Mr. Lontoc. Well, for grave threat, Your Honor—*kung maalala ko siya*—if a person threatens another person with the infliction upon the latter's person, property, or honor, or that of the latter's family, with a wrong, or with any wrong, amounting to a crime, if that threat is with condition or

without condition, or with monetary consideration, *iyon po*, Your Honor, *iyong kabuuan sa* grave threat.

Senator-Judge Ejercito. So, *iyong* grave threat po ay may condition, or *walang* condition?

Mr. Lontoc. The crime of grave threat, Your Honor, can be committed with or without condition.

Senator-Judge Ejercito. So, as an investigator, have you ever investigated and filed a complaint for grave threats apart from this one?

Mr. Lontoc. Again, Your Honor?

Senator-Judge Ejercito. As an investigator, have you filed any case or investigated and filed a case for grave threats against anyone, aside from this, excluding this one?

Mr. Lontoc. I think, May, *nag-start po kasi ako* as counterterrorism, and then organized crime group, and then cybercrime—*wala akong maalala*, Your Honor, *kundi ito lang*. I mean, insofar as my being in the NBI is concerned, Your Honor.

Senator-Judge Ejercito. So, *ito pa lamang ang kaso na naimbestigahan ninyo* concerning grave threats.

Mr. Lontoc. I think *iyong iba may mga naimbestigahan*, Your Honor, *pero* again, *sabi ko, iyong sa sarili ko po, iyong experience ko* from counterterrorism *hanggang sa* organized transnational crime group *hanggang sa* cybercrime division, *ang naalala ko lang*, Your Honor, *kasi matagal na po iyon, kung ano ang nasa record*, I think *itong* grave threats *na ito is, kapag hindi* first time, *doon ko lang na-experience*.

Senator-Judge Ejercito. *At gaano katagal kayong parte nitong cybercrime division bago kayo nalipat?*

Mr. Lontoc. Since 2018, Your Honor. *Nagsimula ho ako bilang investigation agent*. And then, in 2022, I was designated as Chief of the Digital Forensics Laboratory Division, and in 2023, designated as Chief of the Cybercrime Division.

Senator-Judge Ejercito. So more than five years *kayong nandito sa Cybercrime Division ng NBI?*

Mr. Lotoc. *Opo*.

Senator-Judge Ejercito. That is all, Mr. Presiding Officer. Thank you.

The Presiding Officer. Thank you, Senator-Judge Ejercito.

Senator-Judge Tulfo, Erwin is recognized. You have two minutes, Sir.

You may proceed when you're ready.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Officer. I would like to direct my clarificatory question to the witness on the stand, Mr. Presiding Officer.

Atty. Jeremy Lotoc.

Mr. Lotoc. *Opo*, Your Honor.

Senator-Judge Tulfo (E). What findings, if any, convinced the NBI of the motive of the Respondent to kill the President and the two other people? *Mayroon po ba kayong nakitang motibo? Kasi, maaari pong sabihin lang ng isang tao, sa sobrang galit niya, napag-usapan na po kanina iyan, 'di ba—spur of the moment. Pero, did you find any motive? Bakit niya po gagawing patayin ang Pangulo?*

Mr. Lotoc. Yes, Your Honor. As I've said before, *noong*—when we take into consideration all the facts and circumstances surrounding that issue, *nagkaroon ng hindi magandang relasyon iyong dalawa*. And then, *nagbato na ang Bise Presidente ng mga salitang mabibigat laban sa*

Presidente. Pinapakita doon sa October 18 na toxic na nga iyong relationship nila. Galit na galit si Sara dahil sinasabi ng Bise Presidente is politically motivated iyong pag-attack sa kaniya, and then at the same time, pinagtutulungan siya ng buong gobyerno. So, then na-trigger ho iyon, if my memory serves me right, noong incident na nangyari noong 23 November 2023—ah, 2024. So, parang nagpatong-patong na ho siya. Convolution ng iba't ibang issue. So, nakita ho namin, talagang galit ho ang Bise Presidente sa Presidente.

Senator-Judge Tulfo (E). Okay. So, you saw that the Vice President is very angry, right? *Galit po siya.* Did the investigation uncover any evidence, if there's any, that the Respondent had taken steps to carry out these threats or these statements that she made in public or online? Did you have or did you uncover any evidence?

Mr. Lotoc. Your Honor, insofar as the Cybercrime Division is concerned, we focus on the investigation on the alleged Grave Threats and Inciting to Sedition. *Ngayon, pagdating doon nang whether or not mayroong na-execute na o may inutusan, I think ang makakasagot po niyan, Your Honor, iyong—iyong aming Director, kasi sa kanya po iyong pool ng information. Pero at the same time, iyong—iyong jurisdiction ho na iyan nasa Intelligence Service po namin. Kami ho nasa, nasa Investigation Service.* So, insofar as the NBI Cybercrime Division is concerned, at that time, *naka-focus ho kami sa Grave Threats and Inciting to Sedition. Pero,* insofar as whether *mayroon na bang na-engage ang Bise Presidente, jurisdiction ho iyan ng aming Intelligence Service.* But maybe *ang makakasagot niyan, iyong aming Director, kasi siya po iyong recipient ng pool of information from different divisions and regions.*

Senator-Judge Tulfo (E). You mean, Inciting to Sedition will be answered by the Director, is that correct? *Kasi parang hindi po natalakay kanina iyong Inciting to Sedition, is it?*

Mr. Lotoc. Well, Your Honor, Inciting to Sedition in our investigation, we were able to establish that those utterances—from 18 October 2024, November 23, 2024, and other facts and circumstances, even the November 26, 2024, we believed that those utterances have tendency, Your Honor, to stir up the people, to go against the government, have a tendency to disturb the peace of the community, and have a tendency to undermine public safety and public order. I think that's the elements of Inciting to Sedition, Your Honor.

Senator-Judge Tulfo (E). I have last two questions, Mr. Presiding Officer.

The Presiding Officer. Please proceed.

Senator-Judge Tulfo (E). So, you're saying they're intertwined—killing the President and then inciting the people to revolt against the government. They're intertwined. So, what are you saying?

Mr. Lotoc. Based on our findings, Your Honor.

Senator-Judge Tulfo (E). Based on your findings. And what could be the motive of the Vice President inciting people to sedition, to revolt against the government when in fact she will be the next President of the Republic? She's been saying—and everybody knows, and she's been claiming. What do you think? I mean, did you look deeper why incite to sedition? I mean, when in fact, you're the Vice President. Usually in our country, usually, Mr. Witness, the Vice President would run for presidency. What could be the motive?

Mr. Lotoc. Well, Your Honor, what we have established is the fact that the relationship between the two were already hostile. And what we established is the fact that the Vice President has committed Grave Threats and Inciting to Sedition. *Iyon ho iyong focus namin, Your Honor. Insofar as iyong mas malalim pa na motibo, wala ho akong personal knowledge, Your Honor.*

Senator-Judge Tulfo (E). All right. Well, I'm running out of time. Can you identify the strongest piece of evidence which you relied in deciding to file these cases before the Department of Justice, and what is the status of this case, Mr. Witness?

Mr. Lotoc. Well, Your Honor, the pieces of evidence that we attached or we incorporated in our investigation is sufficient and has satisfied the requirements of the quantum of evidence required, which is *Prima Facie* Evidence with Reasonable Certainty of Conviction. And the fact, Your Honor, that the Department of Justice has issued certification stating that your referral, your transmittal, has complied with all the elements of the crime charged, and therefore, is good for preliminary investigation.

Senator-Judge Tulfo (E). What is the status of the case, Mr. Witness?

Mr. Lotoc. It's ongoing, Your Honor, *kung tama ang naaalala ko*. It's ongoing, Your Honor.

Senator-Judge Tulfo (E). One very, very quick question, Mr. Presiding Officer.

The Presiding Officer. Kindly wind up Senator-Judge Tulfo (E).

Senator-Judge Tulfo (E). Do you think at this point you have an airtight case against the Respondent?

Mr. Lotoc. I believe so. Yes, Your Honor. Otherwise, the Department of Justice would not issue a certification stating to the effect *na kumpleto iyong elements namin, na nakuha namin iyong requirement at ready na siya* for preliminary investigation.

Senator-Judge Tulfo (E). Thank you, Mr. Witness.

Thank you, Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Tulfo.

Senator-Judge Hontiveros, Senator-Judge Villanueva, and thereafter, we pause for a 10-minute break.

You may proceed, Ma'am. You have two minutes.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat*, Mr. Presiding Officer.

Attorney Lotoc.

Mr. Lotoc. *Opo*. Yes, Your Honor.

Senator-Judge Hontiveros. *Sa Affidavit of Investigation, dated February 10, 2025, nirekomenda ng NBI na sampahan ng mga kasong Grave Threats at Inciting to Sedition ang Vice Presidente. Puwede po bang idahilan sa mga kasong iyan na nadala lang ng emosyon or may matinding trigger kaya nakapag-sambit ng ganoon?*

Mr. Lotoc. I don't think so, Your Honor, *kasi wala naman ho sa elements noong Grave Threats iyong situation na iyon*. As long as we were able to satisfy the elements for Grave Threats, Your Honor, and when the Department of Justice certifies *na kumpleto iyong elemento doon*. So, no, Your Honor, *hindi ho iyan magma-matter doon sa findings namin*.

Senator-Judge Hontiveros. *At iyong sinabi po ninyong elements of Grave Threats, iyon po iyong apat na in-enumerate niyo kanina? Ano pong elements of Grave Threats?*

Mr. Lotoc. Yes, Your Honor. Number one, that a person threatened to inflict another person, upon the latter's person, honor, or property, or that of the latter's family with any wrong. That's the first element. The second element, that wrong amounts to a crime. Then, the third element is *iyong may demand for money or may condition na inimpose*.

In our investigation, *mayroon pong tatlong acts para ma-commit iyong Grave Threats. Base roon sa tatlong elements na sinabi ko*, the offender had complied with the threat *na sinabi niya*, the offender *hindi niya na-comply iyong threat na sinabi niya*, or *iyong pangatlong act, walang kondisyon iyong threat na 'yon*, Your Honor.

Senator-Judge Hontiveros. *Mga dalawang beses niyo pong binanggit iyong salitang "condition," Attorney Lotoc, itatanong ko iyan, mamaya-maya.*

Sa DOJ po, sa DOJ naman, may criteria ng Reasonable Certainty of Conviction bago magsampa ng kaso.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Hontiveros. Yes, Attorney.

Mr. Lotoc. *Opo*.

Senator-Judge Hontiveros. *Sa NBI, ano naman po ang pamantayang sinusundan ninyo bago magrekomenda ng kaso?*

Mr. Lotoc. Well, sinusunod din po namin iyong quantum of evidence na *Prima Facie* Evidence with Reasonable Certainty of Conviction. Kaya po, kung makikita ninyo, iyon pong aming processes o iyong phases, iyong pang-last two niya is legal evaluation. Meaning, kung mayroon na po kaming conclusion bago po namin ito i-submit sa Department of Justice, mayroon pong referral kaming ginagawa sa legal division or nagpapatulong kami sa aming mga legal expert. So, sila po ngayon iyong nag-e-evaluate, sila ang magku-qualify kung na-satisfy na iyong requirements, at kung puwede na siyang i-submit sa Department of Justice for purposes of preliminary investigation, Ma'am.

Senator-Judge Hontiveros. All right. *Salamat, Attorney.*

So, kahit papaano, ina-approximate ninyo iyong criteria na sinusundan ng DOJ, kahit bilang NBI.

Mr. Lotoc. Yes, Your Honor. That is on the basis of our cherished principle, the Two-Pillar Rule in investigation: thoroughness and legality, Your Honor.

Senator-Judge Hontiveros. All right. *Salamat po.*

Eto, in principle, kailangan po ba ng patunay na may kinontratang assassin para maituring na Grave Threats ang mga sinabi?

Mr. Lotoc. Well, Your Honor, insofar as the crime of Grave Threat is concerned, hindi po iyon kailangan.

Senator-Judge Hontiveros. All right.

Speaking of condition kanina na binanggit ninyo, dalawang beses, posible po ba ang Grave Threats kahit may kondisyon ang banta—ibig sabihin iyong kapag ito nangyari sa akin, ito ay mga gawin mo. Kahit may kondisyon iyong banta, posible po ba ang Grave Threats?

Mr. Lotoc. Very much possible, Your Honor. As I have said, Grave Threats can be committed with or without condition. And as a matter of fact, mayroon akong naalalang isang case, *SPO2 Jamaca v. Atty. Bangot*, ang sabi po roon ni SPO2 Jamaca, "If I lose my job, I will break your head or I will—."

So, for us, it is kind of event-based condition na mati-trigger iyong execution ng threat 'pag nangyayari iyong event. But then when the Supreme Court decided, nag-decide ang Supreme Court at ang sabi niya, "The threat was absolute."

Senator-Judge Hontiveros. Sorry, ang sinabi ng SC noon?

Mr. Lotoc. Absolute iyong threat, Your Honor, hindi conditional.

Senator-Judge Hontiveros. Okay.

Mr. Lotoc. So, parang ganito, akin sa situation dito, mayroon siyang sort of event-based condition na 'pag nangyari iyong event, mati-trigger ngayon iyong threat na in-utter ng offender, Your Honor.

Senator-Judge Hontiveros. So, masasabi pong may jurisprudence po dahil may nakikita kayong paghahalintulad doon sa kasong ni-rule ng SC kaugnay ni PO2 Jamaca at itong kay Vice President.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Hontiveros. All right. Huling tanong na lang po, Attorney Lotoc.

Bilang abogado po, as a general rule, kailan po masasabing lampas sa free speech ang pananalita at nagiging Grave Threats o Inciting to Sedition na?

Mr. Lotoc. Well, we consider the two tests. Number one, iyong—hindi ko mabigkas, Your Honor, but it is like, ano bang Tendency Rule? if I may, Your Honor, just to refer to my notes.

Senator-Judge Hontiveros. May he, Presiding Officer?

The Presiding Officer. Kindly turn on the mic. Witness may do so, yes.

Mr. Lotoc. Thank you po, Your Honor.

Yes. We consider, Your Honor, the Clear and Present Danger Rule, and the Dangerous Tendency Rule. But among the two, *ang nakita po namin, iyon* the Dangerous Tendency Rule. Meaning, if the speech would have the tendency to create chaos or to create illegal acts, then that should be restricted, *kapag may tendency po na [na]-magiging ganoon ang resulta.*

Senator-Judge Hontiveros. *Huli po, Attorney. Masasabi bang may parang spectrum, puwedeng nagsisimula sa free speech, pero 'pag lumalapit na roon sa Dangerous Tendency Rule ay maaari na talagang tumawid sa magiging Grave Threats o Inciting to Sedition iyon?*

Mr. Lotoc. Yes, Your Honor, *puwede po iyon.*

Senator-Judge Hontiveros. All right. *Maraming salamat po, Attorney Lotoc.*

Salamat po, Mr. Presiding Officer.

The Presiding Officer. Thank you, noted and entered into the *Record.*

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE VILLANUEVA

Senator-Judge Villanueva. Mr. Presiding Officer.

The Presiding Officer. Senator-Judge Villanueva, you have two minutes, Sir. You may proceed.

Senator-Judge Villanueva. Thank you, Mr. Senate President, Presiding Officer. Just a few questions to our witness.

Mr. Witness, it's been mentioned several times the importance of your investigation, that it falls under *iyong Prima Facie* Evidence, with Reasonable Certainty of Conviction. And *nabanggit niyo po, na-fulfill po lahat iyan, kaya po siguro nagkaroon ng* First Report at Second Report. Is that correct?

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Villanueva. Can you just, for the record, give us an idea, *ano iyon* boxes that you have to fill in *para pumasok po rito?*

Mr. Lotoc. You mean, Your Honor, *iyong* comment ng Department of Justice *doon sa* first affidavit *namin?*

Senator-Judge Villanueva. Yes, to make it clear *na* it indeed goes *dito sa—pumapasok siya doon sa Prima Facie* Evidence with Reasonable Certainty of Conviction.

Mr. Lotoc. Well, basically, Your Honor, *iyong* requirements *na binigay ng* DOJ from our point of view, were administrative requirements. *Hindi po iyon ang sustansya noong aming affidavit kasi hindi po namin binago iyon affidavit namin, iyon pa rin po iyon. Ang nakita po ng* DOJ *doon, iyon affidavit ng, I think authentication na kailangan i-attach doon, and others, iyon* TSN, Affidavit of Transcription. This is, from our point of view, to satisfy the requirements of admissibility.

But insofar as the substance *noong aming* affidavit, Your Honor, *hindi namin binago iyon, iyon pangalawang* submit *namin.*

Senator-Judge Villanueva. So, it did not change. That is part of your fourth stage, *iyong* legal evaluation.

In that stage, legal evaluation, was it considered, Mr. Witness, *iyong binabanggit ni* Vice President, and even the Defense Panel, *na* it is actually a Conditional Threat. And it appears that the Vice President, during the presentation of the video, is also getting threats. What can you say about that?

Mr. Lotoc. Well, insofar as the threat against the life of the Vice President, the very reason why we issued subpoena and we sent a letter, for us to have the chance to talk to the Vice President

and elicit some information, *baka meron siyang maibigay na lead na pagsisimulan namin. Unfortunately, hindi po siya nagpakita ng dalawang beses at wala po siyang ipinadalang representative para magbigay ng info. Kahit info lang na maba-validate namin, then mati-trigger po iyong aming—*

Senator-Judge Villanueva. What part of your investigation? Did you pursue that, if indeed, there is a threat to the Vice President?

Mr. Lotoc. Yes, Your Honor. We checked the list of open sources. *Nagtanong din kami. But, again, insofar as the Cybercrime Division is concerned, limited po kami roon, Your Honor.*

Sa cases na may cyber aspect, siguro ang makakasagot po niyan, iyong aming Intelligence Service. Sila po ang ang may hawak diyan sa mga issue na iyan kasi sila po iyong recipient ng mga information from different assets.

Senator-Judge Villanueva. But do you think it is important, if it is a Conditional Threat, it is also important to look at this aspect?

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Villanueva. Thank you.

Now, Mr. Witness, *gusto ko lang maintindihan din iyong standard na ginagamit ng National Bureau of Investigation. Kung hindi po ma-identify o ma-locate ang sinasabing “assassin,” does that automatically mean that the threat is no longer credible or actionable, or does the NBI still consider the statements uttered and the surrounding circumstances and the totality of the evidence before deciding to proceed with further investigation?*

Mr. Lotoc. No, Your Honor. The threat was absolute. We follow the test of *mens rea*, Your Honor, and considering whether the threat is *totoo*. *Una*, we examine the utterances objectively, and we interpret the same in light of the circumstances where the utterances was made, the manner in which they were spoken, the person to whom they were addressed, the relationship between the parties, and the reactions of the recipients of those utterances, Your Honor.

Senator-Judge Villanueva. Yes, thank you, Mr. Witness.

I have here with me *iyong binanggit po ninyo sa notes ko, iyong four stages: identification and pag-preserve ng digital evidence, collection of evidence, analysis and attribution, legal evaluation, and then you have the three statements. Binanggit ninyo rin, “tanggalin ulo niya,” “toxic relationship,” and “I always see myself cutting his head.”*

Now, you also mentioned the factors considered: delivery manner, literal meaning, nature of the instruction, relationship of the parties, and last but not the least, *iyong utterances na binanggit ninyo doon sa October 18 and November 23.*

Last question, Director Lotoc. *Bukod po doon sa authentication ng recordings, maaari ninyo po ba sa amin ipaliwanag kung ano po iyong mga naging batayan ng NBI sa pag-assess sa mga pahayag ng respondent? Halimbawa po, binabanggit po ninyo iyong kakaibang bagay na nangyari dito sapagkat ang binabanggit ninyo pong nagbibigay ng statement ay—doon sa nakita nating video—no other than our Vice President, no?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Villanueva. So, did her position, her access, or authority *nakaapekto* po doon sa how your investigation was conducted?

Mr. Lotoc. Yes, Your Honor. As I have said a while ago, during the direct examination, in the analysis phase, we considered the intent, the capability, and the motive, Your Honor. *Kasama po iyon. Kinonsider po namin. The fact that she is the second-highest official of the land, and definitely she’s capable of doing so, and then there is that motive in the sense na may mga issues na sila, galit na ang Bise Presidente, then na-trigger dito sa November 23.*

Senator-Judge Villanueva. And you would say it’s not usual, the usual?

Mr. Lotoc. It’s not the usual.

Senator-Judge Villanueva. Thank you, Mr. Witness. Thank you, Mr. Presiding Officer.

POINT OF ORDER OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino raised a point of order, stating that he had earlier asked the defense to identify the specific portion of its pleading stating that the Vice President had not approached any person to carry out the alleged act. He then inquired whether the matter could instead be taken up after the break. Presiding Officer Escudero asked whether the point referred to his earlier inquiry, to which Senator-Judge Aquino replied in the affirmative.

ANNOUNCEMENT OF THE PRESIDING OFFICER

The Presiding Officer informed the Members that, after the remaining senator-judges had been given the opportunity to ask their questions, the Court would suspend the proceedings for a 15-minute break and resume at 5:00 p.m. He further announced that, upon resumption, the Chair would recognize the senator-judges for their questions in the following order, Senator-Judge Tulfo, Senate President Gatchalian, Senator-Judge Cayetano (A), and Senator-Judge Marcos.

SUSPENSION OF SESSION

With the permission of the Body, the session was suspended.

It was 4:44 p.m.

RESUMPTION OF TRIAL

At 5:02 p.m., the trial was resumed.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero directed the Clerk of Court to ensure that witnesses are already at the witness stand at their designated time and instructed the Sergeant-at-Arms to promptly escort witnesses to the stand following a recess.

Thereupon, Attorney Lotoc then resumed his testimony under the same oath.

QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Thank you, Mr. Presiding Officer.

Mr. Witness, do you consider yourself as an expert when it comes to threat assessment?

Mr. Lotoc. Threat assessment, Your Honor?

Senator-Judge Tulfo (R). Yes.

Mr. Lotoc. An experienced investigator, Your Honor.

Senator-Judge Tulfo (R). There's a difference between an investigator as opposed to threat assessor. Somebody who will assess a threat being given against a person or individual. *Kasama diyan, halimbawa, mag-iimbestiga ka, magtatanong ka sa mga testigo, magtatanong ka sa mga taong nakarinig tungkol doon sa banta, titingnan mo iyong security detail niya, kung saan siya nakatira, et cetera, et cetera.*

Mr. Lotoc. Yes, your Honor, just an experienced investigator, Your Honor.

Senator-Judge Tulfo (R). As an experienced investigator.

Mr. Lotoc. *Opo.*

Senator-Judge Tulfo (R). So, *sa ginawa mong pag-iimbestiga*, whether or not *merong imminent threat* against the Vice President, *sino-sino po iyong mga naimbita ninyo at na-interview.*

Mr. Lotoc. *Iyong media personalities po, Your Honor, from the late Asa...Reyes, Bonz Magsambol to others, lahat po sila tinanong namin kung kilala nila iyong kinausap ni VP Sara iyong taong kinontrata, lahat po sila nagsabi na hindi nila kilala at wala silang alam doon.*

Senator-Judge Tulfo (R). Did you also invite Princess Maui, *iyong influencer na nagtanong kay VP Sara doon sa online press conference?*

Mr. Lotoc. I believe so, Your Honor. I asked the executive officers back then *at ang sabi nila sa akin, hindi ho nag-appear...*

Senator-Judge Tulfo (R). So, you invited her, but she failed to appear.

Mr. Lotoc. Yes, Your Honor. *Iyon po iyong report sa akin ng aking mga executive officer.*

Senator-Judge Tulfo (R). Okay. So, *masasabi ninyo ba na talagang mayroong imminent threat, real and imminent threat against the life of the Vice President based on the investigation you conducted?*

Mr. Lotoc. Against the life of the Vice President, Sir?

Senator-Judge Tulfo (R). Yes, the Vice President. *Kasi, siyempre, kapag nag-imbestiga sa Presidente, dapat imbestigahan mo rin iyong threat against the Vice President para patas.*

Mr. Lotoc. Yes *po*. Precisely, the reason *po*, Your Honor, *kung bakit namin inimbitahan ang Bise Presidente, may separate ho kami na sulat noong December 2, in-inform po namin siya na, "Ma'am, iniimbestigahan din ho naming iyong alleged threat against sa life mo at para ho ma-expedite ito, bigyan ninyo po kami ng any information na pwedeng maging lead doon sa investigation namin. And, unfortunately, wala ho kaming na-receive na information, hindi naman po kasi nag-appear ang Vice President, Your Honor.*

Senator-Judge Tulfo (R). *Pero nagpadala siya ng representative to represent her doon sa subpoena ninyo na pinadala sa kanya?*

Mr. Lotoc. *Nagpadala po siya ng representative and then with a letter, Sir. In fact, dalawang beses po iyong letter na iyon. Iyong unang letter niya, ang sabi niya hindi siya makaka-attend kasi nga meron siyang office matters to attend to.*

Senator-Judge Tulfo (R). Yeah, sorry to cut you off, *napakinggan na natin iyan. Para mapaiksi tayo. So, sino iyong representative na pinadala niya at ano ang napag-usapan ng NBI investigator at saka ng representative ni VP Sara?*

Mr. Lotoc. I think it's Atty. Paul Lawrence Lim, *kung hindi ako nagkakamali. Ang kumausap sa kanya ay iyong dating Director Jaime Santiago.*

Senator-Judge Tulfo (R). What was discussed during that meeting between Attorney—*anong pangalan ulit?*

Mr. Lotoc. Lawrence Lim *po*.

Senator-Judge Tulfo (R). Atty. Lawrence Lim and the people from the NBI, particularly the investigators investigating the threat against the Vice President?

Mr. Lotoc. *Iyon nga, pinapaliwanag lang ho ng abogado, Your Honor, iyong laman ng letter kung bakit hindi makakapunta iyong Bise President. And in fact, doon sa pangalawang letter, may sinasabi ang abogado na six years ago, may threat ang Bise Presidente, so, hopefully confident ang Bise Presidente, maiimbestigahan din iyong issue na iyon.*

Senator-Judge Tulfo (R). So, six years ago, *pero hindi ninyo ba...*

Mr. Lotoc. Six months, six months *yata*, Your Honor, five to six months.

Senator-Judge Tulfo (R). All right, *sinabi ng representative ni VP Sara, six months ago, there was a threat against the life of the Vice President.*

Mr. Lotoc. *Iyon po iyong nasa letter.*

Senator-Judge Tulfo (R). *Inusisa ninyo ba kung ano iyong threat na pinagsasabi niya?*

Mr. Lotoc. *Nag-conduct ho kami, Your Honor, ng open source, kailangan ko hong ma-validate, Sir, na aside doon sa pag-aalis ng 75 personnel na security personnel from BP-SPG dahil*

inilipat sa Manila, wala ho kaming na-validate o na-confirm. Your Honor, insofar as the Cybercrime Division is concerned, pero hindi ko po alam, baka iyong intelligence service namin mayroon o kaya iyong director may alam.

Senator-Judge Tulfo (R). Last na lamang, Mr. Witness, kasi sabi mo, uulitin ko doon sa six months ago, na-receive iyong threat against VP, sabi mo kanina, sabi ng abogado, right? So, kung ako sa iyo, if I was the investigator, I would say, "Okay, ano iyong threat six months ago? Puwede ka bang magpakita ng ebidensiya, puwede ka bang magpakita ng proof or mga witnesses na puwedeng ma-interview to that effect?"

Mr. Lotoc. Your Honor, ang nag-usap po, si then-Director Jaime D. Santiago at saka iyong lawyers, Your Honor.

Senator-Judge Tulfo (R). So, okay. Last na lamang po.

Now, can you say in certainty na talagang wala o meron threat against the life of the Vice President?

Mr. Lotoc. I cannot...

Senator-Judge Tulfo (R). Based on your investigation, based on your experience.

Mr. Lotoc. Well, given na wala hong kaming validated information at confirmed any data hindi po ako makakapag-comment, Your Honor, kailangan ko po iyon.

Senator-Judge Tulfo (R). Thank you, Mr. Witness.

QUESTIONS OF SENATOR-JUDGE GATCHALIAN

Senator-Judge Gatchalian. Thank you; thank you, Mr. Presiding Officer.

Mr. Witness, narinig ko kanina, noong tinatanong kayo ng prosecution na iyong statements ni Atty. Zuleika Lopez ay walang kinalaman doon sa threat na ginawa ng Vice President. Tama po ba?

Mr. Lotoc. Kinonsider namin siya doon sa totality noong aming investigation. Then nakita namin na, even before noong situation ni Attorney Zuleika, base doon sa appearance ng Bise Presidente, meron na ho siyang kinausap. So—

Senator-Judge Gatchalian. Iyan ang next na tanong ko. Ibig ninyo bang sabihin na even prior to this video, meron na siyang nakausap na kinontrata?

Mr. Lotoc. That is the utterances, Your Honor. Ang sabi niya, "Huwag kang mag-alala, ma'am, sapagkat may kinausap na akong tao. Ang sabi ko sa kaniya kapag namatay ako, patayin mo si BBM, si Liza Marcos, si Former Speaker."

So, nakita namin may kinausap na siya even before the press conference was held on November 23, 2024.

Senator-Judge Gatchalian. So, base sa kaniyang statements, sa inyong pag-analitika, meron na siyang nakausap na kinontrata?

Mr. Lotoc. Yes, Your Honor, and we believe na hindi naman ho magsisinungaling ang Bise Presidente noon, kasi galit na galit nga po siya.

Senator-Judge Gatchalian. And yet, meron dito sa mga tanong ng counsel ng prosecution na iyong mga term na ginamit niyo, "serious and real threat", tapos meron din kayong sinabi na "serious and threat is actionable", nasabi niyo iyon over the course ng mga pagtatanong.

Mr. Lotoc. Threat is actionable, I don't remember, Your Honor using the word threat, actionable threat.

Senator-Judge Gatchalian. Threat is actual, sorry. Threat is actual.

Mr. Lotoc. Opo.

Senator-Judge Gatchalian. So I take this to mean na meron talaga siyang kausap na kinontrata.

Mr. Lotoc. That's what we believe, Your Honor, Sir.

Senator-Judge Gatchalian. *Kung iyan ang paniniwala nyo, dahil ito ay pagbanta sa ating Pangulo, may ginawa ba ang NBI na imbestigahan kung talaga bang merong nakontratang gagawa nitong banta?*

Mr. Lotoc. Yeah, I think, a couple of months ago, *may binuo ho ang aming director. Nagbuo siya ng task force to investigate the threat against the life of the President kaya lang hindi na ho ako part noon, Your Honor, July 2025, nalipat na ho ako sa ibang region, so wala na po akong idea. I think iyong intelligence service namin at iyong director din ho iyong puwedeng makasagot, Your Honor.*

Senator-Judge Gatchalian. Actually, *iyon ang next na tanong ko, dahil tayo dito sa ating bansa, sanay tayo sa whole-of-government approach, whole-of- nation approach, dapat merong whole-of-agency approach. In this case, the NBI.*

Ang tanong ko, meron ba kayo mismo o kasama ba kayo mismo doon sa pag-iimbestiga noong actual na threat, iyong pagkontrata ng tao na puwedeng gawin iyong pag-threat na ito?

Mr. Lotoc. I believe so, Your Honor. The fact *na mayroong binuong special task force and—*

Senator-Judge Gatchalian. *At kasali kayo doon?*

Mr. Lotoc. *Hindi po ako kasali, Your Honor.*

Senator-Judge Gatchalian. *Bakit hindi kayo kasali doon? Ako nagtataka. Dahil kung banta ito sa buhay ng ating pangulo at nanggaling sa opisina ninyo iyong source, dapat kasali kayo.*

Mr. Lotoc. You mean, Your Honor, *since nasa regional office ako noong nagbuo ng task force, definitely, ita-tap nila iyong mga regional offices. Na "Meron ba diyan sa region ninyo na information o intelligence na ganito?" Meron hong ganoong practice, Your Honor.*

Senator-Judge Gatchalian. *Pero kayo mismo, kasali ba kayo doon sa nag-imbestiga noong actual ha, iyong kinontratang tao, at meron bang nakitang ganoon?*

Mr. Lotoc. *Hindi ko ho masasagot iyan, Your Honor. Ang makakaalam po niyan, iyong aming intelligence service kasi nasa forte nila iyan at ang aming director.*

Senator-Judge Gatchalian. *At meron bang ginawang coordination? Kasi ito, pangulo, no less than our President. Meron bang ginawang coordination kayo o iyong binuong task force ng NBI kasama ang nag-coordinate sa NSC, nag-coordinate sa PSG, at sa iba pang mga national agencies? Dahil pangulo natin ito eh.*

Mr. Lotoc. *Opo.*

Senator-Judge Gatchalian. *Meron bang ganoon na ginawa kayo o iyong binuong task force?*

Mr. Lotoc. Well, insofar as the Cybercrime Division during that time, *ang focus ho namin is iyong investigation doon sa threat against the life vis-à-vis iyong November 23, 2024 utterances. Now, in so far doon sa sinasabi niyo po roon, ang makakasagot po niyan iyong intelligence service po namin kasi ano na po iyan, para siyang deep dive intelligence gathering na po iyon.*

Senator-Judge Gatchalian. *Ang punto ko lang naman is, sa ganitong napakahalagang banta, ine-expect ko sa NBI na meron silang whole of agency approach na kasama kayo dahil nanggaling doon—*

Mr. Lotoc. Yes, Your Honor. *Iyong binuo ho ng director na memo, nag-create siya ng task force, and then iyong task force, tina-tap po rian lahat ng regional offices. "Anong information meron kayo, ibato dito sa central office."*

Senator-Judge Gatchalian. *Anong resulta noon? Last question, Mr. Presiding Officer.*

Mr. Lotoc. Well, insofar as the NBI BARMM is concerned, *iyong hawak ko pong region, meron kaming ongoing investigation pero hindi ho related doon sa kausap ni Sara. Meron kaming iniimbestigahan na nag-threaten sa Presidente, as a matter of fact na-identify namin. So, ongoing pa siya, nag-aantay lang kami ng order galing sa taas kung ano iyong guidance, Sir.*

Senator-Judge Gatchalian. Thank you, Mr. President.

QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Mr. President, *susundan ko na iyang kay Senator Win, Senate President.*

Mr. Lotoc. Yes po, Your Honor.

Senator-Judge Cayetano (A). Yeah, good afternoon, Mr. Witness.

So, *dideretsuhin ko na.* So, what we're trying to figure out here *kasi* is, are you really investigating whether *may* threat kay VP Sara and whether she threatened the individuals mentioned including the President, or are you only investigating the video and finding *kung meron siyang* crime?

So, I asked Agent John Mark Calilung, *hindi daw niya kinausap ang PS, sabi ko PSG, pero PSC na sila ngayon, 'di ba?* Presidential Security Command.

Mr. Lotoc. *Opo.*

Senator-Judge Cayetano (A). So, did you speak to the Presidential Security Command about the threat on the president?

Mr. Lotoc. Your Honor, in terms of correspondence between the Presidential Security Command, at iyang NBI, *ang makakasagot po niyan iyang director, kasi hindi ko ho alam kung may usapan ho sila, meron ho kasi kaming tinatawag na "need to know basis," ang focus lang ho namin as—*

Senator-Judge Cayetano (A). The problem with your answers, Witness, is that *kung iyan ang sagot mo parati ay hindi mo inimestigahan nang husto.*

Mr. Lotoc. *Hindi ho ang—*

Senator-Judge Cayetano (A). *Kasi* you didn't get the information from your intelligence, you did not get your information from the task force, you did not get your information from the Presidential Security Group. Did you talk to the CIDG?

You may answer first. Did you talk to the CIDG?

Mr. Lotoc. No, Your Honor.

Senator-Judge Cayetano (A). No. But *nag-imestiga din sila, di ba?*

Mr. Lotoc. I think so, Your Honor, *kasi may statement sila.*

Senator-Judge Cayetano (A). *So, iyon din nga iyon tanong nga nung Senate President, eh. Kung iniimestigahan n'yo talaga iyang buo at kayo ang head at kayo dapat ang mag-imestiga, bakit hindi n'yo kinausap iyang mga ibang nag-imestiga? Baka may alam sila na hindi.*

Mr. Lotoc. *Iyang usapan po na 'yan, is a matter of intelligence. Hindi ko alam kung may usapan sila o kung wala silang usapan with the director, with the intelligence service, Your Honor.*

Senator-Judge Cayetano (A). I'll take that answer, but, I think, at least *alam n'yo iyang nasa isip namin* and what we want clarified.

Secondly, sir, all of you, *iyong apat*, you signed the February 10, 2025, NBI affidavit of investigation, *tama po ba, 'di ba?*

Mr. Lotoc. Yes, Your Honor, our affidavit of investigation.

Senator-Judge Cayetano (A). *Tapos kasama dito iyang verification niyo, basically saying that based on the records, tama itong lahat, no?*

Mr. Lotoc. Verification *ng ano po*, Your Honor?

Senator-Judge Cayetano (A). *Sa dulo, nag-sign kayo ng verification.*

Mr. Lotoc. Verification of non-forum shopping, Your Honor.

Senator-Judge Cayetano (A). Yes, and that, aside from that non-forum shopping—give me

some latitude to explain the question. "We read and understood its contents and the allegations therein are true based on authentic records."

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Cayetano (A). So, *may mali ba dito* factually? *Wala? Na-review mo naman ito ano?*

Mr. Lotoc. *May konting typo po diyan na—*

Senator-Judge Cayetano (A). *Hindi typo, factual.*

Mr. Lotoc. Insofar as I'm concerned, *lahat po—*

Senator-Judge Cayetano (A). *Sino po ba ang nag-prepare?*

Mr. Lotoc. Team po, *ang team po namin* with the—

Senator-Judge Cayetano (A). *Tapos pina-pirma sa inyo?*

Mr. Lotoc. *Hindi ho. Kami ho nagtulong-tulong mag-draft ng affidavit of investigation, kung ano iyong legal basis namin, and then we agree, and we concluded na ito iyon, ito iyon.*

Senator-Judge Cayetano (A). Then someone typed it up, then you signed? I ask this because *noong tinanong ko kay Agent Mark John Calilung, sabi niya, dito nakalagay "conditional," pero tingin niya "absolute." You answered the same thing, it's "absolute," pero dito nakalagay "conditional."*

Mr. Lotoc. The utterances itself, Your Honor, is what we call an event-based condition, *ang classification namin. Iyon ho ang utterances, Your Honor.*

Senator-Judge Cayetano (A). I'll take that answer. I think *mas factual iyon*. But, *sa paragraph 51, was VP Duterte ever Secretary of the Department of Justice?*

Mr. Lotoc. No, Your Honor, Department of Education.

Senator-Judge Cayetano (A). *Nakalagay dito. "To recall, VP Duterte resigned as the Secretary of the Department of Justice, and she herself admitted that her relationship with the President has become toxic, and she would imagine her strangling him and cutting off her head."*

Mr. Lotoc. That's a typo, Your Honor.

Senator-Judge Cayetano (A). That's not a typo. A typo means, *iyong "department" naging "depart."* The Department of Justice and Department of Education are two different things.

Mr. Lotoc. *Ang alam namin—*Sorry po.

Senator-Judge Cayetano (A). Yes.

Mr. Lotoc. Yes, Department of Education *ang alam po namin.*

Senator-Judge Cayetano (A). Yeah. So, *kasi, I just filed my counter-affidavit sa Ombudsman about iyong obstruction of justice. Ilang beses ko kailangan basahin. Kasi nga, pag may mali, pinirmahan iyon na sinasabi ninyo. But anyway, going back to the condition, you mentioned the case of SPO2 Jamaca?*

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). But isn't it true that the *lis mota* of that case was really *res judicata* and double jeopardy? Meaning, *hindi tinake* (take) up ng Supreme Court whether or not a condition.

Mr. Lotoc. Yes, Sir.

Senator-Judge Cayetano (A). *Hindi ba?*

Mr. Lotoc. *Opo.*

Senator-Judge Cayetano (A). So, that wasn't on point. *Kasi, I was going to ask: is there a difference if the condition is legal or illegal? So, halimbawa, pag sinabi ko sa iyo, "Pag natanggal*

akong Senate President, patatanggal din kita." Okay. *Unang-una, legal naman akong tanggalin na Senate President. We always vote. There is nothing there. But if illegal, o pag pinapatay mo ako, papapatay din kita.* Is there a difference if the condition of why I will act or why I'm threatening you is an illegal act?

Mr. Lotoc. Well, under the law, Your Honor, it says there that even the condition is unlawful. So, regardless of the nature of the condition, Sir.

Senator-Judge Cayetano (A). Yes, Sir. I want to get *lang* into your mind when you signed this because *nga medyo novel iyong case* for me. Even as a lawyer, I have to do more research and see *ano ang ibig sabihin nitong grave threats dito.* Because you keep mentioning—we keep mentioning here that this is the second-highest official in the land and therefore, *pag tinreten* (threaten) *niya ang Pangulo.* But who was the Vice President claiming *na puwedeng magpapatay sa kaniya?*

Mr. Lotoc. Again, Your Honor, *iyon po iyong reason bakit nag-issue kami ng subpoena.* Gusto po naming—

Senator-Judge Cayetano (A). *Sa reading ninyo noong statement niya, sino ang tinutukoy ng Pangulo na mukhang mag-o-operate sa kaniya ng Operation Romanov? Sino ang pinagbibintangan niya?*

Mr. Lotoc. Well, *una, kung ang pag-uusapan Romanov, Your Honor, ang alam namin na unang nagbigkas ng Romanov ay si Mayor Baste yata noong January 2024, other than—*

Senator-Judge Cayetano (A). Yes, that's irrelevant. *Ang question ko, in the mind of the Vice President, sinong pinagbibintangan niya na puwedeng magpapatay sa kaniya?* You said you investigated, so *mahaba na testimony ninyo ni Agent John Mark.* So, of course, *kasama sa investigation ninyo, sino sa mind ni Vice President magpapapatay sa kaniya?*

Mr. Lotoc. Well, again, Your Honor, *since wala kaming makuhang valid information—*

Senator-Judge Cayetano (A). No, *hindi ba klaro sa video na ang pinagbibintangan niya is the First Lady, the President, and the Speaker of the House? Ang sabi niya, "Pag pinatay ako, patayin mo silang tatlo."* So, *ang pinagbibintangan niya na magpapapatay sa kaniya, iyong tatlo.*

Mr. Lotoc. I cannot answer to that, Your Honor.

The Presiding Officer. Senator-Judge Alan, kindly wind up.

Senator-Judge Cayetano (A). But you have to be able to answer that because you're the one who investigated. And that is crucial. Why? Because part of your self-defense—so, for example, if I know *na* as a Senator-Judge, *pag hindi ako bumoto, one way or the other, papatayin ako ng whatever, Chief PNP, or papapatay ako ng whoever.* So, *pag sinabi kong, "Pag ako pinatay, si ganito napapatay sa akin,"* and then ang difference, I don't usually give a threat *na patayin mo rin.* So, could it be that actually that was the defense of the Vice President *para hindi siya patayin?*

Mr. Lotoc. I don't know the state of mind of the Vice President.

Senator-Judge Cayetano (A). But you testified all throughout this afternoon that you went into her state of mind.

Mr. Lotoc. Based on the series of events, Your Honor.

Senator-Judge Cayetano (A). Yes, and based on her statement. And the series of events is *nag-away sila ng administrasyon.* And the series of events is that *sinasabi niya, "Pag ako'y pinatay, eto tatlo ang papatayin niyo."*

Okay, last question. *Kay Attorney Lopez, tinanong din ito ng Senate President, or— ay, sorry, ni Senator Tulfo. Hindi ko na itatanong, pero napahapyawan ni Se mo, "Even before kasi nangyari iyon, nakausap na ni Vice President yung papatay."*

Mr. Lotoc. That's the literal meaning of the statement, Sir.
Senator-Judge Cayetano (A). Yes. That's the literal meaning. But did you believe her?

Mr. Lotoc. Well, she's the Vice President, Sir.

Senator-Judge Cayetano (A). She also said freedom of expression, so you also believe her?

Mr. Lotoc. Not based on the evidence that we gathered, Sir.

Senator-Judge Cayetano (A). No. Okay. So, I'll stop there. *Sinabi n'yo kasi sedition. Pero tingnan niyo po iyong page 25 ng sarili niyong affidavit, ha. Si Princess Maui, ang sinabi niya, "Ano po ba ang puwede niyong maging remedy para matapos na ito, lalo't nagsisigaw na po ang taumbayan na mag-People Power na?"* So actually, I would consider *ang nag-uudyok si Princess Maui*. Of course, we can discuss People Power, but—*pero tingnan niyo po ang sagot niya after iyong sa pagpatay. "Ang laban ay wala diyan sa EDSA, Ma'am. Wala diyan sa mga highway. Ang laban, Ma'am, nandoon sa loob ng Palasyo. Iyan ang problema.* We appreciate *iyong expression ninyo ng disgust, ang pagkamuhi, ang hopelessness, kasi it reflects kung ano nararamdaman ng maraming milyon-milyon. Alam ko iyan, Ma'am. Kahit saan ako pumunta, ang sasabihin, 'Binoto namin dahil sinabi mo, iboto namin.'*" So if I look at that statement, *parang baliklad? Parang sinasabi niya, "Huwag kayong mag-People Power."*

Mr. Lotoc. *Hindi. Actually, kung babasahin po natin iyong buo, may sinabi siya doon na natutuwa siya sa ginagawa nila.*

Senator-Judge Cayetano (A). *Sa ginagawa nila na active nagra-rally. Pero sa People Power, ito iyong exact—I won't argue with you. I'm just trying to get into your frame of mind.*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Cayetano (A). When do you believe her, and when do you not believe her, and what did you actually investigate?

Mr. Lotoc. We based everything on the evidence that we've gathered.

Senator-Judge Cayetano (A). Thank you, Presiding Officer. Thank you, Mr. Witness.

Mr. Lotoc. *Opo.*

The Presiding Officer. Thank you, Senator-Judge Cayetano (A).

Senator-Judge Marcos, thereafter Senator-Judge Aquino.

Senator Marcos, you may proceed, Ma'am, when you're ready.

QUESTIONS OF SENATOR-JUDGE MARCOS

Senator-Judge Marcos. Thank you very much, Presiding Officer. And Atty. Lotoc, *mabungay ang pang-abot diha sa atong Senado.*

Mr. Lotoc. *Opo, Ma'am.*

Senator-Judge Marcos. Okay. I would like to affirm *lang iyong sinabi mo kanina, na noong nangyari nga itong hatinggabi ng interview ni Vice President sa Zoom, agad-agad inorderan kayo, instraksiyonan ng NBI na mag-imbestiga. Tama po 'yun?*

Mr. Lotoc. *Hindi po, Your Honor. Sabado po iyon, lunchtime. Mayroon kaming meeting, ako, with then-Director Santiago. I think between 12 noon and 1 p.m. And then mayroong instruction na nanggaling kay Director Santiago na, "Jeremy, may kumakalat sa social media. May mga utterances na ginawa ang Bise Presidente. Imbestigahan natin since may cyber aspect ito. Imbestigahan mo na." Doon po nagsimula iyon.*

Senator-Judge Marcos. *Tama. So, anong araw iyon? Kasi nandito sa inyong Affidavit of Investigation, at iyong sinabi ninyo na on even date, ang tinutukoy mo ba iyong November 23 din?*

Mr. Lotoc. November 23, Ma'am. *Kasi natapos ho ang—*

Senator-Judge Marcos. *Oo, gabing-gabi kasi iyon, di ba?*

Mr. Lotoc. *Madaling araw po ng ala-una, Ma'am.*

Senator-Judge Marcos. That's right. So, *nag-meeting kayo kaagad-agad? Ganoon ba?*

Mr. Lotoc. *Hindi, Ma'am. Hindi po kasi namin alam iyon.*

Senator-Judge Marcos. *Kailan kayo inutusan na mag-imbestiga?*

Mr. Lotoc. *Noong—during noong lunchtime na may meeting kami ni then-Director Santiago pero iba ho ang iniimbestigahan naming krimen.*

Senator-Judge Marcos. *Kailan kayo sinabihan ng DOJ na mag-imbestiga? Anong araw?*

Mr. Lotoc. *That same day, Ma'am.*

Senator-Judge Marcos. *Kaya nga November 23.*

Mr. Lotoc. *November 23.*

Senator-Judge Marcos. *Oo, pareho lang. Iyon ang sinabi ninyo kanina noong tinatanong kayo ng Counsel ng Prosecution. Iyan din ang nakasaad—on even date—ang nakasabi sa inyong affidavit.*

Mr. Lotoc. *Opo. Yes, Ma'am.*

Senator-Judge Marcos. *Okay. So, nag-umpisa na kayo. Kinuwento nga ninyo, four phases iyong imbestigasyon. Nag-umpisa sa identification. Nagbigay kayo ng hash value. Nag-preserve kayo ng data. Pagkatapos, nag-research kayo. Subsequently, sinabi mo na meron kayong open-source intelligence search, at natuklasan ninyo na meron palang October 18 video na presscon na naman ni OVP, na nasa Facebook, at may mga sinasabi na naman na puputulin iyong ulo. Tama ba iyon, iyong October 18 na nakita ninyo?*

Mr. Lotoc. *That's the continuation in the analysis phase, Your Honor.*

Senator-Judge Marcos. *Oo.*

Mr. Lotoc. *Yes, Your Honor.*

Senator-Judge Marcos. *Kasi nag-research na kayo, ano? Bilang fourth phase nga ng inyong imbestigasyon, tama po ba?*

Mr. Lotoc. *Hindi po, Your Honor. Iyon iyong third phase po, iyong analysis and attribution.*

Senator-Judge Marcos. *Sa analysis pa at attribution. So, third phase. Pero bandang huli na. Ang pinagtatahan ko, kung inutusan kayo ng November 23 na magkaroon ng imbestigasyon, bakit napakaaga? November 6, 2024, a subpoena was issued to ABS-CBN requiring them to submit an authenticated copy of the video pertaining to the 18 October presscon. Nandito ito sa affidavit ninyo, nasa page 8, number 14. Kung inutusan kayo noong November 23, ang ibig ba sabihin November 6 pa lang, minamanmanan na si Vice President? Iniimbestigahan na siya bago pa iyong Zoom conference sa Kongreso?*

Mr. Lotoc. *No, Your Honor. I think, I believe that's a typo iyong date.*

Senator-Judge Marcos. *Sorry?*

Mr. Lotoc. *That's a typo, Your Honor, iyong date kasi makikita doon iyong date noong appearance ng taga-ABS-CBN which is consistent po siya doon sa ibang inisyuhan ng subpoena.*

Senator-Judge Marcos. *Kailan ba iyong appearance? Kasi hindi ko nasusundan yung timeline ninyo. Parang iyong November 23 iyong utos, pero November 6 pa lamang, may subpoena na. Ba't nagkaganoon?*

Mr. Lotoc. *Typo po iyan, Your Honor. Hindi po iyan November 6.*

Senator-Judge Marcos. *Typo na 'aman, katulad ng Department of Justice.*

Mr. Lotoc. *No, Your Honor. If I may refer to my notes, Your Honor.*

Senator-Judge Marcos. *Okay. Oo. Ipakita mo na lang sa akin kasi hinahanap ko. Hindi ko masundan.*

The Presiding Officer. *You may do so, counsel.*

Senator-Judge Marcos. This is page 6, number 14 po. November 6, 2024, subpoena to ABS-CBN.

Senator-Judge Marcos. *Wala naman yatang date na binibigay tungkol sa appearance ni Patria Morales at iyong iba pang ABS.*

Mr. Lotoc. *Meron po, Your Honor, if I—*

Senator-Judge Marcos. *Pakituro lang kasi hinahanap po namin.*

Mr. Lotoc. —refer to the subpoena—

The Presiding Officer. For information, the time of Senator-Judge Marcos is over. Kindly—

Senator-Judge Marcos. Yes, but he is still responding to questions.

The Presiding Officer. Of course, we will wait for the response to the question.

Senator-Judge Marcos. *Siya po iyong matagal, hindi tayo.*

The Presiding Officer. We're only counting the questions that you asked, not the answer. Neit**Mr. Lotoc.** *I-check ko lang po, Your Honor, para—*

Senator-Judge Marcos. *Kasi iyong mga sumunod na meeting, doon sa page 13, sa number 30, at sa mga sumunod, iyong mga tinutukoy doon, iyong mga media na nandoon sa Zoom conference, hindi naman siya iyong ABS na humawak ng camera noong October 18. Iba naman yung mga tinutukoy doon.*

The Presiding Officer. Attorney Lotoc, the question of the Honorable Marcos is on page 6, paragraph 14. You said you sent a subpoena on November 6, 2024. Unfortunately, because the annexes are not part of the document marked, it's not here. So, the question is quite clear. If it's a mistake, then what is the correct date of the subpoena?

Mr. Lotoc. If I can see the real subpoena, Your Honor—

The Presiding Officer. Kindly talk to the mic, please.

Mr. Lotoc. Yes. If I can see the real subpoena, Your Honor, because the subpoena was signed by our Assistant Director for Investigations Service—

The Presiding Officer. As I said, unfortunately, it was not attached to your affidavit, and I doubt if it's one of those marked or pre-marked—

Senator-Judge Marcos. *Wala.*

The Presiding Officer. —by the Counsel for Prosecutors. As you said and admitted earlier, he did not—or they did not—mark all of the annexes in your affidavit.

Mr. Lotoc. Yes, Your Honor. If I may, *i-check ko lang po, Your Honor, para sigurado.*

The Presiding Officer. *Wala sa iyo ngayon?*

Mr. Lotoc. *Hinahanap ko po rito.*

The Presiding Officer. *Wala nga pong annex iyan.*

Senator-Judge Marcos. *Wala sa annex at wala rin sa affidavit. Kasi iyong mga media na tinutukoy sa ibang pahina ay iyong mga nag-interview nung Zoom conference.*

Mr. Lotoc. *Andito po iyong certified true copy now, Your Honor.*

Mr. Ligutan. If I may, Your Honor, please, can I assist on this regard if the court will allow?

The Presiding Officer. Only if you can produce a copy of the November 6 subpoena, counsel.

Mr. Ligutan. Exactly, Your Honor. The documents are present. They are in the possession at present of the witness, Your Honor. They may not have been physically attached to the Affidavit of Investigation, but they do exist in the records of the case as separate pre-marked documents, Your Honor, please.

The Presiding Officer. So, it's here?

Senator-Judge Marcos. Presiding Officer, is counsel saying that therefore the affidavit is defective or wrongful, and that November 6 is not the right date? What then is the right date of the subpoena to the ABS?

Mr. Ligutan. Your Honor, please, with all due respect, we take—we object to the use of the term “defective.”

The Presiding Officer. Counsel, we shall await. Let the documents speak for itself.

Mr. Ligutan. Yes, Your Honor, please. The witness is now in the process—

Senator-Judge Marcos. The witness said that it was a mistake, not me.

Mr. Ligutan. It doesn't make the entire Affidavit of Investigation defective.

Senator-Judge Marcos. No, I merely said the date was wrong. Because that's what he said.

Mr. Ligutan. Yes, Your Honor.

Senator-Judge Marcos. It's just been brought to my attention that, in fact, Presiding Officer, two documents were issued on November 6, not only the subpoena to ABS-CBN, but further the Affidavit of Investigation regarding the October 18 presscon. Can we please be clarified as to these two documents which don't seem to appear in the affidavit nor in the annexes provided?

The Presiding Officer. Let's first wait for the witness to answer the first question, Senator-Judge Marcos.

Yes, Attorney Lotoc?

Mr. Lotoc. If I may, Your Honor. *Ito po ang subpoena duces tecum, iyong date po ng appearance niya is December 11.*

The Presiding Officer. Appearance po, ang tinatanong ay date ng subpoena.

Mr. Lotoc. Date of subpoena is 6th day of November 2024, which I believe this is a typo, kasi magkakasunod po ito doon sa mga inisyuhan namin na media personalities.

The Presiding Officer. Attorney Lotoc, typo na iyong affidavit mo, typo pa iyong subpoena?

Mr. Lotoc. Hindi po.

The Presiding Officer. What are you looking at, the subpoena or the affidavit?

Senator-Judge Marcos. Dalawa iyan.

The Presiding Officer. What are you looking at, Attorney Lotoc?

Mr. Lotoc. Subpoena, Your Honor.

The Presiding Officer. So, the subpoena is dated November 6.

Senator-Judge Marcos. Okay, and the affidavit also is November 6. *Dalawang typo, carried over?*

Mr. Lotoc. *Nasaan iyong affidavit? Hindi ko pa nakita, Ma'am, iyong affidavit ng November 6.*

The Presiding Officer. Your affidavit, Mr. Witness.

Senator-Judge Marcos. *Ikaw ang pumirma. Iyong Affidavit of Investigation mo na binigay, pati iyong amended, carried over din. Iyong first draft, na ni-reject ng DOJ. Iyong ikalawa, parehong November 6. Pirmado ninyo.*

The Presiding Officer. Page 6, counsel, paragraph 14 of his Affidavit of Investigation.

Mr. Lotoc. Yes, Your Honor. It is November 6, 2024 ang nakasulat diyan.

The Presiding Officer. So, typo din iyan? Is it your testimony na typo din iyan?

Mr. Lotoc. I believe so, Your Honor, *kasi ang intention namin diyan is 11 December 2024.*

The Presiding Officer. Anyway, Senator-Judge Marcos, the document will—let the document speak for itself. That would be the best evidence, if at all the dates of either the subpoena and/or the affidavit.

Senator-Judge Marcos. Yes, Presiding Officer, just to provide our witness a chance to correct himself for the documents, *sa palagay mo, ano iyong tamang date kung mali iyong November 6?*

Mr. Lotoc. Same po, Your Honor, *doon sa mga subpoena na inisyu namin sa media personalities.*

Senator-Judge Marcos. *Tapos magkakapareho.*

Mr. Lotoc. Yes, *magkakasunod po iyon.*

Senator-Judge Marcos. Okay. *Sige. Maraming salamat.* Thank you very much, Presiding Officer. *Damo nga salamat.*

Mr. Lotoc. *Salamat po, Ma'am.*

The Presiding Officer. Thank you, Senator-Judge Marcos.

Senator Bam Aquino, and then we proceed to cross.

MANIFESTATION OF ATTORNEY VINLUAN

Attorney Vinluan manifested that the date "06 November 2024" appeared not only in paragraph 14 on page 6 of the Affidavit of Investigation but also in Footnote No. 12, which referred to a subpoena to an ABS-CBN News personnel on 06 November 2024. He further pointed out that paragraph 14 likewise stated that a subpoena had been issued to ABS-CBN News on the same date for the submission of a copy of the video of the October 18, 2024 press conference. He added that the subpoena itself included an attachment showing a photograph taken during the press briefing. In view thereof, he argued that the discrepancy could not be dismissed as a mere typographical error.

Attorney Ligutan objected, maintaining that the witness had already testified that the discrepancy was merely a typographical error.

Presiding Officer Escudero noted the manifestation of counsel for the respondent. With respect to the counter-manifestation of counsel for the prosecutors, he observed that the witness had already testified that, from his perspective, the discrepancy was merely a typographical error.

QUESTIONS OF SENATOR-JUDGE AQUINO

Senator-Judge Aquino. *Maraming salamat, Mr. Presiding Officer.*

So, continuation *po ito ng tanong ko kanina tungkol sa general denial at saka specific denial. Pero bago iyon, Attorney Vinluan, Attorney Lotoc. Kanina po tinanong kayo kung bakit ninyo itinuloy yung kaso, why you continued with filing. Sabi ninyo po kanina, "Hindi naman siguro siya magsisinungaling." "Siya," meaning the Vice President. Could you just quickly tell me what you mean by that, "Hindi naman siguro siya magsisinungaling?"*

Mr. Lotoc. Well, the surrounding circumstances, Your Honor, at that time, *iyong atmosphere, sabi ko nga, galit na galit siya, at madiin iyong kanyang mga binitawang salita, at ito ay nag-ugat pa sa mga naunang event. So, doon noong winika niya na, "Huwag kang mag-alala, Ma'am, sa security ko sapagkat may kinausap na akong tao."* From the point of view of the NBI, we believe that....

Senator-Judge Aquino. So, you took it as truth?

Mr. Lotoc. Yes.

Senator-Judge Aquino. All right.

In succeeding interviews—I am sure *nag-imbestiga ka— mayroon bang pagtangga dito sa pagkausap sa isang tao na papatay kung may mangyari kay Vice President Duterte? Mayroon ba kayong napanood o naimbestigahan na pagtangga nito in the succeeding interviews?*

Mr. Lotoc. Yes, Your Honor. I think there was a video dated November 26, 2024. *Doon sa video na iyon, instead na i-deny niya ang nangyari noong November 23, nire-reiterate pa ho niya, Your Honor, in-admit po niya na, indeed, may kinausap siyang tao.*

Senator-Judge Aquino. So, *inulit pa, kung бага?*

Mr. Lotoc. *Opo.*

Senator-Judge Aquino. Okay. So, let me repeat my question to the Defense.

So far, *wala pang* actual statement *si* Vice President Duterte *na itinatangi itong pagkausap sa isang hitman.* And for the benefit of the public, *magkaiba ho kasi iyong general denial sa specific denial. Ang general denial, "Hindi ko ginawa iyan. Wala akong kasalanan." Iyong specific denial, "Hindi ko ginawa ito mismong mga bagay-bagay na ito."*

Hindi ko iyon nakita sa sagot ng depensa. So, I ask the defense, is there a denial that the Vice President actually spoke to a person to kill the individuals that we are talking about, Attorney Vinluan? *Sabi ninyo mayroon?* Could you point us to where it is in your answer?

Mr. Vinluan. Your Honor, I just want to clarify because a specific denial is a legal term. So, in other words, in order to satisfy the query of Senator-Judge Aquino, we will give him a copy of our answer, and we highlighted certain portions thereof, particularly paragraph 3 and paragraph 197 for his perusal.

Senator-Judge Aquino. Can you read, both paragraphs? Because I have also read your...I mean, *kami dito, binabasa naman namin iyong mga sagot ninyo at siniseryoso namin yan.* So, can you read the two, please?

Mr. Vinluan. It reads: "The rest of the allegations in the articles, including the supposed evidence attached therein, are specifically denied for being false, misleading, impertinent, mere conclusions of fact and law, and subject to the affirmative allegations and special and affirmative defenses below." And then, we enumerated.

Senator-Judge Aquino. That is Article III.

Mr. Vinluan. Paragraph 3, Your Honor.

Senator-Judge Aquino. That is paragraph 3.

So, the rest, *itong mga iba,* okay, paragraph 197.

Mr. Vinluan. Paragraph 197. It says there: Finally, no such purpose contemplated by law was attained or could have been attained precisely because the respondent did not have any purpose other than simply answer a speculative inquiry." So, that is our position on the matter.

Senator-Judge Aquino. So, your position is that is enough of a specific denial to the allegation *na may kinausap na hitman si* Vice President Sarah?

Mr. Vinluan. Yes, Your Honor. Because we discussed in our Answer that the presumption never shifts. It is in light of our discussion that it is the burden of the prosecution to prove their claim, considering that according to our laws, he who alleges must prove. And so, we just presented our arguments accordingly, Your Honor.

Senator-Judge Aquino. All right.

So, I am sure, Attorney, *sa inyong summation,* you will argue this: that the burden of evidence has shifted, *pero hindi po ninyo na* take into account *na ito mismo ay galing sa* Vice President *natin?*

Mr. Vinluan. Your Honor, to clarify the burden of proof is with the prosecution and not with the defense.

In fact, Your Honor, uh, according to our laws, even if we do not present evidence, if they do not overcome that threshold, Your Honor, then we believe that our client is entitled to an acquittal.

Senator-Judge Aquino. So, *ang sagot po ninyo,* and this is my final question, Mr. Presiding Officer, *ang sagot po ninyo, kailangan i-prove ng prosecution na mayroong hitman,* and you are not denying that the Vice President spoke to a hitman?

Mr. Vinluan. No, we are denying that, Your Honor. It is just that that was our presentation in our answer.

Senator-Judge Aquino. All right.

So, for the record, you are denying that the Vice President actually spoke to a hitman *na*, in fact, *ang sabi nga ni Attorney Lotoc, hindi siya nagsisinungaling. And sabi ninyo, actually, nagsinungaling siya at wala siyang kinausap na hitman. Iyan po ba iyong sinasabi ninyo?*

Mr. Vinluan. Yes, Your Honor. I don't know what is the frame of mind of Attorney Lotoc, but that is our answer, Your Honor—that she denied.

Senator-Judge Aquino. *Maraming salamat, Attorney.* Thank you.

QUESTIONS OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri. Thank you very much, Mr. Presiding Officer.

I just want to continue the line of questioning of Senator-Judge Aquino to the defense, Attorney Vinluan.

Attorney Vinluan, there has been no, in any instance, that the Vice President had come out on TV or radio saying that, "*Hindi, joke only, nagkamali ako. Kasi si Tatay Digong noong araw, sinasabi niya iyoneh :Papatayin ko siya,*" *Tapos mamaya, joke only iyan. Nagloloko lang ako.*" *Parang ganun.*

So, at no particular point in time has she issued a denial that she said these statements aside from what you submitted to this court as a blanket denial?

Mr. Vinluan. There is, Your Honor. And we just reserve our right to present that evidence at the proper time as well, Your Honor.

Senator-Judge Zubiri. All right.

So, there is a video or recording that was done maybe a month or during a period of time that she had mentioned this that she was denying? Because we would like to see that as well. That would weigh in heavily on our decision because *kung ngayon lang po nagpalabas ang depensa ng denial, parang after-the-fact na kasi nagkaroon na po tayo ng impeachment trial.* We would like to see that, if you have that kind of evidence.

Mr. Vinluan. We will provide, Your Honor.

Senator-Judge Zubiri. Thank you very much, Mr. Presiding Officer.

MANIFESTATION OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A) observed that Article IV of the *Articles of Impeachment* alleged that Vice President Duterte committed culpable violation of the Constitution, high crimes, and betrayal of public trust by contracting for the assassination of the President, the First Lady, and the former Speaker of the HOR, as well as by making grave threats and actively inciting sedition. He noted that, from the prosecution's standpoint, the alleged threats themselves, whether constituting high crimes, grave threats, or culpable violations of the Constitution were being treated as impeachable offenses.

He pointed out, however, that the Vice President did not explicitly state that she had contracted an assassin but merely stated that she had spoken to someone. Accordingly, he said that two matters required clarification: first, whether the alleged threat, by itself, constituted an impeachable offense; and second, whether there was sufficient proof that the Vice President had in fact contracted an actual assassin.

The Presiding Officer informed Attorney Ligutan that there was no need to respond to the manifestation of Senator-Judge Cayetano (A).

CROSS-EXAMINATION BY THE COUNSEL FOR THE RESPONDENT

Thereupon, the Presiding Officer allowed Attorney Vinluan to cross-examine the witness, to wit:

Mr. Vinluan. Attorney Lotoc, the NBI is an investigatory body, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. But unlike the DOJ, it is not a prosecutorial body, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. In fact, you have investigators and not prosecutors. Am I right?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Now, in relation to this case, what you did was only fact-finding investigation, correct?

Mr. Lotoc. Fact-finding and recommendation.

Mr. Vinluan. And recommendation. Not preliminary investigation.

Mr. Lotoc. Not preliminary.

Mr. Vinluan. Because that function is with the DOJ, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And in the course of your fact-finding investigation, you subpoenaed witnesses, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Conducted interviews?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Gathered evidence?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Okay. Now, thereafter, you transmitted the result of your fact-finding investigation to the DOJ, correct?

Mr. Lotoc. Our recommendation, Sir.

Mr. Vinluan. Okay. We learned from Agent Calilung last time, just to clarify, that there were two transmittals, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. The first transmittal was on January 30, 2025, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Okay. For the benefit of this court, there was a transmittal letter then, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Can we flash that on the screen? For the benefit of our senators, that is page 7 of the Articles of Impeachment, Annex G9 or GGGGGGGGGG.

All right. Now, if you look at the document, this was received by the DOJ also on the same day, so January 30, 2025, correct? Well, it is not clear, but it can be read.

If I may be allowed to use a pointer, Your Honor, just to—

The Presiding Officer. You may do so, counsel.

Mr. Vinluan. It is quite unclear, but actually, if you look at the actual document, it can be read as January 30, 2025. Do you confirm this?

Mr. Lotoc. I do not have the document, Sir.

Mr. Vinluan. Well, we have a hard copy and I ask my co-counsel to show the document.

The Presiding Officer. Co-counsel may approach.

Mr. Lotoc. Yeah, *hindi siya* clear, Your Honor.

Mr. Vinluan. All right. Now, this was addressed to Prosecutor General Fadullon, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And NBI's recommendation was for one count of inciting to sedition and three counts of grave threats. Am I right?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Now, attached to this transmittal letter was your affidavit of investigation. I won't bother to read the body but it says there that it was attached to that transmittal letter, correct?

Because, of course, the transmittal letter won't be empty. It has to contain something, correct?

Mr. Ligutan. Your Honor, let the witness—I move that the witness be allowed to answer first before the counsel asks a follow-up question.

The Presiding Officer. Witness will please answer.

Mr. Lotoc. I think *iyong* copy ng affidavit is *nasa DOJ na, iyong* first affidavit.

Mr. Vinluan. So, there was an affidavit of investigation. Because Agent Calilung also confirmed this last time. So, I just want a clarification from you: there was a first affidavit of investigation dated January 30, 2025.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. But we never saw this because it was never released, correct?

Mr. Lotoc. I think *nasa DOJ*—

Mr. Vinluan. With the DOJ.

Mr. Lotoc. —for purposes of case build-up.

Mr. Vinluan. But didn't you keep a receiving copy for your office?

Mr. Lotoc. No, *kasi meron na kaming copy sa computer namin...*

Mr. Vinluan. So, in other words, you have a copy of this January 30, 2025 affidavit of investigation, correct?

Mr. Ligutan. Your Honor, I move that the—can the witness finish his answer first before the counsel...

The Presiding Officer. Counsel for respondent, kindly wait for the witness to finish his answer.

Mr. Vinluan. We will comply, Your Honor.

The Presiding Officer. Thank you.

Mr. Lotoc. Well, personally, I believe *na nandoon sa DOJ iyong* copy and then *iyong sinubmit [submit] sa amin* is *iyong unang* certification stating *na kailangan nang i-comply itong* seven requirements.

Mr. Vinluan. All right. Okay. Now, there was also an investigation data form attached, correct?

Mr. Lotoc. I do not have the copy, Your Honor.

Mr. Vinluan. But do you know if there is an investigation data form that was attached, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Okay. Very well. Now, the DOJ, thereafter, evaluated the case.

Mr. Lotoc. Part of the DC 15 requirements, Your Honor,—

Mr. Vinluan. No, it is a “yes,” Sir. It is answerable by “yes” or “no.”

Mr. Ligutan. Your Honor, the witness is in the process of answering a question. He is intelligent enough to answer the question.

The Presiding Officer. Let the witness finish his answer?

Mr. Lotoc. Part of the requirement of the DC 15, series of 2024, if I am not mistaken, the circular has directed the prosecutors to proactively engage in the investigation of crimes or in the criminal investigation. *Kaya po iyong ginagawa namin noong nag-submit kami ng transmittal, ang purpose po noon* for evaluation *ng ating* prosecution, at the same time for case build-up.

So, *pag nakita po ng prosecutor na may kulang*, part po ng evaluation *saka* case build-up process, *nagbibigay po sila ng recommendation*: “NBI, *may kulang kang ganito, may kulang kang ganito, hindi pa siya sufficient, i-comply n’yo muna ito.*” Part po iyon ng DC 15 requirements.

Mr. Vinluan. All right, clear. So, in other words the evaluation is to determine if the recommendation is sufficient or insufficient for the purpose of preliminary investigation, correct?

Mr. Lotoc. For purposes of case build-up, so that the transmittal or referral would be able to comply the requirements of preliminary investigation.

Mr. Vinluan. At any rate, preliminary investigation is the next step, correct?

Mr. Lotoc. Yes, Your Honor, after the evaluation and case build-up process.

Mr. Vinluan. All right. Can you receive this evaluation or response from the DOJ, am I right?

Mr. Lotoc. You mean the certification, Sir?

Mr. Vinluan. Yes.

Mr. Lotoc. Yeah, the first certification.

Mr. Vinluan. No, if only you receive.

Mr. Ligutan. Your Honor, again, again. The witness is in the process of answering the question and the counsel is excited to propound a follow-up question. Let the witness answer first.

The Presiding Officer. Same ruling, same reminder. Witness, kindly proceed to answer.

Mr. Lotoc. Again, Sir, what is the question?

Mr. Vinluan. So, you received a response from the DOJ?

Mr. Lotoc. Yes, certification dated February 5, 2025.

Mr. Vinluan. All right. No, no, that is not my question. But, anyway, let me direct your attention to a certification issued by the DOJ through Senior Assistant State Prosecutor Jayvee Lawrence B. Bandong, and approved by Senior Assistant State Prosecutor Herbert Calvin P. Abugan, dated February 5. For the benefit of this honorable court and the Filipino people watching, this is Articles of Impeachment Annex G9, as well, pages 10 and 11. May we ask that the witness peruse this certification?

Just a manifestation, Your Honor, Annex G9 is actually not numbered, so pages 10 and 11 was based on the PDF file or the soft copy, but the hard copies are not actually numbered.

The Presiding Officer. Noted.

Mr. Vinluan. So, Mr. Witness, was this the response from DOJ following your January 30, 2025 transmittal?

Mr. Lotoc. Yes, Sir.



Mr. Vinluan. So, this certification contained the DOJ's evaluation, correct?

Mr. Lotoc. Yes, Your Honor, part of the requirement—

Mr. Vinluan. And—

Mr. Ligutan. Again, again, Your Honor, the same the same. The witness is still answering. Let the witness answer first before propounding the next question.

Mr. Vinluan. And the NBI received this February 5 certification, correct?

Mr. Lotoc. *Iyong copy ko*, Your Honor, *hindi ko makita iyong date*.

Mr. Vinluan. I'll help you. There is a note received on the upper right that is unclear. Can you flash that on the screen as well? It is unclear, but it appears to have been received on February 5, 2025, correct? So, more or less, six days after your transmittal. Do you confirm this?

Mr. Ligutan. Your Honor, before the witness answers the question, I would like to commence my objection on the ground of relevance. May I explain, Your Honor, please? This witness testified that what they filed with the NBI, with the DOJ, is a February 10 Affidavit of Investigation. And here comes the defense now, asking questions as to the first affidavit of investigations that the NBI submitted, which the DOJ asked them to correct and to provide additional information, which they complied with. And what is now at issue is the February 10 Affidavit of Investigation. That's why I'm now asking, objecting, on the grounds of relevance.

Mr. Vinluan. Your Honor—

Mr. Ligutan. What's the point? Let me finish. What's the point of digging into a prior affidavit of investigation when what this witness testified to—well, when what this witness identified—is a later affidavit of investigation that is now being considered by the DOJ? The question is simple: what's the relevance?

The Presiding Officer. Objection is overruled. It goes into the credibility of the witness's honest ability to testify as to his investigative report, and the witness is competent enough anyway.

Witness may answer.

Mr. Ligutan. Yes, Your Honor.

Mr. Lotoc. No, Your Honor. We received that letter on 10 February 2025, based on the second letter submitted to Hon. Richard Anthony D. Fadullon, signed by Judge Jaime B. Santiago. It states here that on 10 February 2025, this Bureau received the certification dated 05 February 2025, wherein the evaluating prosecutors referred the case for case buildup, citing reasons thereof.

Mr. Vinluan. Then, in that case, Your Honor, we have a problem, because this is—

Mr. Ligutan. No, Your Honor—Objection—

The Presiding Officer. Kindly let counsel finish?

Mr. Vinluan. Because, like, as I mentioned a while ago, Your Honor, this forms part of the records of this Honorable Court. This was submitted as pages 10 to 11 of Annex G9. This is part of the court's *Record*, and we also received this. These are not our documents.

Mr. Ligutan. That's why I'm objecting, Your Honor.

Mr. Vinluan. These are the prosecution's— I mean, the—

The Presiding Officer. Counsel for the prosecution, kindly let him finish.

Mr. Vinluan. These are not our documents, Your Honor. These are part of the records of the court. This came from them, and they attached this to the Articles of Impeachment.

Your Honor, we have all the right to confront each and every document because that forms part of the charge against our client.

If Attorney Lontoc is saying, Your Honor— if I may just be allowed to say this—

Mr. Ligutan. This is not a manifestation of—

Mr. Vinluan. It was received on February 10. We just want to manifest, counter-manifest, Your Honor, that there is a received stamp here that says February 5.

Mr. Ligutan. Your Honor, this is not— I'm—

The Presiding Officer. Counsel, the Presiding Officer already overruled the objection of the Counsel for the Prosecutors and I thought you would end up with a question. Kindly proceed with your cross-examination.

Mr. Vinluan. So, in other words, you deny that it was received on February 5, 2025 as seen here in this document that is part of the records of the Senate Impeachment Court?

Mr. Lotoc. Well, first, Your Honor, *hindi ho ako yung nag-receive niyan*. Then, *pangalawa, ang nakapirma po rito ang dating director namin*, Jaime B. Santiago, *at ang sinasabi niya*, "On 10 February 2025, this Bureau received the certification dated 05 February 2025."

Mr. Vinluan. All right. Anyway, I'll move on to a new point.

This Certification noted seven items, and we went through this the last time with Agent Calilung so I won't delve on that. But basically, just to go through this very quickly: the first point says that there is no affidavit of the person, so no affidavit; the second point is—or the second note is—the press briefing conducted on October 18, so no TSN, and affidavit of the person taking the TSN; 3) Annexes I and K, with marking— so no affidavit of recorder, and no TSN and affidavit; 4) Annex L did not indicate who made such TSN, so incomplete information; 5) the affidavit of one Patria Morales, so no USB; 6) only the minutes of the meeting with several persons, so no affidavit. But—

Mr. Ligutan. Your Honor, that's my objection now.

Mr. Vinluan. I'm just reading it, Your Honor.

Mr. Ligutan. Where is the question?

Mr. Vinluan. Wait for the question. I'm just laying the basis, Your Honor.

Now, I'd like to highlight note number 7. Please allow me to read that portion, or at least the latter portion thereof. It says there: "In the instant complaint, only the NBI executed an affidavit, and there was no participation on the part of the offended parties." As it appears, NBI is not the offended party for the crime of grave threats. My question is this: So, based on note number 7, according to the DOJ, the NBI is not the offended party, correct?

Mr. Lotoc. Based on number 7, NBI is not the offended party for the crime of grave threats.

Mr. Vinluan. Okay, very well. So, the offended parties, if at all, are President BBM, the First Lady, and the former Speaker, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. At any rate, all these—the 7 notes that I mentioned— are all deficiencies in the first affidavit of investigation, correct?

Mr. Lotoc. It's not deficiency, Your Honor, because the first affidavit we've submitted is substantial. It's establishing the evidence required. This requirement is a matter of complying the required quantum of evidence required under DC 20.

And, if I may, sir, the purpose of submitting our referral to the Department of Justice is for preliminary investigation which under the NPS rules, the new rules under the NPS, the law enforcement agency can submit a complaint affidavit, or in fact, submit a complaint before the DOJ for purposes of preliminary investigation. The requirement that the offended party should have a complaint affidavit is not an indispensable requirement insofar as the preliminary investigation is concerned, insofar as the preliminary investigation.

Mr. Vinluan. Very well. Now, based on that answer, I'd just like to point your attention to the portion of this certification dated February 5, 2025, next to the box ticked with an "X." Kindly allow me to read if we can highlight that portion. Okay. It says here, and you can read with me, "Insufficient for the conduct of preliminary investigation and must first be referred for case build-up." So, in Filipino—this is my question, and I'll do it in Filipino. So, in other words, *nakulangang iyong DOJ*, correct?



Mr. Lotoc. For purposes, Your Honor, of satisfying the elements—I mean, the required quantum of evidence, the DOJ required us to attach affidavits and other documents like the TSN, sir.

Mr. Vinluan. Thank you. And the DOJ itself mentioned this, correct? Or said this, correct?

Mr. Lotoc. Based on the certification, yes.

Mr. Vinluan. All right. In fact, let me direct your attention to the portion after I quote: “must first be referred for case build-up.” Can you flash that also on the screen? And allow me to read: “The complaint/referral does not contain all the necessary evidence to prove the essential elements of the crime. Therefore, it is recommended that the same be first referred for case build-up.”

Okay. Now let me get this straight. I’ll summarize first, and then I’ll ask the question.

So, the subject incident happened on November 23, 2024, and the NBI conducted fact-finding investigation, as you said. You subpoenaed individuals, conducted interviews, gathered evidence, among others, as you said also, and the NBI spent over two months, or until January 30, 2025, for this process. Is this a fair summation of what we have just discussed?

Mr. Lotoc. I don’t think so, Your Honor.

Mr. Vinluan. You don’t agree. And yet, when the NBI transmitted the case to the DOJ on January 30, 2025, the DOJ found it to be insufficient for the conduct of preliminary investigation.

Mr. Ligutan. Objection, Your Honor. Continuing objection as to the relevance— this series of questions as to the prior affidavit investigation, which was corrected in a February 10, 2025, continuing objection, Your Honor.

The Presiding Officer. Your continuing objection is noted. Same ruling by the court.

Witness may answer.

Mr. Lotoc. Yes, Your Honor. The fact that the Department of Justice issued another certification—

Mr. Vinluan. That would be enough.

The Presiding Officer. Kindly let the witness finish, counsel.

Mr. Vinluan. We will comply, Your Honor.

The Presiding Officer. Are you done, Mr. Witness?

Mr. Lotoc. The fact that the Department of Justice issued another certification on February 14, 2025, and it states here that the referral is sufficient for conduct of preliminary investigation, and that it contains all the necessary evidence to prove the essential elements of the crime and should be docketed for preliminary investigation.

The Presiding Officer. With the permission of the parties, Atty. Lotoc, that’s the second certification.

Mr. Lotoc. Yes po, Your Honor.

Mr. Vinluan. Okay, second certification.

The Presiding Officer. Counsel for the respondent?

Mr. Vinluan. Yeah, we will go to that.

In other words, based on this certification, the DOJ did not affirm the NBI’s recommendation, correct?

Mr. Lotoc. No. Part of the process of evaluation and case build-up, the DOJ requires us to comply with the requirements *na hinihingi nila, gaya ng mag-attach kayo ng affidavit, mag-attach kayo ng TSN. Pero wala hong sinabi iyong DOJ doon na hindi substantial iyong aming affidavit. Ang ni-require lang ho nila, mag-attach kayo ng affidavit na ni-record iyong video, and then iyong TSN, sir.*

Mr. Vinluan. Well, according to you, but we just said—

Mr. Ligutan. Your Honor, argumentative.

The Presiding Officer. Argumentative. Asked and answered. Move on, counsel.

Mr. Vinluan. Okay. That's interesting, because there was a 2025 impeachment complaint filed against VP Sara also on February 5, 2025, if you know.

Mr. Lotoc. Again, Your Honor.

Mr. Vinluan. The date is important because there was also a February 5 impeachment complaint filed against VP Sara also on February 5, 2025, correct?

Mr. Lotoc. *Hindi ako familiar sa—*

Mr. Vinluan. You're not familiar. That's okay. If I may refresh your memory, this was the fast-tracked 2025 impeachment complaint cited by the Department of Justice representative.

Mr. Ligutan. Objection, Your Honor.

The Presiding Officer. Let him finish.

Mr. Ligutan. If a ground arises, a counsel can object. The term "fast-tracked"—

Mr. Vinluan. Your Honor—

Mr. Ligutan. —you are labeling a process made by House of Representatives as "fast-tracked." Objection—

The Presiding Officer. Counsel, move on. Move on and ask your question.

Mr. Vinluan. If you know, if this coincides with that impeachment complaint that was signed by the 215 Representatives—

Mr. Ligutan. Objection, Your Honor. There's no basis. This counsel—

Mr. Vinluan. —if you know.

Mr. Ligutan. Again, this witness, already said that he is not aware that on that day there was an impeachment complaint. There's no basis for that question.

The Presiding Officer. Counsel, witness already answered. The Counsel for Prosecutor is correct. Witness already answered, he's not familiar with the filing of an impeachment complaint on that date.

Mr. Vinluan. At any rate, this pertains to the November 23, 2024 video, correct?

Mr. Ligutan. Objection, vague, Your Honor. What's the question? Referring to a video? Objection, vague.

The Presiding Officer. Kindly restate your question, counsel.

Mr. Vinluan. The complaint. The complaint that was filed against the Vice President also pertains to the November 23, 2024 video?

Mr. Ligutan. Objection, vague.

Mr. Vinluan. If you know.

Mr. Ligutan. Again, vague. Complaint filed on that date?

The Presiding Officer. Well, if he knows. He already answered he doesn't. Who knows? He might all of a sudden recall. Are you familiar with that, Attorney Lotoc?

Mr. Lotoc. Like I said, Your Honor, *hindi ako familiar nung filing nung sa impeachment.*

Mr. Vinluan. Yeah. You're not familiar. Okay. I'll move on to a new point then.

The Presiding Officer. Move on, counsel.

Mr. Vinluan. Now, did you rectify your January 30, 2025 affidavit of investigation?

Mr. Lotoc. January 30—

Mr. Vinluan. January 30, 2025 Affidavit of Investigation. In short, the first affidavit of investigation.

Mr. Lotoc. We complied with the requirements of the Department of Justice.

Mr. Vinluan. All right. Did anybody ask you to rectify?

Mr. Lotoc. What do you mean?

Mr. Vinluan. Did you receive any directive from anybody to rectify that affidavit of investigation?

Mr. Ligutan. Objection, argumentative. The question was asked, he said we complied, and then he's now asking the same question.

Mr. Vinluan. I'm asking who. I'm asking if there's another person who directed you to satisfy the requirements.

The Presiding Officer. Overruled. Witness may answer.

Mr. Lotoc. No.

The Presiding Officer. Witness is an intelligent witness, aside from the fact that he's a lawyer.

Mr. Lotoc. Well, Your Honor, when we received the certification dated 05 February 2025, *ito ho iyong kinomply namin.*

Mr. Vinluan. All right. And you added the affidavits executed by your agents, correct, to your revised affidavit of investigation, correct?

Mr. Lotoc. No, we didn't revise the affidavit of investigation. We just produced the affidavits of the fact that the video was recorded and there was TSN. *Iyon ho iyong in-attach namin sa affidavit of investigation.*

Mr. Vinluan. So, you are denying that you produced a revised affidavit of investigation?

Mr. Lotoc. Well, when you say kasi "revised affidavit," *binago namin iyong affidavit namin. Hindi ho namin binago, Your Honor, iyong affidavit namin. Nag-require ho ang Department of Justice. "Kulang kayo ng affidavit as to the fact na ni-record ninyo iyong video. Kulang kayo doon sa affidavit kung sino nag-execute ng TSN," et cetera. But not the substance nung affidavit, Your Honor.*

Mr. Vinluan. All right. I'll go back to the point later. But let me highlight one very important observation. Okay. Your January 30, 2025 Affidavit of Investigation included a transmittal letter, as you said, as well as an investigation data form or IDF, correct?

Mr. Lotoc. *Wala ho akong kopya dito, sir.*

Mr. Vinluan. You don't have a copy. Okay. In fact, let's show that IDF—Page 12. This is page 12 of Annex G9, for the benefit of this Honorable Court as well. Okay. This is an investigation data form. You're very familiar with this document because you're an investigator, correct?

Now, this was—

The Presiding Officer. Can you wait for the witness to answer? Are you familiar?

Mr. Vinluan. He already said.

Mr. Lotoc. Yeah, investigation data form, sir.

The Presiding Officer. Okay.

Mr. Lotoc. *Opo, Your Honor.*

Mr. Vinluan. All right. So, in other words, the IDF serves like a cover letter for your affidavit of investigation, correct?

Mr. Lotoc. Yes, sir.



Mr. Vinluan. Okay. And the transmittal letter, along with this IDF, was received by the DOJ, correct?

Mr. Lotoc. Yeah, I believe so, sir.

Mr. Vinluan. All right. Now, my question is this: was the investigation data form also received by the DOJ?

Mr. Lotoc. I don't have personal knowledge, Your Honor.

Mr. Vinluan. You don't have personal knowledge. But you were the one who caused the filing of the affidavit attached to this affidavit of investigation data form, correct?

Mr. Lotoc. No, Your Honor. I instructed the agent in case as well as the executive officer *na pagkumpleto na, puwede niyo ng i-file iyan sa* Department of Justice for purposes of evaluation and case build-up if warranted, sir.

Mr. Vinluan. Okay. But here, upon perusal of this investigation data form, there is a stamp received in the upper left portion of this data investigation form. And I'd like to note, Your Honor. And for the benefit of the court, can I ask my co-counsel also to distribute among the senator-judges a printed copy so that they can peruse this document better, as well as the witness, so he can confront. There is a stamp, "Department of Justice received," but it appears that it was initially stamped "12-02-2025". But there is a marking, a manual marking, that converted it to January 30. And there is also a word there, J-A-N. So January, January 30 *ang lumabas*.

Mr. Ligutan. Okay.

Mr. Vinluan. Okay. My question to you is this: the stamp says Department of Justice, correct?

Mr. Lotoc. Well—

Mr. Vinluan. No.

Mr. Lotoc. *Wala ho akong hawak na document ko.*

Mr. Vinluan. You can perceive it. And, mind you, these are not our documents. These are part of Annex G9 of the Articles of Impeachment. So, these are not our documents.

Mr. Ligutan. Your Honor, I would like to object now. The witness already said that he is not aware as to the actual filing because he only asked his agent on case investigate, and that now he—the witness is now being propounded a question as to what appears on the stamp, as to the time or date of receipt by the DOJ. So, the witness said he is not competent to answer that.

Your Honor, please—wait. I am not yet done. That's the first one.

Your Honor, please. No need for the court to rule, but I am registering my continuing objection to this series of questions as to the prior affidavit of investigation, when in fact this witness already said that he complied with all the requirements of the DOJ and came up with a February 10, 2025 Affidavit of Investigation. So, I move that it be noted, Your Honor, please the continuing objection.

The Presiding Officer. The continuing objection of counsel for the prosecutor is noted. But counsel, as pointed out by counsel for the respondent, this is part and parcel of the complaint—

Mr. Ligutan. Yes.

The Presiding Officer. —that the panel of prosecutors filed before this court. If the witness knows, he may answer.

Mr. Vinluan. So, the question is: the stamp says Department of Justice, correct? It's a very basic question.

Mr. Lotoc. Again, I don't know, Your Honor.

Mr. Vinluan. No, based on this document.

Mr. Ligutan. Argumentative, Your Honor.

Mr. Vinluan. The only question is: it says Department of Justice, correct?

Mr. Lotoc. As I have said, Your Honor, *hindi ho ako ang nag-file. May inutusan ho ako.*

Mr. Vinluan. Do you see it in the screen? Do you see it in the hard copy?

Mr. Ligutan. No, no, no.

The Presiding Officer. Counsel, asked and answered. Move on. That's the response of the witness.

Mr. Vinluan. So, will you agree that, considering that this was supposed to be received by the DOJ, it is only the DOJ that has the authority to change the date?

Mr. Lotoc. Again, you asked the DOJ, sir. *Wala po akong idea diyan.*

Mr. Ligutan. Exactly.

Mr. Vinluan. Okay.

The Presiding Officer. Counsel for the Prosecution, kindly avoid side remarks.

Mr. Vinluan. All right. But this is not from the DOJ. This is your copy, this is a receiving copy. So, when you received back your receiving copy, you did not bother checking this portion?

Mr. Lotoc. Your Honor, *hindi po ako personally ang nag-receive niyan.*

Mr. Vinluan. But this is your Affidavit of Investigation.

Mr. Ligutan. Objection, argumentative, Your Honor. Asked and answered.

The Presiding Officer. Asked and answered. Move on, Counsel.

Mr. Vinluan. All right. My question to you now is this, the discrepancy is not one day or two days. The discrepancy is from February 12 to January 30. So, it is a substantial discrepancy. My question to you is this, who changed this date, if you know?

Mr. Ligutan. Objection. That is misleading, Your Honor. My goodness, that's misleading.

This Counsel just assumed that somebody changed what? That Counsel failed to elicit any answer from this witness. And now, the Counsel is conceiving that somebody changed that and confronting our witness with that. Misleading.

This is the classic case of a misleading question. You assume something that has yet to be established. That is not how we do it, with all due respect.

The Presiding Officer. Counsel for Respondent, I think you made your point, and you gave a copy to the senator-judges and we see your point. Move on.

Mr. Vinluan. All right. But my more important observation is this—

Mr. Ligutan. Objection, Your Honor, please. You are supposed to ask questions and not to—

Mr. Vinluan. Yes, I will go to the question.

The Presiding Officer. Kindly allow Counsel for Respondent to finish his question. He may just still be laying the basis. You may proceed, Counsel.

Mr. Vinluan. Thank you, Your Honor. That is precisely what I am doing, Your Honor.

Can I direct everyone's attention to the date appearing at the bottom portion of this document? It says here—

The Presiding Officer. Counsel, technically not everyone, just the witness. And let us see if the witness can answer your question.

Mr. Vinluan. It says here February 11, 2025. So, in other words, it was—and it says here subscribed before NBI Agent Ricarte. In other words, the date of the document is February 11, but it was received on January 30, 2025 by the DOJ. Do you have any explanation for this? That is the question.

Mr. Ligutan. Objection, Your Honor. This witness is incompetent to attest to that, exactly because he said he is not aware of this series of facts. I know where the Counsel for Respondent

is going. Unfortunately for him, his line of argument was already nipped in the bud when this witness said, "He is not aware of that." He should move on to other points.

Mr. Vinluan. Your Honor, the witness said that this Investigation Data Form was attached to the original Affidavit of Investigation. And we want an explanation why there is a discrepancy on the date. The witness, as a lawyer, has an experience, Your Honor, in filing cases. We just want to know, Your Honor, we want to get to the bottom of this matter.

Mr. Ligutan. We object to that.

The Presiding Officer. Let the witness—

Mr. Vinluan. Considering also, Your Honor, that this is about transparency.

The Presiding Officer. Will the parties please settle down? If the witness knows. Attorney Lotoc, do you know? Can you explain the discrepancy or are you personally aware of the discrepancy?

Mr. Lotoc. I cannot explain this, Your Honor. *Unang-una, hindi po ako nakapirma dito, hindi po ako nag-receive, at wala po akong idea dito sa—*

The Presiding Officer. But Attorney Lotoc, you see the point that the Counsel for Respondent is trying to make, correct?

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. That the date of receipt was changed to 01-30 (January 30), but it was subscribed to on February 11. Meaning, you see it but you have no personal knowledge how that came about?

Mr. Lotoc. Yes, Your Honor. I don't have personal knowledge.

The Presiding Officer. Move on, Counsel.

Mr. Vinluan. So, doesn't this demonstrate that the—

Mr. Ligutan. Oh.

The Presiding Officer. Allow Counsel to finish.

Mr. Vinluan. —that the document was tampered with? If you know, that this document was tampered with?

Mr. Ligutan. Objection, Your Honor. Exactly, he is now arguing with our witness.

The Presiding Officer. Sustained. Move on, Counsel. Move on to your next topic, Counsel.

Mr. Vinluan. But you agree Attorney Lotoc, that the IDF is not a simple cover letter, correct?

Mr. Ligutan. Asked and answered, Your Honor.

Mr. Vinluan. Okay. In fact, it is an affidavit, correct? An IDF is an affidavit, correct?

Mr. Lotoc. I don't think so, Your Honor. It is not an affidavit, Your Honor.

Mr. Vinluan. The Investigation Data Form.

Mr. Lotoc. It is not an affidavit, Your Honor.

Mr. Vinluan. So, you do not agree? So, in other words, this certification part here, and with the subscribed and sworn to, for you, this is not an affidavit?

Mr. Ligutan. Argumentative, Your Honor.

Mr. Vinluan. Your Honor, I just—

Mr. Ligutan. Objection, argumentative.

Mr. Vinluan. I just made my question more specific, Your Honor. There is a part here, "SUBSCRIBED AND SWORN TO," and I want to ask the witness if he considers this document as an affidavit despite this portion. What is the answer, is it an affidavit or not?

The Presiding Officer. Attorney Lotoc, is this sworn to? Is this document sworn to? What is the title of the instrument again? Can you go up?

Mr. Vinluan. Investigation Data Form, Your Honor.

The Presiding Officer. Is an Investigation Data Form subscribed and sworn to by the person filing it? To your knowledge.

Mr. Lotoc. Yes, Your Honor. There is subscribed and sworn to before this 11th day of February and signed by the Administering Officer.

The Presiding Officer. Okay.

Mr. Vinluan. And as law practitioners, we know that when we file a case, before the Office of the City Prosecutor, this actual page is signed and subscribed before the public prosecutor, correct?

Mr. Ligutan. Your Honor, again, again, again. Objection.

Mr. Vinluan. If you know. You are a lawyer and you are a supervisor of your department.

Mr. Ligutan. Objection, if I may?

Mr. Vinluan. I am just asking a basic question.

As a law practitioner, as a lawyer, you know that this IDF is signed and subscribed before the public prosecutor when you file a case, correct?

Mr. Ligutan. If I may object, Your Honor. Continuing objection as to the relevance of this series of questions, Your Honor, please.

The Presiding Officer. Noted. Same ruling, witness may answer if he knows.

Mr. Lotoc. Again, Your Honor, before the prosecutor?

Mr. Vinluan. Correct. In normal cases, the IDF is subscribed and sworn to before the public prosecutor, correct?

Mr. Lotoc. Well, in this case, Your Honor, it was administered by Assistant Director Glenn Ricarte, Your Honor.

Mr. Vinluan. Okay. I am glad you pointed that out. Isn't Ricarte from the NBI?

Mr. Lotoc. Yes, assistant director *po siya*.

Mr. Vinluan. In other words, this is a DOJ document, but you made your subscription before an NBI agent. Isn't that supposed to be before the DOJ agent?

Mr. Lotoc. Well, again, *wala po akong personal knowledge diyan sa details na iyan, sir. Siguro tanungin ninyo kung sino po iyong naka-affix na signature diyan, sir.*

Mr. Vinluan. All right. But what is worse, if I can direct you—

Mr. Ligutan. Your Honor, objection.

I have an objection, Your Honor. You know, this Counsel is in the habit of inserting, adding value to what is otherwise—

Mr. Vinluan. Your Honor, if we may just be allowed to continue? This is our time. We have given them enough leeway, Your Honor, after more than hours.

The Presiding Officer. Counsel for the Prosecutor, let him lay the basis of his question.

Mr. Ligutan. Yes.

Mr. Vinluan. All right. Can I direct your attention to the upper right portion of this IDF? It states "DOCKETED 3/7/25" and there is a docket number XVI-INV-25C-00048.

Again, the source of this document is not the DOJ. This is your receiving copy, correct? In fact, this was part of the subpoena documents which you sent to the House Committee on Justice, correct?

Mr. Ligutan. Objection. Compound questions, two questions.

Mr. Vinluan. Okay. I'll—

The Presiding Officer. Kindly reform, Counsel.

Mr. Vinluan. All right. My question is this, okay. So, do you confirm that there is a marking on the upper right which says, "DOCKETED 3/7/25" and there is a docket number assigned?

Mr. Lotoc. In this document, sir, yes.

Mr. Vinluan. All right. We manifest, Your Honor, that this is still the same Annex G9.

So, in other words, you are telling this court that this document was subscribed on February 11, 2025, received on January 30, 2025, and docketed on—whatever it is—July 3 or March 7, 2025. Is that what you are saying?

Mr. Ligutan. Objection, that is compound. You are asking two days and asking for one question.

Mr. Vinluan. No, Your Honor. I just described the document as it is.

Mr. Ligutan. Exactly, compound question. Ask one question per date. That is exactly the genius why we do not allow compound questions. You are asking two questions and asking this witness to answer once. That is dangerous. That is a compound question.

The Presiding Officer. Counsel, the Presiding Officer will clarify the matter. Questions were earlier asked already with respect to the February subscription and the January 30 receipt. Insofar as the docketing is concerned, do you see the numbers and/or dates 3/7/25, Attorney Lotoc?

Mr. Lotoc. Yes, Your Honor. In this document, there is number 3/7/25.

The Presiding Officer. And for clarity, NPS docket means "National Prosecution Service?"

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. Is that correct?

Mr. Lotoc. Opo. Yes, Your Honor.

The Presiding Officer. So, it is a docket of the National Prosecution Service.

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. Proceed, Counsel.

Mr. Vinluan. All right. So now, I am showing you pages 168, 169, also, of Annex G-9. This pertains to the affidavit of Agent Calilung, which is an attachment now to the revised Affidavit of Investigation. You added this document to rectify the January 30 Affidavit of Investigation, correct?

Mr. Lotoc. Again, again, sir?

Mr. Vinluan. You added this document in order to rectify the January 30, the first Affidavit of Investigation, correct? And we will confront you with the document. Again, these are not our documents.

Mr. Lotoc. The document was signed by Agent Mark Calilung and subscribed and sworn to before Atty. Van Homer Angluben.

Mr. Vinluan. Okay. So, in other words—I just want to take a look on the date. Can we flash the date? So, when you received the February 5 Certification from the DOJ, you executed this, and it was February 10, correct?

Mr. Ligutan. Objection, Your Honor.

Mr. Vinluan. There is no question yet—

Mr. Ligutan. Misleading. It's Agent Calilung who executed that, and then you're asking you executed that; that's misleading. It's clear. On the record.

Mr. Vinluan. No. But this is part of the revised Affidavit of Investigation, which is—

Mr. Ligutan. Objection.

Mr. Vinluan. —If he knows—

Mr. Ligutan. The witness already said that they did not revise it. They just complied. Misleading, Your Honor.

Mr. Vinluan. Oh, you want to—Okay. Since—

The Presiding Officer. Counsels, counsels, kindly settle down.

The question, Attorney Lotoc, is: Did you add, in order to comply with the DOJ requirement, this affidavit signed by Agent Calilung? and is the date February 10? Meaning, in compliance with the DOJ observation, is this one of the affidavits that you added, and is it dated—

Mr. Lotoc. Although I don't have my record, it appears so, Your Honor, based on the document shown to me by the Counsel.

The Presiding Officer. Both as to the fact that it was one of the affidavits added, and as to the date, Attorney Lotoc?

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. Okay. Go on, Counsel.

Mr. Vinluan. All right.

I am showing you another affidavit. This is page 178, 179 of Annex G9. This now pertains to the Gierran Affidavit. This was also an attachment to the revised Affidavit of Investigation.

Mr. Ligutan. Objection again, Your Honor, please. The continuing use of "revised" when this witness already said that they did not revise anything, they just complied with the requirement. That's now misleading.

Mr. Vinluan. Your Honor—

Mr. Ligutan. Many times, over. Many times, over. Misleading.

Mr. Vinluan. All right. Just to put this issue at rest, Your Honor, I'm confronting the witness with the letter to Richard Anthony D. Fadullon dated February 11, 2025. And I want to read, Your Honor, the last paragraph thereof. It says, "To support our recommendation, attached herein is the revised Affidavit of Investigation." This is not our document. This is the NBI's document. Can Attorney Lotoc be confronted with this document, please?

The Presiding Officer. Attorney Lotoc, please answer.

Mr. Lotoc. Yes, Your Honor. It was signed by then Director Judge Jaime B. Santiago—

Mr. Vinluan. Can you confirm the last sentence for the record? Can you read it for the record?

Mr. Lotoc. "To support our recommendation, attached herein is the revised Affidavit of Investigation including its attachment—

Mr. Vinluan. Can you repeat the word before the word "Affidavit of Investigation," Your Honor, please?

Mr. Ligutan. Asked and answered, Your Honor.

The Presiding Officer. Asked and answered—

Mr. Vinluan. Then I'm not misleading after all. Anyway—

Mr. Ligutan. Objection, Your Honor. That's an unnecessary statement. Counsel, you're supposed to ask questions and not make these remarks.

The Presiding Officer. Counsels, kindly settle down. We're about to wind up the day.

Mr. Vinluan. All right. I'm showing you now pages, proceed 178 to 179 of the revised Affidavit of Investigation. Can you be confronted with that document? The date is February 10,

2025. I just want to confirm the date, if that is correct, as it appears from the document.

Mr. Lotoc. As it appears here, 10th day of February 2025.

Mr. Vinluan. Very well. I am showing you now pages 187 to 188 of Annex G9, also a Calilung Affidavit, which is an attachment to the revised Affidavit of Investigation.

Can we flash the date of that document?

Mr. Lotoc. What's the question—

Mr. Vinluan. Also, February 10—so, in other words, you attached this to your revised Affidavit of Investigation?

Mr. Lotoc. It appears here, 10th day of February 2025, sir.

Mr. Vinluan. And you attached it to your Affidavit of Investigation, correct?

Mr. Lotoc. As an attachment, sir.

Mr. Vinluan. All right. Very good.

Now, showing you 199 to 200 of Annex G9. Now, this is the Asuncion Affidavit. And I'll make a point in a couple of questions, Your Honor. Can you just confirm the date also, and if it was attached to your revised Affidavit of Investigation?

Mr. Lotoc. 10th day—It appears here, 10th day of February 2025.

Mr. Vinluan. All right. So, it was attached also to your revised Affidavit of Investigation?

Mr. Lotoc. Yes.

Mr. Vinluan. All right.

Now, this is the question. I'm showing you now page 112 of Annex G9. Another Calilung Affidavit. Did you also add this to rectify your January 30 Affidavit of Investigation or the first Affidavit of Investigation? We have here a soft copy affidavit of transcription. Was this also a document that was lacking in your first Affidavit of Investigation, which you added to your revised Affidavit of Investigation?

Mr. Ligutan. Again, Your Honor, registering my continuing objection as to the relevance of this series of questions that is consuming the entirety of the Defense's turn to cross-examine this witness. What's the relevance?

The Presiding Officer. Noted. Same ruling. Witness may answer.

Mr. Lotoc. Again, Your Honor, the—

Mr. Vinluan. Was this also part of the revised Affidavit of Investigation to rectify the defects that we highlighted a while ago?

Mr. Lotoc. No. There was no rectification; there was no defect. Again, this is part of the compliance given us by the Department of Justice for us to comply.

Mr. Vinluan. All right. If you want to use that term. So, in other words, after you received the Feb. 5 Certification, you—this was also one of the documents that you attached to your revised Affidavit of Investigation, correct?

Mr. Lotoc. I believe it's a part of the compliance.

Mr. Vinluan. All right.

My issue is this: let me direct your attention to the bottom portion of this affidavit. It says here, "IN WITNESS HEREOF, I have—Can you zoom that in? I can't read it. The date is February 3, 2025. Can you zoom that in? So, in other words, you are trying to convince this Court that when you—

Mr. Ligutan. What's the question?

Mr. Vinluan. This is the question. You're trying to convince—are you trying to convince this Court that you executed this affidavit prior—

Mr. Ligutan. Objection. Misleading—

The Presiding Officer. He did not execute—

Mr. Ligutan. He did not—

Mr. Vinluan. No. Sorry. You attached this affidavit prior to the Feb. 5, 2025, certification?

Mr. Lotoc. Prior to what, Your Honor? February 3?

Mr. Vinluan. Okay. You received a certification on February 5, 2025, correct?

Mr. Lotoc. Yes.

Mr. Vinluan. And you said that you added affidavits after receipt thereof. Now, you mentioned a while ago that this was one of the affidavits that you added, and yet the date came prior to the DOJ certification dated February 5, 2025. Do you confirm this?

Mr. Lotoc. I think *ang makakasagot po niyan ay si Agent Calilung*, Your Honor, *kasi may mga attachment na kami* during the first affidavit *na nai-include na doon sa mga nire-require ng prosecutor na nandoon na*. and then *noong nag-issue ang prosecutor, gaya po ng number two*, the press briefing—

Ito, Your Honor, *gaya ng number one*, “There is no affidavit of the persons who recorded the video entitled ‘VP November 23 Presscon at Batasan through OBS.’” When in truth and in fact, *kasama po na inattach na doon iyong Affidavit of Authentication doon sa unang affidavit*.

Mr. Vinluan. So, in other words, you’re telling this Court that the DOJ made this mistake that there was no—

Mr. Lotoc. Not necessarily, Your Honor. *Puwedeng hindi nakita ng prosecutor na naka-attach na nga kasi nandoon po sa date na January 30 iyong execution ng Affidavit of Authentication*.

Mr. Ligutan. Your Honor, before we continue, I’m noticing something. The Defense in the process has been presenting portions of an alleged document, and they’re making notes. I don’t think that’s proper, Your Honor. When you present a document, you present the document as is. You don’t make annotations—

Mr. Vinluan. Exactly, Your Honor.

Mr. Ligutan. “Note #2,” that is not proper, Your Honor.

Mr. Vinluan. We are presenting the actual document, and we’re confronting it. This is just to address, Your Honor, what was intimated by the senators, that they want to be able to follow the discussion, Your Honor, using the screen.

Mr. Ligutan. If I may? My problem with that, Your Honor, please, because it’s like you’re presenting your observation on a document, and you’re showing that to the Court, when what you’re supposed to do is just to confront this witness with a document without any annotation. That’s just my observation, Your Honor.

The Presiding Officer. Noted.

Counsel for respondent, please proceed.

Mr. Vinluan. Meaning—but if you go to the contents, right, it says here, and let me read, “The press briefing conducted on October 18, 2024 was not recorded and/or stored in a DVD (no video submitted) and there was no TSN of the said briefing x x x.” And do you confirm now that this note on February 5 was actually addressed by the affidavit submitted by Agent Calilung?

Mr. Lotoc. Come again, sir.

Mr. Vinluan. This note was satisfied by the submission of the affidavit by Agent Calilung.

Mr. Lotoc. What affidavit, sir?

Mr. Vinluan. The Affidavit of Transcription dated February 3.

Mr. Lotoc. But can I see the affidavit, sir, *para lang sure na ano*—

Mr. Vinluan. The one that we showed a while ago. It pertains to the same. Because if you read here, if I may be allowed to read paragraph 1? Can you zoom that in? Or paragraph 2.

At this juncture, a document was shown on the screen

It says there, "In relation to the on-going investigation, the undersigned was tasked to transcribe the screen-recorded video of the Press Conference of VP Sara on 18 October 2024 x x x." So, in other words, this was exactly what the DOJ required, correct?

Mr. Lotoc. Yeah. Based *sa* certification *na inisyu, ang sabi ng* DOJ, the press briefing conducted on October 18, 2024 was not recorded and/or stored in a DVD, there was no TSN of the said briefing, and the necessary affidavit of the person taking the TSN.

Mr. Vinluan. And yet, on its face, this was—because the date is February 3 on its face—this was executed prior to the February 5, 2025 certification, which noted this as—requirement.

Mr. Lotoc. As I said, Your Honor, *ang nag-uusap ho diyan, ang prosecutor at saka si* Agent Calilung. *May mga attachment ho kasi noong* first affidavit *na hindi napansin ng* prosecutor, so—

Mr. Vinluan. So? That's your answer. Okay.

But the thing is, if I—Let's go back to the IDF, Investigation Data Form. Now, the docket number that is indicated here is XVI-INV-25C-00048. But in the February 5, 2025 certification—Can we flash that?

At this juncture, another document was shown on the screen

The docket number is different—appears to be different. It's XVI-EVAL-INV-25A-00049. Moreover, in the subsequent DOJ certification dated February 14, 2025, the docket number is also XVI-EVAL-INV-25A-00049. Do you confirm the difference in the docket numbers?

Mr. Lotoc. Your Honor, no personal knowledge, and DOJ *ho ang naglagay ng* docket number *na iyan*.

Mr. Vinluan. But you confirmed that it was different? These are all received copies.

Mr. Ligutan. Asked and answered, Your Honor, please. Asked and answered; argumentative.

Mr. Vinluan. No. The answer is not responsive.

The Presiding Officer. Asked and answered, Counsel. Move on.

Mr. Vinluan. So, in other words, despite the discrepancy in numbers, you still decided to push through with the case?

Mr. Lotoc. What, Your Honor?

Mr. Vinluan. Despite the discrepancy in docket numbers, you still decided to push through with the handling of this case, correct?

Mr. Lotoc. Again, I cannot confirm on the numbers because it's the DOJ who placed that number, sir.

Uulitin ko ho, mas maganda hong tanungin ninyo ang Department of Justice, *sir, diyan*.

Mr. Vinluan. But insofar as you are concerned—you are the complainant in this case, correct? Insofar as you are concerned, what is the correct docket number? Is it the one ending in 0049?

Mr. Ligutan. I will now object. I will now object.

Mr. Vinluan. Or is it the one ending in 004—What do you use, Your Honor?

Mr. Ligutan. I will now object on the ground of misleading. You showed two docket numbers which appear different, and you have yet to establish that there is a wrong one and a correct one, and you have not established that. This witness said he is not aware of that. You have not established that there is something to be corrected. That's why the objection now, Your Honor, please, that's misleading. You assume that something is wrong that has been—that has to be corrected. Misleading.

The Presiding Officer. Counsel, witness is not competent to answer your question. He already responded that this is a DOJ form, that he is not aware, and that it might be proper to ask the DOJ instead at the proper time. Move on with another point, Counsel. I think we've—unless there's another inconsistency, you can move on to another inconsistency or another point.

Mr. Vinluan. Your Honor, just one last on this point.

But in terms of what you followed—because, as we know, you submit subsequent pleadings—as to these two docket numbers, which one did you follow: the 00048 or the 0049?

Mr. Lotoc. Well, I don't have the record here, Your Honor. If I can check my own record.

The Presiding Officer. Do you have it with you right now?

Counsel, can you give him a copy of his record?

The Chair finds that relevant because, in filing additional pleadings or other materials to the DOJ, they need to indicate the NPS number for reference. So, which one are you following? Which one did you follow subsequent to this?

Mr. Lotoc. Yes, sir.

Well, *wala ho rito*, sir. *Ang naalala ko*, sir, *iyong sa* investigation data form dated February 11—

The Presiding Officer. *Ano pong nakalagay na* NPS docket number *doon? Mayroon po ba?*

Mr. Lotoc. *Iyon po*, Your Honor, *ang hindi ko ma-confirm, kung anong* NPS docket number.

Mr. Vinluan. Your Honor, may we just manifest for the record that the witness is perusing the IDF, investigation data form, that is attached to the Articles of Impeachment, Annex GGGGGGGG?

The Presiding Officer. So noted.

Mr. Lotoc. Well, this is the document from the defense, Your Honor.

I cannot confirm, Your Honor. As I mentioned, I cannot confirm.

The Presiding Officer. Move on, Counsel.

Mr. Vinluan. But this is as received, correct? So, in other words, you just received the document, and you didn't bother to check—

Mr. Ligutan. Argumentative; objection.

The Presiding Officer. Counsel, let him finish, but indeed it is argumentative.

Move on to the next question, Counsel.

With the permission of Senator-Judge Tulfo (R), are you winding up or not yet, counsel? Not yet?

Mr. Vinluan. Far from it, Your Honor.

The Presiding Officer. Then Senator-Judge Tulfo (R) You have two minutes.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE TULFO (R)

Senator-Judge Tulfo (R). Okay. Mr. Witness, a lot of questions were asked to you, regarding the filing with the office of the DOJ, in particular regarding the docketing, dating, subscription of an investigation data form. Now, can you tell this court what exactly is your role, and what did you do in relation to the filing of this investigation data form? *Anong pinaka-role mo talaga dito, iyong papel mo talaga dito?*

Mr. Lotoc. Yes, Your Honor. I instructed the executive officers as well as the agent on case to file our referral to the Department of Justice. So, *silang na ho ang nag-ayos niyan*, sir, insofar as to investigation data form. Insofar as other requirements, *ang instruction ko* is comply with the requirement given by the Department of Justice, and then you submit it, and then *kung ano man iyong kanilang guidance*, you comply with it.

Senator-Judge Tulfo (R). Okay, Mr. Presiding-Judge, in my humble opinion, I think the errors in the investigation data form should be answered by the receiving office, and, I think, he is not, *hindi siya talaga dapat sumagot sa mga katanungan na ibinabato sa kanya ngayon. Mukhang hindi siya ... we did not qualify that sumasablay-sablay itong taong ito.* Thank you.

The Presiding Officer. Noted. Senator-Judge Erwin Tulfo. You have two minutes, sir.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE TULFO (E)

Senator-Judge Tulfo (E). Quick question, Mr. Presiding Officer, to the witness and the prosecution or prosecutor here.

Mr. Witness, *kailan mo ba talaga nai-file itong kaso laban kay VP?*

Mr. Lotoc. *Iyong una, ang affidavit ko, Your Honor, nag-file kami, January 3, if I'm not mistaken.*

Senator-Judge Tulfo (E). *Taon po, anong taon?*

Mr. Lotoc. 2025, sir. And then, *nag-require po ang Department of Justice ng compliance dahil sabi nga nila noong una na "certification insufficient for conduct of preliminary investigation and must be referred for a case build-up."* Now, *ang ginawa po namin, kinomplay po namin iyong kanilang mga requirements and then, come 11 February 2025, ni-resubmit po naming iyong aming affidavit of investigation, Your Honor.*

Senator-Judge Tulfo (E). *Nasaan na po itong kaso? Naisampa na po ba ng DOJ o hindi pa?*

Mr. Lotoc. I think, ongoing po ang preliminary investigation.

Senator-Judge Tulfo (E). One year preliminary, one year, over one year. January to January is 1, February, March, April, May, June, July. Is it normal for the DOJ to conduct a preliminary about over a year, Mr. Witness?

Mr. Lotoc. *Hindi ko po masasagot, sir.*

Senator-Judge Tulfo (E). *Hindi mo masagot. Could it be, hindi po kayo nagtatanong sa kanila,*

Senator-Judge Tulfo (E). *Hindi kayo nagtanong po sa kanya, sa kanila kung bakit? May kulang pa po ba DOJ? Ano po ang kakulangan?*

Mr. Lotoc. *Kapag ang referral po, Your Honor, is nasa DOJ na, hands off na ho kami doon. Sila ho ang magde-decide kung papaano nila ipa-process iyong dokumento.*

Senator-Judge Tulfo (E). *Kaya nga, hindi po kayo nagtataka? Hindi kaya, sir, dito po sa mga nakita nating ebidensiya rito, mukhang sablay-sablay, parang minadali ho ninyo? Kaya, nagkakaproblema ho tayo sa mga korte na idi-dismiss ang mga kaso dahil kulang ang mga dokumento, parang minadali.*

But, nevertheless, you don't have to answer me that. Let me direct my question now to the prosecutor.

Mr. Prosecutor, *ito pong mga ebidensyang nakita ho natin, hindi ba ninyo ni-review, na may mga nakita, hindi ninyo nakita itong inconsistencies doon po sa sinasabi ng defense na pinirmahan, nai-subscribe, pero mas maaga iyong, ika nga, pagtanggap?*

Mr. Ligutan. Your Honor, as to whether we peruse that, Your Honor, please, unfortunately, we were not party to the preparation of this.

Senator-Judge Tulfo (E). No, but this was submitted as evidence, right?

Mr. Ligutan. Yes, Your Honor, please. Yes, Your Honor, please, that's why, the witness is more than competent to answer that. But the main point of the prosecution, Your Honor, please, they already filed and complied with these requirements and addressed these defects, if you may, by filing a February 10, 2025 affidavit of investigation. That's why, if you have observed, our good Senator-Judge, we have been objecting as to the relevance of this exactly because what is in

contention now is the latest affidavit of investigation that is now pending before the DOJ, Your Honor, please.

Senator-Judge Tulfo (E). All right, and just a quick manifestation to the NBI.

Mr. Witness, next *time po kapag nagsampa ho kayo ng kaso*, make sure—

kaya nga I was asking you *kanina*, I already have this feeling that something is wrong, *dahil sobrang tagal na sa DOJ ng kaso ninyo*. There's something wrong with the case. *Siguro po*, next time, make sure *na iyong kasong isasampa ninyo* is airtight, *tama po?* *Kasi, madi-dismiss iyan, iyong mga kaso na medyo hindi po tight talaga ang kaso, ano po?*

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Tulfo (E). *Sayang naman iyong inyong pinaghirapan. Doon, ang dami nating nakita, totoo po na nagmura ang Bise Presidente, nagbanta ang Bise Presidente. Sang-ayon naman po ako, nakita ko naman po iyon, pero pagdating usually sa technicalities tayo nagkakaproblema. Don't forget that quick manifestation.*

Mr. Lotoc. Yes, Your Honor, thank you.

Senator-Judge Tulfo (E). Thank you, Mr. Presiding Office.

The Presiding Officer. Noted, Senator-Judge Erwin Tulfo.

Senator-Judge Alan Cayetano, you have two minutes, sir.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE CAYETANO (A)

Senator-Judge Cayetano (A). Less than two minutes. Quick clarification lang. So, January 30, *iyong unang* affidavit of investigation, *tama?*

Mr. Lotoc. Yes, sir.

Senator-Judge Cayetano (A). January 30, *tapos* February 5, *iyon iyong sagot ng DOJ na may* seven notes.

Mr. Lotoc. Yes, Your Honor.

Senator-Judge Cayetano (A). At February 5, *iyon din ang* filing ng impeachment complaint against Vice President Sara Duterte. And then, which you said, *wala kang knowledge doon*—I'm just looking at the dates. Then February 10, *iyong revised na ang ginamit ng DOJ* word "insufficiency." One to seven, *napunuan* or whatever the term is.

So, *ang sagot ng witness, sagot mo, iyong February 3, baka attachment lang kasi noong una iyon.*

Mr. Lotoc. Yes, sir, I think so.

Senator-Judge Cayetano (A). *Pero hindi siya pwedeng attachment noong una kasi January 30 isinabmit iyon. So, hindi ka naman pwedeng mag-submit ng January 30 na attachment mo February 3. So, you went three days or four days into the future kasi may 31 ang January.*

Mr. Lotoc. Well, sir, *siguro ang makakasagot po niyan si Agent Calilung, sir, since siya ang signatory doon.*

Senator-Judge Cayetano (A). I don't think you can answer it. *Ang point ko lang hindi logical na it was an attachment sa January 30 because wala pang February 3. So, hindi pwedeng post-dated affidavit.*

Second question lang: *Sa parehong affidavit of investigation na sinabmit, walang input doon ang PSG-ISAF, PSC-ISAF, CIDG. So, kayo lang iyon.*

Mr. Lotoc. Statement, Your Honor, *iyong in-attach po namin.*

Senator-Judge Cayetano (A). Yes. So, what I meant is that, questions *kanina ng* many here, including the Senate President, Senator-Judge Gatchalian, *na* did you consult the investigation ng PSC, et cetera? So, *noong nai-file ninyo ito, walang input directly or indirectly ang Presidential*

Security Command, ang ISAF, ang PNP at CIDG, and anyone else sa National Security Council. So, purely NBI ito.

Mr. Lotoc. No personal knowledge kung mayroong correspondence ang ibang agency with our director.

Senator-Judge Cayetano (A). Sorry. *Hindi kayo pwedeng walang personal knowledge kasi ikaw ang nag-file, ikaw ang nakapirma doon sa affidavit.* So, you would know whether doon sa affidavit na iyon, they had input or not. No one else would know because you're the one who signed it.

Mr. Lotoc. Yes, Your Honor, insofar as cybercrime division is concerned, *kami po iyon ang gumawa noon.*

Senator-Judge Cayetano (A). Yes. So, the answer is they have no input.

Mr. Lotoc. *Hindi ko alam kung...* Well, insofar as the affidavit is concerned, *amin po iyon,* Your Honor. Now, kung correspondence between other agencies and the NBI, *hindi ko na po alam kung may usapan iyang director at saka iyang ibang agency.*

Senator-Judge Cayetano (A). Thank you, Presiding Officer. Thank you.

The Presiding Officer. Thank you, Senator-Judge Cayetano (A).

Senator-Judge Hontiveros; thereafter, Senator-Judge Ejercito, am I correct, JV? Senator-Judge Hontiveros is recognized and may proceed. You have two minutes, ma'am.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE HONTIVEROS

Senator-Judge Hontiveros. *Salamat po,* Mr. Presiding Officer. Less than two minutes din po.

Atty. Lotoc, *sa gitna ng DOJ certification dated February 5, 2025, at iyang pag-submit ninyo ng kumpletong affidavit/ of investigation na tinanggap na ng DOJ, may nagbago po ba sa diumanong sinabi ng Bise Presidente?*

Mr. Lotoc. Wala po, Your Honor.

Senator-Judge Hontiveros. *Wala. At sa gitna ng DOJ certification dated February 5, 2025, at iyang pag-submit ninyo ng kumpletong affidavit of investigation na tinanggap na ng DOJ, may nagbago ba sa rekomendasyon ng NBI?*

Mr. Lotoc. *Wala po,* Your Honor.

Senator-Judge Hontiveros. *Salamat po,* Mr. Presiding Officer.

The Presiding Officer. Thank you, Senator-Judge Hontiveros.

Senator-Judge Ejercito, you may proceed, Sir, when you're ready. You have two minutes.

CLARIFICATORY QUESTIONS OF SENATOR-JUDGE EJERCITO

Senator-Judge Ejercito. Thank you, Mr. Presiding Officer.

Atty. Lotoc, *dagdag clarification lang.*

Mr. Lotoc. *Opo,* Your Honor.

Senator-Judge Ejercito. The DOJ pointed out in its certification, *iyong pinakita kanina, noong February 5, 2025,* the NBI is not the proper offended party to file a complaint for grave threats in its initial referral for case buildup. As a result of/ the referral for case buildup by the DOJ, did the NBI later submit/ affidavits or statements from the offended parties, namely si Presidente Marcos, First Lady, *at si former Speaker Martin Romualdez?*

Mr. Lotoc. *Hindi na po,* Your Honor. *Noong sinubmit ho namin iyang aming referral, iyon po iyang last phase noong investigation,* and I think *iyong Prosecutor na po ang mag-i-issue ng summons sa mga parties involved. Ang purpose lang ho namin,* to comply with the requirements of preliminary investigation po.

Senator-Judge Ejercito. But, earlier *sa inyong* statement *sinabi niyo na ang isa sa mga factor sa pag-evaluate ng threat* if it is really serious, is the determination of the relationship between the parties. *Sinabi n'yo po iyan kanina.*

Mr. Lotoc. Yes *po*, Your Honor.

Senator-Judge Ejercito. So did you try, at least, to get the statements of the President, the First Lady, or the former Speaker of the House?

Mr. Lotoc. *Ang pinagbasehan po namin*, Your Honor, *iyong* official statement *po nila doon sa website ng Presidential Communications Office*; and then *iyong* public statement *ng* former Speaker during the Plenary session on November 25, 2024, Sir.

Senator-Judge Ejercito. So that was the basis, *iyon pong nasa PCO website*, so, you did not bother to get the statements from the offended parties?

Mr. Lotoc. I think, *noong makita ho namin iyong video na nag-issue ng statement iyong Presidente, na-establish ho namin iyong requirement kung ano iyong treatment ng Presidente nung marinig niya iyong utterances ng Bise Presidente.*

So, *noong makita namin iyon, may reaksiyon. Ang sabi nga n'ya is "nakababahala."* Based *sa aming* primary jurisdiction, *nag-start ho kami ng investigation*, Sir.

Senator-Judge Ejercito. *Kanina rin, tinanong kayo tungkol doon sa Revised Affidavit of Investigation*, which you submitted after the DOJ referred to the case for case build up in a certification, *doon nga sa February 5, 2025.* You mentioned that it's just a compliance on the part of the NBI?

Mr. Lotoc. Your Honor, *ito ho iyong part ng evaluation at saka case build-up process. 'Pag nakita ho ng Prosecutor na may kulang pang mga attachment, para ho mabuo, maging pulido iyong kaso, nagbibigay ho sila ng mga requirement. "NBI, kulang ka nito, kulang ka nito, i-comply mo ito para mai-docket natin sa preliminary investigation."*

Senator-Judge Ejercito. So *normal lang po iyon sa investigation agency na mag-submit ng additional evidence or revise the affidavits after the case is referred back by the DOJ for case build-up?*

Mr. Lotoc. As part *po ng* evaluation at case build-up process, *nagtutulungan ho diyan*, Your Honor, *iyong* Prosecutor, and then *iyong* Investigator *base doon sa requirement ng DC 15*, Your Honor.

Senator-Judge Ejercito. Last point, Mr. Presiding Officer.

You mentioned that the case before the DOJ is still ongoing?

Mr. Lotoc. Yes *po*.

Senator-Judge Ejercito. So as of today, Attorney Lotoc, there is still no determination by the DOJ if the case referred by the NBI should be filed in court because there is *prima facie evidence* of reasonable certainty of conviction?

Mr. Lotoc. Well, Your Honor, *wala pa po kaming nare-receive na any updates from the Department of Justice. Ang alam po namin is nasa PI pa ho siya—preliminary investigation process*, Your Honor.

Senator-Judge Ejercito. Thank you, Attorney Lotoc; thank you, Mr. Presiding Officer.

The Presiding Officer. Noted and entered into the *Record*.

Attorney Vinluan, you may continue with your cross.

CROSS EXAMINATION OF THE WITNESS

(Continuation)

Mr. Vinluan. Your Honor, I believe that there's a hanging question insofar as the NBI is concerned. What docket number did they follow, 00048 or 0049?



The Presiding Officer. What is the response of the witness, if he knows?

Mr. Lotoc. Your Honor, I don't have the complete affidavit. I cannot confirm, Sir.

The Presiding Officer. So you do not know what NPS docket number the NBI is using whenever it files subsequent pleadings to the DOJ regarding this case?

Mr. Lotoc. Definitely, there is that IDF, there is that NPS. *Hindi ko lang po*, Your Honor, *ma-ensure kung anong NPS number po 'yon*.

The Presiding Officer. *Ang ginagamit ninyo?*

Mr. Lotoc. *Ang ginamit pero nandoon po 'yon*, Your Honor, *naka-attach po iyon sa Affidavit of Investigation*.

The Presiding Officer. Proceed, Counsel.

Mr. Vinluan. So, you cannot confirm which between the two.

Mr. Lotoc. As of the moment, *hindi ko po hawak iyang*—

Mr. Vinluan. But what if we show you, as I said, what if we show you the two certifications, can you be guided?

Mr. Ligutan. Asked and answered, Your Honor.

Mr. Vinluan. What's the answer?

The Presiding Officer. Counsel, you already looked at the documents earlier before the Senator judges intervened, and he couldn't—

Mr. Witness, Attorney Lotoc, what document did you peruse earlier? The annex to the impeachment complaint, right?

Mr. Lotoc. Annex to the—

The Presiding Officer. That was the document shown to you by Counsel for the Respondent earlier?

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer. Upon your perusal of that document, can you say what the NPS Docket Number is, that NBI uses?

Mr. Lotoc. Your Honor, *isa lang ho ang nandito na IDF*. So, *isa lang yung nandito*, Your Honor, *hindi ko ho makita iyang isa pa*. *Ang nandito na naka-attach na IDF is iyang 11 February 2025*. So *kung ito ho ang tinutukoy, ang nakasulat ho rito na NPS Docket Number, 16-Inv-25C-00048*, Your Honor.

Mr. Vinluan. Your Honor, the two certifications also has docket numbers. Can we just ask him to peruse this so that he can make up his mind, which of the two docket numbers, they followed.

The Presiding Officer. Then confront him with the document, Counsel.

Mr. Vinluan. Your Honor, we are showing.

The Presiding Officer. What is your Co-Counsel showing him?

Mr. Vinluan. We are showing the document, February 5, and February 14, which, as I have mentioned, contains 0049 as the ending docket number. May we just know, Your Honor, if that was the docket number that was followed by the NBI following the filing?

The Presiding Officer. Before you answer, Attorney Lotoc.

Counsel, the first form—can you bring it up again—that's not an investigation form, right? That's a DOJ form.

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. Your Honor, this is a receiving copy because all of these were subpoenaed again from the NBI but not from the DOJ. So, these were transmitted to the House Committee on Justice by subpoena.

The Presiding Officer. By who, the NBI?

Mr. Vinluan. Submitted by the NBI. That's correct, Your Honor. And this was the basis that was used by the House Committee on Justice in filing the Articles of Impeachment before this Impeachment Court.

So in other words, Your Honor, the agencies involved herein are just four: the DOJ, the NBI, the House Committee on Justice, and the Senate. And the line of questioning is very simple. We want to get to the bottom of the truth: how were these documents altered, if at all?

Mr. Ligutan. Objection, Your Honor.

The Presiding Officer. There's no basis for saying it's altered.

Mr. Ligutan. Exactly.

The Presiding Officer. Attorney Lotoc, what is your observation?

Mr. Lotoc. Yes, Your Honor. *Isa lang ho iyong nandito na IDF. Uulitin ko po*, Your Honor, *mayroon na ho ditong NPS Docket Number, at iyong date po* is 11 February 2025, Sir.

The Presiding Officer. *At iyong isa?*

Mr. Lotoc. *Iyong isa, iyong sa* certification, Your Honor, 'yung—

The Presiding Officer. *Hindi siya IDF?*

Mr. Lotoc. *Hindi sya* IDF, Sir.

The Presiding Officer. That's what I was asking about earlier.

Mr. Lotoc. Ang certification *noon ipinapakita sa akin*, Your Honor, *hindi po* IDF *na isa*.

Mr. Vinluan. We're trying to show the Feb. 14, the latest certification for the Revised Affidavit of Investigation, Your Honor.

So, did you follow that docket number considering that, according to you, that is the latest certification that you received from the DOJ?

Mr. Lotoc. Your Honor, *iyong nandito na ipinapakita sa akin* is *iyong* certification from DOJ dated 05 February 2025, and Investigation Data Form dated February 11, 2025.

Mr. Vinluan. So which is which, Attorney Lotoc? Is it 00049 or 48? The earlier one or the latter one?

Mr. Lotoc. I have here the second certification from the DOJ, which says "sufficient for conduct of preliminary investigation, reference number 16-EVAL-25A-00049, Sir.

Mr. Vinluan. So, the 49 is the latest one, and it's thus valid?

Mr. Lotoc. Yeah, I believe so. *Ito iyong may* "Sufficient for—"

Mr. Vinluan. All right. Okay. Now, let me direct your attention to the subpoena issued against the Vice President on April 29, 2025. This is the subpoena, and the issue is that the docket number is 0048. In other words, VP Sara was made to answer to the earlier case that was docketed as such. Do you confirm this? You were part of this, correct? As the complainant—

Mr. Ligutan. Your Honor, can I object now, Your Honor, please? If I may, Your Honor, please.

Mr. Vinluan. What's your objection?

Mr. Ligutan. If I may, I will explain.

Your Honor, I would like to object, Your Honor, please. This witness is incompetent because he is now being confronted with docket numbers supplied by agencies other than him.

Mr. Vinluan. If he knows, Your Honor. He was the complainant. Your Honor, he was the supervising agent.

The Presiding Officer. Counsel, this is a DOJ document. Objection sustained. Witness is not competent to answer this case, you can call your witness to testify, as these documents belong to the DOJ. Kindly move on, Counsel. We have been at this for quite some time.

Mr. Vinluan. I will move on.

My next question is, the NBI's own evaluation is merely recommendatory in nature, correct?

Mr. Lotoc. Yes, Your Honor, recommendation.

Mr. Vinluan. Okay. It is not binding upon the DOJ, correct?

Mr. Lotoc. The DOJ will assess, Your Honor, and evaluate the recommendation.

Mr. Vinluan. All right. But it is not binding upon the DOJ.

The Presiding Officer. Kindly answer the question, Attorney Lotoc. You're a lawyer; you know the answer to this question.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. It is not binding upon the courts, correct?

Mr. Lotoc. DOJ or court?

Mr. Vinluan. The recommendation is not binding upon the courts, correct?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. So, in Filipino, *para maintindihan ng lahat, kahit sabihin ng NBI—*

Mr. Ligutan. Ask and answered, Your Honor. Asked and answered.

Mr. Vinluan. *Kahit sabihin ng NBI na may grave—*

Mr. Ligutan. Objection. He's just translating.

Mr. Vinluan. The question is not yet—

Mr. Ligutan. But the same question—

Mr. Vinluan. All right. *Kahit sabihin ng NBI na may grave threat or inciting to sedition, it is not binding upon the DOJ, correct?*

Mr. Ligutan. Asked and answered.

The Presiding Officer. The question earlier was with respect to the courts. Insofar as the DOJ is concerned, Mr. Witness?

Mr. Lotoc. Insofar as the DOJ is concerned, the DOJ will evaluate, and *'pag kulang pa ho iyong mga requirements—*

The Presiding Officer. Mr. Witness, are your findings binding on the DOJ?

Mr. Lotoc. Not necessarily, Your Honor.

The Presiding Officer. So, no.

Mr. Vinluan. No. All right. So, in other words, *rekomendasyon lang ang kayang ibigay ng NBI, correct?*

Mr. Ligutan. Asked and answered.

The Presiding Officer. Asked and answered, Counsel.

Mr. Vinluan. All right. In fact, you attended hearings before the House Committee on Justice in April of this year, correct?

Mr. Lotoc. I think so. Yeah, *nag-appear ako pero hindi ko sigurado kung anong date iyon.*

Mr. Ligutan. Your Honor, I would like to object to this, Your Honor, please. Your Honor, this—

Mr. Vinluan. Asked and answered, Your Honor. We need to move on to another point.

Mr. Ligutan. No, wait, wait, wait. He is being confronted with—

The Presiding Officer. Counsel, can we wait for the Counsel for the Prosecution?

Mr. Ligutan. Your Honor, this is highly improper. This could fly if this is a Committee of Justice hearing, but this, with all respect, is still a court of law. You cannot present clippings like that and confront the witness with that. That's not proper. You should be presenting documents. You cannot do props. Your Honor, this is highly irregular. Ask questions, elicit facts of this witness, don't use props.

Mr. Vinluan. Can I get a ruling on that, Your Honor, because this is for the purpose of—

The Presiding Officer. Counsel, he's not yet asking any questions. He's just laying the basis by asking if he attended previous hearings in the House. To test the credibility, perhaps to elicit either contradictory statements or confirmatory statements.

Counsel, please proceed.

Mr. Vinluan. And one of the committee members there, I think it was Representative Cendaña, even asked for the elements of Inciting to Sedition. Do you recall that?

Mr. Lotoc. I think so, Sir.

Mr. Vinluan. He also asked for the elements of grave threats, correct?

Mr. Lotoc. Yeah, if I remember it right. *Hindi ho ako ang tinanong yata.*

Mr. Vinluan. All right. It was another person, but also from the NBI, correct?

Mr. Lotoc. I think so, Sir.

Mr. Vinluan. All right. And the NBI explained the elements of these felonies during that hearing, correct?

Mr. Lotoc. *Hindi ho ako ang nag-explain noon, Sir.*

Mr. Vinluan. But another person from the NBI did, and you were present, correct?

Mr. Lotoc. I think so, Sir.

Mr. Vinluan. In fact, Representative Luistro even asked that the salient portions of your Affidavit of Investigation be flashed on the screen during that hearing, correct? If you can recall.

Mr. Lotoc. *Siguro, Your Honor, pero hindi ko maalala.*

Mr. Vinluan. You're not sure. That's okay. And when asked whether VP Sara's acts constituted Grave Threats and Inciting to Sedition, the NBI answered in the affirmative, correct?

Mr. Lotoc. I think so, Sir.

Mr. Vinluan. Okay. Now, my next question is very simple. Did the NBI, at any point in that hearing, clarify with the House Committee on Justice and the Filipino people watching then, that its own evaluation is not binding upon the DOJ? But did you clarify?

Mr. Lotoc. I don't think— *wala pong tanong na ganoon sa amin, Sir.*

Mr. Vinluan. So, you were not able to clarify that, correct?

Mr. Lotoc. *Wala ho kasing tanong. Anong ika-clarify po, Sir?*

Mr. Vinluan. Okay. So, you were not given an opportunity to clarify your own evaluation.

Mr. Ligutan. Your Honor—

Mr. Vinluan. This is a different question. Wait for the question. That this is not binding upon the courts. So, was there an opportunity for you to explain that it was not binding upon the courts?

Mr. Lotoc. *Wala pong question doon sa amin, Sir.*

Mr. Vinluan. All right. So, in other words, there was no opportunity in that hearing to clarify that your evaluation was merely recommendatory?

Mr. Ligutan. Asked and answered, Your Honor, please. Four times over.

Mr. Vinluan. No. The first question was about binding upon the DOJ. The next question is binding upon the courts. The next question is the nature of the recommendation. Did you clarify, at any point in that hearing, that your recommendation was merely recommendatory?

The Presiding Officer. The question was did he clarify or not? Answer kindly, Attorney Lotoc.

Mr. Lotoc. *Wala pong question sa amin na ganoon, Sir. So, wala po kaming na-clarify doon.*

Mr. Vinluan. Very well. Let's do that now. For the benefit of this honorable Court and the Filipino people watching, when the NBI evaluated VP Sara's acts to be Grave Threats or Inciting to Sedition, is that binding upon the DOJ?

Mr. Ligutan. Your Honor, asked and answered. This is now the third cycle.

The Presiding Officer. Counsel, already asked and answered several times.

Mr. Vinluan. I'll move on, Your Honor.

Will you agree with me that, according to our laws, the authority to determine guilt or innocence of a person lies with the courts?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Not with the DOJ?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Not with the NBI?

Mr. Lotoc. Yes, Sir.

Mr. Ligutan. I will now object, Your Honor, please. If I may—

Mr. Vinluan. Competent enough to answer, Your Honor.

The Presiding Officer. Counsel, kindly settle down. I know it's late, and I know both parties are tired. Kindly wait for the Chair to recognize you before speaking.

Mr. Ligutan. If I may be recognized, Your Honor, please.

The Presiding Officer. Yes, Attorney Ligutan.

Mr. Ligutan. Yes, Sir. I am now objecting on the grounds of the relevance of this series of questions. The defense might forget that we are an Impeachment Court, okay? And whatever the DOJ may rule on, whatever the Court may rule on the same complaint filed by the NBI against the Vice President, it has no bearing to this impeachment complaint. What I'm saying is— what I'm saying is the issue in this case, the question is: did the Vice President betray public trust when she declared before the public that she already contracted—

Mr. Vinluan. Your Honor, objection. This is not the proper venue for any manifestation on the part of the Prosecution.

The Presiding Officer. Let the Counsel finish.

Kindly state your objection, Counsel?

Mr. Ligutan. Relevance, exactly, Your Honor, please. As to what the Court will do, as to what the DOJ will do on the complaints filed by the NBI, they have nothing to do with the issue in this case. The question is whether the Vice President betrayed public trust by contracting an assassin to kill the President, the First Lady, and the Speaker of the House.

Mr. Vinluan. Objection again, Your Honor. It's not the proper—

Mr. Ligutan. Irrelevant.

The Presiding Officer. Counsel, you know what you're doing as well. So kindly limit it to your objection.

Mr. Ligutan. Irrelevant, Your Honor, please.

The Presiding Officer. Counsel, for the respondent, the Court gets it. Okay. You don't have to spend that much time on this matter. The Court gets it. And I think the senator-judges are well aware of the limitations of the power of the NBI and DOJ, as well as the power of the Court to decide the innocence or guilt of the parties. You've established that point. Move on.

Mr. Vinluan. In other words, it is only the proper courts that can determine the guilt or innocence of VP Sara, in terms of Grave Threats or Inciting to Sedition.

The Presiding Officer. Counsel, Counsel—

Mr. Vinluan. It's a direct question, Your Honor.

The Presiding Officer. Counsel, asked and answered. Kindly move on, Counsel. Again, the Court gets it. I think the Senator-Judges get it as well, as well as the people who are listening.

Mr. Vinluan. All right.?

Mr. Ligutan. Same, Your Honor, same.

The Presiding Officer [Senator-Judge Escudero]. Witness will answer if he knows.

Mr. Lotoc. Well, insofar as the NBI Cybercrime Division is concerned during that time, I'm not aware.

Mr. Vinluan. So, insofar as this case is concerned, no final verdict yet?

Mr. Lotoc. I don't know, Your Honor. I don't know. Insofar as the investigation of the NBI is concerned, no personal knowledge.

Mr. Vinluan. All right. Now, let me move on to a new point. Do you know what *motu proprio* means?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. *Motu proprio* means on your own or out of your own initiative, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. *Sa madaling salita*, voluntary.

Mr. Lotoc. Not really, Sir.

Mr. Vinluan. Not really. *Walang nag-utos*?

Mr. Lotoc. Under the law, we acted based on the law, Sir, because it is our primary jurisdiction to undertake investigations, should there be a threat against the security, or assault against the person of the President, the Vice President, the Senate President, the Speaker of the House, and the Chief Justice.

Mr. Vinluan. Very well. Now, my question is this: insofar as this case is concerned, did the NBI conduct an investigation, *motu proprio*?

Mr. Lotoc. Yes, Your Honor. The fact— *kanino, kanino*, Your Honor, *iyong tinatanong ninyo*? Conduct investigation *kanino po*?

Mr. Vinluan. Insofar as this case is concerned, did you conduct a case, *motu proprio*?

Mr. Lotoc. Your Honor, the NBI conducted an investigation *motu proprio* on November 23, 2024, and on that same date, Your Honor, the Department of Justice directed the NBI to conduct an investigation on the matter.

Mr. Vinluan. So, partly *motu proprio*, partly directed by the DOJ. Is that what you're saying?

Mr. Lotoc. No, Your Honor. No, Your Honor. With or without the directive from the DOJ, the NBI has primary jurisdiction on that case, and therefore, we can investigate on that particular case.

Mr. Vinluan. Yes, but a while ago, during your direct examination, you admitted that the DOJ Secretary directed you, correct?

Mr. Lotoc. During that day, yes, Sir. After *ma-instruct ako ng director na mag-imbestiga*, then thereafter, the Department of Justice directed the NBI *na mag-conduct ng investigation*.

Mr. Vinluan. And did you follow that directive?

Mr. Lotoc. Well, it's the Department of Justice, why should I not follow, Sir?

Mr. Vinluan. Aren't you an independent body?

Mr. Lotoc. Well, Your Honor, under the law, Republic Act 10867, it states there that the Department of Justice can direct the NBI to conduct any investigation when the public interest so requires, Sir.

Mr. Vinluan. Okay. So, the NBI is under the DOJ, correct?

Mr. Lotoc. Definitely, Sir.

Mr. Vinluan. And the DOJ is under the Office of the President, correct?

Mr. Lotoc. Yes, Sir, with the Executive Branch, Sir.

Mr. Vinluan. Meaning, the Secretary of the DOJ is under the Office of the President, correct?

Mr. Lotoc. No question to that, Sir.

Mr. Vinluan. No question. So, BBM has control over both the NBI and the DOJ, correct?

Mr. Lotoc. What do you mean by control, Sir?

Mr. Vinluan. What's your interpretation of control? You seem to be a smart man.

Mr. Lotoc. The Department of Justice and the Office of the President, insofar as the function of the NBI is concerned, *hindi po sila nakikialam doon. Kung ano iyong findings ng NBI, kung ano ang recommendation, sina-submit po namin ito sa Department of Justice, and then iyong Department of Justice, i-we- weigh po nila, i-evaluate po nila, and then, mag-a-undergo ng process ng case buildup. Iyon po ang patunay na iyong una naming nai-submit, hindi tinanggap ng Department of Justice, meaning ang Department of Justice, kapag nakita niya na hindi tama o kulang iyong requirement ng NBI, hindi po ito karakarakang tatanggapin, Your Honor. That's why insofar as the DC 15 is concerned, nag-require sila ng mga iko-comply namin, and then nag-comply kami, and that's the time, ni-receive ng Department of Justice iyong aming referral.*

Mr. Vinluan. Very well. So, just to help you answer, I'll be—I'll ask a more pointed question. At the time the investigation against VP Sara was being conducted, did BBM have control over the NBI or DOJ?

Mr. Lotoc. At the time the investigation?

Mr. Vinluan. Yes.

Mr. Lotoc. Well, being the head of the Executive Branch, Sir, yes, the President is the head of the whole Executive Branch, Sir.

Mr. Vinluan. Very well. Did BBM at any point intervene in this investigation?

Mr. Lotoc. Of course not, Sir.

Mr. Vinluan. Of course not. So, did you just admit to this court that there was no participation on the part of BBM?

Mr. Lotoc. Again, the purpose of the submission of the affidavit is for preliminary investigation, Sir.

Mr. Vinluan. The question is very simple, Your Honor.

Mr. Ligutan. Let the witness to answer.

Mr. Vinluan. Can we ask Your Honor that the—

The Presiding Officer [Senator-Judge Escudero]. Allow the witness to answer. He is in the process of—

Mr. Lotoc. The purpose of the referral that we submitted to the Department of Justice is for the purpose of preliminary investigation which under the new rules of the NPS, *puwede po ang law enforcement agency na mag-submit ng complaint affidavit kahit wala iyong affidavit ng complainant*. For purposes of preliminary investigation. So, the complaint from the President is not an indispensable requirement insofar as the preliminary investigation is concerned by the DOJ, Sir.

Mr. Vinluan. So, let me clarify. You received instructions to conduct an investigation against VP Sara from the DOJ, which is under the Office of the President, and the investigation, in that investigation, BBM was allegedly one of the offended parties?

Mr. Lotoc. Again, Your Honor, *hindi po ako nakatanggap ng directive*.

Mr. Vinluan. Wait. There is no question yet. There's no question yet.

And yet, BBM has control over both the NBI and the DOJ. Is that a fair submission?

Mr. Ligutan. Your Honor, I will now object. You know, asked and answered. Same point, Your Honor, please, many times over. Control of the President over the DOJ, control of the DOJ over the NBI. Asked and answered, many times over.

The Presiding Officer [Senator-Judge Escudero]. All right. Sustained.

Mr. Vinluan. Considering the structure involving the NBI, the DOJ, and the Office of the President, don't you think that there was bias against VP Sara?

Mr. Ligutan. I will allow that. I will not object, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. Counsel, again, kindly wait for the Presiding Officer to recognize you. Witness may answer.

Mr. Lotoc. Our investigation, Your Honor, was evidence-based. *Noong pinag-usapan po namin ito, noong in-analyze po namin ito, noong nag-follow kami ng mga phases, at ang analysis, we believe na we agreed, we agree among ourselves na buo ang ebidensya, kompleto ang ebidensya, na-comply natin iyong requirement ng prima facie case, with reasonable certainty of conviction, na-submit po namin iyan sa DOJ, na ang paniwala po namin ay kumpleto po at na-comply namin iyong requirement ng kaso.*

Mr. Vinluan. All right. Either way, okay, either way, the NBI can initiate its own investigation when necessary, correct?

Mr. Lotoc. The NBI can initiate its own investigation.

Mr. Vinluan. In fact, you mentioned RA 10867, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And please allow me to read Section 5G thereof. It says, "Cases involving threats to security or assaults against the President, the Vice President, Senate President, Speaker of the House of Representatives, and Chief Justice of the Supreme Court." You confirm this, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. My next question to you is this: While you conducted a *motu proprio* investigation to help BBM, FL, and the former Speaker, did you also conduct a *motu proprio* investigation to help VP Sara?

Mr. Lotoc. Yes, Your Honor. The fact that we sent a December 2, 2024 letter, we informed the Vice President *na iniimbestigahan din namin iyong alleged threat laban sa kanya*, and so *kailangan naming makakuha ng valid information, confirmed data, or any apparent violations of our Revised Penal Code or any special law. Iyon lang po ang purpose ng letter namin, Your Honor, to inform the Vice President na iniimbestigahan din namin iyong alleged threat laban sa kanya—*

Mr. Vinluan. Your Honor, it's a yes or no answer. Can we ask the—

The Presiding Officer [Senator-Judge Escudero]. Mr. Witness, Attorney Lotoc, this is the second time you mentioned your December 2 subpoena. So, the curiosity of the Presiding Officer has been kicked. In your subpoena of December 2, you issued a subpoena to the Vice President

for evidence in a certain investigation. No mention was made of either the investigation pertaining to threats against the President or even threats against the Vice President. But it's the second time you mentioned that the intent of this one is for the threat against the Vice President. What is your basis, Sir? When the subpoena does not contain such a specification of the evidence you have obtained from her.

Mr. Lotoc. *Iyan ang subpoena naka-focus po iyan doon sa investigation namin on the alleged grave threats and inciting to sedition during that time. Iyong investigation naman insofar as the Vice President's threat to her life is concerned, mayroon ho kaming separate na letter noong December 2, 2024.*

The Presiding Officer [Sen. Escudero]. *Hindi subpoena—letter?*

Mr. Lotoc. Letter *po*.

The Presiding Officer [Senator-Judge Escudero]. Do we have that on file or on records somewhere.

Mr. Ligutan. Yes, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. It is the pre-marked...

Mr. Ligutan. Marked during trial...earlier, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. By Agent Calilung?

Mr. Ligutan. By this witness, Attorney Lotoc. That would be P-IV-5, identified by the witness earlier, Your Honor, please.

The Presiding Officer [Senator-Judge Escudero]. P-IV-5, addressed to Attorney Lim, Attorney Lotoc?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. Your Honor, I have questions relating to that.

The Presiding Officer [Senator-Judge Escudero]. Just to clarify from the witness. Are you referring, Attorney Lotoc, to the letter addressed to Attorney Lim signed by Asst. Dir. Ricarte?

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. This is the one that is referring to the alleged attempt of NBI to investigate the threats against the Vice President?

Mr. Lotoc. Yes, *po*, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. All right. Counsel, you may proceed.

Mr. Vinluan. All right. In fact, since we are on the topic, let me direct your attention to that NBI letter issued by Glen Ricarte dated December 2, 2024.

Again, for the perusal of the senator-judges, this is pages 155 to 158 of the AOIs Annex G9. You confirm that this was sent out to the Vice President?

Mr. Lotoc. We have this document, Your Honor, signed by AD Glen Ricarte dated 02 December 2024.

Mr. Vinluan. All right. And do you confirm that the date is December 2, 2024?

Mr. Lotoc. Based on this document, Sir, yes.

Mr. Vinluan. All right. Let me read and read with me, please, the last two paragraphs. And I will try to be very clear. It says here: "We are hoping that we have assisted you properly."

Can we flash that, please.

"We would be grateful if the Vice President will visit the NBI and participate on the ongoing investigation. As the schedule of her appearance, she is anticipated to appear on—can you read the date, please?"

Mr. Lotoc. 11 November 2024 at 10:00 am at the Office of the Director, National Bureau of Investigation.

Mr. Vinluan. So, you provided the date; you provided the time and the place where VP Sara is supposed to appear. Correct?

Mr. Lotoc. Your Honor, since ang *naka-sign po rito ang* Assistance-Director, *wala ho akong* personal knowledge. I think this is typo, *kasi nga nag-reply ang lawyer ng Bise Presidente...*

The Presiding Officer [Senator-Judge Escudero]. Attorney Lotoc, either you have personal knowledge or not, but neither can you say "typo". If you do not have personal knowledge, you cannot say "typo."

Mr. Lotoc. Yes, Your Honor. I am sorry, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. So, which is it?

So, you do not have personal knowledge...

Mr. Lotoc. I do not have personal knowledge, Your Honor. *Hindi po ako ang sumulat sa* letter *na ito*.

The Presiding Officer [Senator-Judge Escudero]. Okay.

Mr. Vinluan. Again, Your Honor, this is an attachment of the witness's own Affidavit of Investigation. I understand, Your Honor, and he has been very repetitive on this, that there are documents there that he did not sign. But when you attach something to your own affidavit, Your Honor, you are supposed to, at least, review them.

And, clearly, he did not review, and he is even the head. He mentioned that he is the supervisor.

Mr. Ligutan. Objection, Your Honor. Laying a value to the testimony of the witness, that is improper. You ask him questions. Do not add value.

The Presiding Officer [Senator-Judge Escudero]. Kindly ask a question, counsel.

Mr. Vinluan. You stated a while ago that the reason why you did not pursue VP Sara's investigation in order to help her was because of her non-appearance. Correct?

Mr. Lotoc. We issued two subpoenas. The first one, and then we gave her a chance again to give us information. And then, she did not appear for the second time, Sir.

Mr. Vinluan. But you said, the second one was not a subpoena, it was a letter. Correct?

Mr. Lotoc. Well, the letter is the basis that we conducted *motu proprio* investigation on the alleged threat against the Vice President. The purpose of the two subpoenas is also, *base sa usapan namin ng* then-Dir. Jaime Santiago, *'pag nag-appear ang Bise Presidente, tatanungin din po ng* Director namin, *"Ma'am, puwede mo bang i-share sa amin ano iyong threats sa life mo? Baka mayroon kang information na puwede naming pagsimulan.*

Mr. Vinluan. You have yet appended...

The Presiding Officer [Senator-Judge Escudero]. Counsel, allow the Presiding Officer.

Sir, you referred to the letter and the subpoena. As I pointed out earlier, the subpoena does not make mention that you are asking for evidence about the threats against the Vice President. You just said in your subpoena for information regarding what is under investigation by your office.

Now, in this letter that you referred to, signed by Asst. Dir. Ricarte, nowhere can I find, too, that you are asking the Vice President information about the threat against her. You quoted several instances about the Vice President's statement against the President, but I cannot see a reference to the threat against the Vice President. Now, you are telling me again that you intended to ask her when she comes.

Mr. Lotoc. If I may answer *po*, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. Of course, please.

Mr. Lotoc. Thank you.

Yes, Your Honor. *Kung puwede ko pong basahin.*

The Presiding Officer [Senator-Judge Escudero]. Please, Sir. Kindly guide us *po*.

Mr. Lotoc. "This Bureau wishes her well and we would acknowledge if she can find a convenient time to visit the NBI since according to her, she received threats on her life as well. As part of its mandate, the NBI would like to inform her that we are also investigating on the said threats. Her appearance to the NBI will aid us in the expeditious investigation on the said threats," Your Honor.

The Presiding Officer [Senator-Judge Escudero]. And then, this is the basis for the issuance of your two subpoenas against her?

Mr. Lotoc. *Hindi po. Ang dalawang subpoena, Your Honor, is para doon ho sa grave threats and inciting to sedition.*

The Presiding Officer [Senator-Judge Escudero]. *Ah, para doon na po?*

Mr. Lotoc. *Opo. Iyon po ang purpose ng dalawang subpoena.*

The Presiding Officer [Senator-Judge Escudero]. Letter lang ang sa kaniya tungkol sa threat sa kaniya?

Mr. Lotoc. Yes *po*, Your Honor. Letter lang.

The Presiding Officer [Senator-Judge Escudero]. Bagaman sa sulat na ito, binanggit rin ninyo iyang threat niya laban sa Pangulo? O ibang sulat po iyon?

Mr. Lotoc. Your Honor, *in-explain ho namin dito, kasi doon ho sa...may letter ho na isinabmit ang lawyer ni VP. Nagtatanong ho siya, kung puwedeng makakuha ng copy ng complaint. And then, kung ano iyang mga itinatang at itatang ng NBI sa kaniya, in-explain ho dito sa letter na ito kung ano ang nature ng complaint.*

The Presiding Officer [Senator-Judge Escudero]. Iyang mga alegasyon laban sa kaniya?

Mr. Lotoc. *Opo*, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. Thank you, Attorney Lotoc.

Counsel, you may proceed.

Mr. Vinluan. But the long and short of it, in that December 2, 2024- letter, you provided a November schedule. Correct?

Mr. Lotoc. Again, I cannot answer to that. *Ang signatory ho ang makakasagot, Sir.*

Mr. Vinluan. So, in other words, she could not have attended that November 11, 2024, because, as of the date of the letter, it was already December 2, 2024. Correct?

Mr. Lotoc. Well, Your Honor, *iyong second letter na isinabmit ng lawyer niya, ang sabi nila doon: "The Vice President is confident that the NBI will conduct an investigation on the alleged threat against her life."*

Mr. Vinluan. Yes. But despite this error, do you still maintain that the investigation that you conducted was thorough? You used that word a while ago.

Mr. Lotoc. Investigation on the alleged threat against the Vice President?

Mr. Vinluan. Correct.

Mr. Lotoc. We are looking, Your Honor, for a validated information, confirmed information *para ho mayroon kaming pagsimulan.* But, insofar as my office is concerned, since *hindi na ako ang may hawak diyan, baka ho mayroong ibang tinask ang aming director para diyan, Sir.*

Mr. Vinluan. So, as early as December 2, 2024, the NBI has been investigating regarding the threats against VP Sara. Correct?

Mr. Lotoc. When we issued the first subpoena, and then, when we issued the letter dated 02 December 2024, *ang intensiyon ho namin noon, i-inform namin siya na nag-i-imbestiga din kami, Ma'am. Kaya lang, kailangan ho namin ng validated information para ho mapagsimulan namin.*

Mr. Vinluan. *Mali lang ang schedule na naibigay doon sa Vice President?*

Mr. Lotoc. Again, *wala ho akong personal knowledge doon sa scheduling.*

Mr. Vinluan. After more than one and a half years of investigation, has the NBI come up with a recommendation?

Mr. Ligutan. Asked and answered, Your Honor. Asked and answered *kanina pa.*

Mr. Vinluan. No, recommendation on the threats against VP Sara.

Mr. Ligutan. Withdrawn, withdrawn.

The Presiding Officer [Senator-Judge Escudero]. This is the investigation pertaining to the threats against the Vice President's life.

Mr. Ligutan. Okay, thank you, Your Honor.

Mr. Lotoc. Again, *since wala ho kaming validated information, wala ho kaming nakitang confirmed doon sa allegation, threats against her life, wala ho kaming mapagsimulan, Sir.*

Mr. Vinluan. That is okay. *Meron din bang affidavit of investigation para kay VP Sara, gaya ng ginawa ng NBI para kay BBM, FL, at former Speaker?*

Mr. Lotoc. Since *wala pa ho kaming validated information, wala ho kaming napagsimulan.*

Mr. Vinluan. So, in other words, *meron para kay BBM, FL—*

Mr. Ligutan. Objection.

Mr. Vinluan. There is no question yet, Your Honor.

Mr. Ligutan. Yes.

Mr. Vinluan. —at former Speaker, *pero wala kay VP Sara.*

Mr. Ligutan. Argumentative, Your Honor. Argumentative.

Mr. Vinluan. That is a factual question, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. Asked and answered.

Asked and answered.

Mr. Ligutan. Asked and answered. Okay.

The Presiding Officer [Senator-Judge Escudero]. Move on, Counsel.

Mr. Vinluan. If no affidavit of investigation, is there any written report on that investigation?

Mr. Lotoc. *Anong investigation po, Your Honor?*

Mr. Vinluan. *Iyong against VP Sara, may written report man lang ba?*

Mr. Lotoc. Well, *ang nakakaalam ho niyan iyong aming intelligence service, sila ho ang may pool of information from different offices.*

Mr. Vinluan. But as far as you know, *wala pang written report on this?*

Mr. Lotoc. Well, during that time, insofar as the cybercrime investigation is concerned, *wala akong nakita na ganoon, Sir.*

Mr. Vinluan. *Wala pa.*

Mr. Lotoc. *Noong time na iyon, Sir.*

Mr. Vinluan. Correct. In other words, since *wala pang written report, wala pa ring opportunity si VP Sara to supplement any report that you have prepared.*

Mr. Lotoc. Again, *wala akong idea kung mayroon ng written report ang aming intelligence service. Ang alam ko kung ano lang iyong nangyari during yung investigation namin—Cybercrime Division investigation.*

Mr. Vinluan. All right. I will move on to a new point. Now, as an investigating body, the NBI is called to be impartial, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Meaning, you have to evaluate both sides, not just one side, correct?

Mr. Lotoc. What do you mean, both sides?

Mr. Vinluan. The offending party's side and the offended party's side.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. In other words, you evaluate the side of the complainant, and you also evaluate the side of the respondent, correct?

Mr. Lotoc. Evaluate the side of the complainant. Yes, Sir.

Mr. Vinluan. So, did the NBI do that in its investigation insofar as the case against VP Sara?

Mr. Lotoc. Precisely, Your Honor, the reason why we issued a letter dated December 2, 2024 is to elicit information from the Vice President herself *kung meron po bang validated information* or to ask her *kung sakaling nag-appear siya, "Ma'am, baka meron kang puwedeng pagsimulan namin."* But, again, *kahit representative, wala hong may dumating sa amin na magbibigay sa amin ng impormasyon para pagsimulan ng imbestigasyon.*

Mr. Vinluan. But didn't the counsel appear? So, she participated through counsel, correct?

Mr. Lotoc. The counsel, Your Honor, only stated *na iyong threat is, again, iyong six months ago na nag-conduct ho kami ng open-source investigation. Wala ho kaming nakitang validated talaga, Sir. So, wala kaming mapagsimulan—saan kami magsisimula* at all?

Mr. Vinluan. Okay. So, to enlighten this honorable court of what really happened during your investigation, you issued subpoenas, correct?

Mr. Lotoc. We issued subpoenas, yes, Sir.

Mr. Vinluan. And several people participated, correct?

Mr. Lotoc. Media personalities—

Mr. Vinluan. Yes, I will go to that. Just answer the question first, yes or no—at least four people, correct?

Mr. Lotoc. We issued subpoena, yes, Sir.

Mr. Vinluan. Reyes of Philippine Daily Enquirer attended with counsel. You confirm this?

Mr. Lotoc. I think so, Sir.

Mr. Vinluan. Mendoza of Manila Times also attended with counsel.

Mr. Lotoc. Yes, yes. It was reported to—

Mr. Vinluan. Reported to you?

Mr. Lotoc. I think Magsambol and Reyes. *Iyon iyong report sa akin ni Agent Calilung, Sir.*

Mr. Vinluan. How about Rubrico of SMNI?

Mr. Lotoc. Yeah, *iyong anim ho na yan, as far as I know, naisyuhan namin ng subpoena. I think iyong iba diyan hindi ho nag-appear kasi iyong isa nasa China, meron siyang parang—*

Mr. Vinluan. Yes. I am not asking about those. I am just asking about the people that participated.

Mr. Ligutan. Your Honor, the witness is in the process of answering.

The Presiding Officer [Senator-Judge Escudero]. Counsel, witness is in the process of answering, let him finish.

Are you done, Attorney Lotoc?

Mr. Lotoc. Yes, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. All right. You may proceed, counsel.

Mr. Vinluan. And these people were interviewed by NBI agents, correct?

Mr. Lotoc. By NBI agents, Sir.

Mr. Vinluan. Okay. The NBI agents included Calilung, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. For Magsambol and Reyes; Gierran, for Mendoza?

Mr. Lotoc. Yes, Sir, I think.

Mr. Vinluan. All right. But Asuncion, for Rubrico, correct?

Mr. Lotoc. Yes, Asuncion also.

Mr. Vinluan. All right. And the Q&A was recorded, correct?

Mr. Lotoc. Yeah, I think *may transcript yata na ginawa sila*, Sir.

Mr. Vinluan. All right. Very well. After the interviews, the NBI agents executed affidavits, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Attesting to the interviews conducted?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Let us go through the minutes of the meeting attached to the affidavit of investigation. There were four sets of minutes of the meeting, correct: one for Reyes, one for Mendoza, one for Magsambol, and one for Rubrico. Do you confirm this?

Mr. Lotoc. May I check first the documents, Sir?

Mr. Vinluan. Your Honor, may we ask, Your Honor, that my co-counsel confronts the witness, not the prosecution's Counsel? This is our turn, Your Honor, and we want to use the official copy, which is the Impeachment Court's copy, Your Honor. So, we do not know what copy the Prosecution's lawyer is confronting the witness with.

The Presiding Officer [Senator-Judge Escudero]. Counsel, please comply.

Mr. Vinluan. All right. So, minutes of the meeting. So, there were four sets: one for Reyes, one for Mendoza, one for Magsambol, and one for Rubrico. Now, based on the minutes of the meeting—

Mr. Lotoc. May I check first, Sir?

Mr. Vinluan. Okay, go ahead.

[The witness, Mr. Lotoc, is checking the documents]

Mr. Lotoc. Yeah, I think up to Rubrico, Sir.

Mr. Vinluan. All right. So, you confirm that there was a Q&A?

Mr. Lotoc. There is a Q&A.

Mr. Vinluan. Okay. And then, *konti lang iyong mga tanong n'yo*. Actually, not more than 20 questions per interviewee, correct?

Mr. Lotoc. 20 questions.

Mr. Vinluan. All right. And how long did the interviews last, if you know, if you know?

Mr. Lotoc. I think *ang* report *sa akin*, *nag-appear sila*, *nag-participate sila sa* interview but *doon sa* timeline no personal knowledge, Sir. *Ang makakasagot nito mismong iyong nag-interview*, Sir.

Mr. Vinluan. Okay. But in that interview, they were asked about their personal knowledge on the November 23, 2024 presscon, correct?

Mr. Lotoc. Yeah, the question was: where were you on the 23 November 2024—

Mr. Vinluan. Just a “yes” or “no” will do.

Mr. Lotoc. —at about 12:00 a.m. 1:00 a.m., Sir.

Mr. Vinluan. Yes. Your answer is “yes.”

Mr. Lotoc. Yes, there is that question, Sir.

Mr. Vinluan. Okay. Now, during this interview, according to the minutes also that you are now perusing, a video of the press-con was shown, correct?

Mr. Lotoc. Yes, it says here, “Is that Zoom meeting the one in the video? At this juncture, the agent showed the video”—

The Presiding Officer [Senator-Judge Escudero]. Attorney Lotoc, kindly just answer yes to abbreviate the proceedings, yes or no?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Okay. My question is this: did the NBI show the entire video to the interviewee, or just portions thereof?

Mr. Lotoc. *Ang makakasagot ho niyan*, Your Honor, *iyong nag-conduct po ng* interview.

Mr. Vinluan. If you know. If you know.

Mr. Lotoc. I am not sure, Sir.

Mr. Vinluan. Didn’t you provide instructions to the NBI agents regarding the showing of the video?

Mr. Lotoc. Well, the instruction is whether or not *naroon sila noong nangyari iyong* press conference *noong* November 23.

Mr. Vinluan. Yeah. But will you agree with me that for the investigation to be impartial, the NBI should have shown the entire video and not just certain portions thereof?

Mr. Lotoc. That I cannot answer *kung ipinakita nila iyong buong video*. *Ang instruction ko*, Your Honor, part of the investigation is to ask them *kung nag-participate sila*, *kung may* personal knowledg *sila* during the online press conference on November 23, 2024.

Mr. Vinluan. All right, but let me direct your attention to page 189 also of Annex G⁹. This pertains to the minutes of the meeting of Calilung. If we can flash that on the screen and if my co-counsel could confront the witness.

It says here and I want to read, in the top portion, it states, “10:24h and 10:57h, December 4, 2024.” Here. Meaning, the interview took place on December 4, from 10:24 to 10:57 a.m. Is that correct? Military time.

Mr. Lotoc. It appears in the document, Sir.

Mr. Vinluan. All right. So, in other words, 23 minutes *lang iyong* interview?

Mr. Lotoc. Based on that document, Sir.

Mr. Vinluan. *Hindi ninyo talaga mapapakita iyong* whole video, correct?

Mr. Lotoc. Based on that document, *kung ganoon lang iyong* timeline niya, yes, Your Honor, *hindi*.

Mr. Vinluan. *Kasi* two hours *mahigit iyong* video *ni* VP Sara *eh*, correct?

Mr. Lotoc. Yes.

Mr. Ligutan. Asked and answered, Your Honor.

Mr. Vinluan. I'm just emphasizing the time, Your Honor.

Mr. Ligutan. Yeah. *Kaya nga* objection.

The Presiding Officer [Senator-Judge Escudero]. Move on, counsel.

Senator-Judge Sotto is recognized. What is your pleasure, Sir?

Senator-Judge Sotto. Thank you, Mr. Presiding Officer, Mr. President. To satisfy the curiosity of our group here, we were asking each other why did you invite these four media personalities?

Mr. Lotoc. Yes, Your Honor, because they were there based on our investigation.

Senator-Judge Sotto. They were there in the press con?

Mr. Lotoc. Yes, Sir. They participated.

Senator-Judge Sotto. The whole press con?

Mr. Lotoc. The whole press con, Sir.

Senator-Judge Sotto. So, why do you have to show the entire press con again?

Mr. Lotoc. Precisely, Your Honor, that's the point. We just want to establish whether *sinabi ba ito ng Bise Presidente, at sinabi nila, "Yes, iyan iyong sinabi ng Bise Presidente."* *Iyong point po iyon na may kinontrata siya, may kinausap siyang tao.*

Senator-Judge Sotto. Ah, *kaya iyon lang ang ipinakita ninyo, hindi na ninyo ipinakita iyong buo* because they were there.

Mr. Lotoc. Yes.

Senator-Judge Sotto. The entire time? Are you sure they were there the entire time?

Mr. Lotoc. They were, Sir.

Senator-Judge Sotto. Okay. Thank you.

Mr. Vinluan. But, but you cannot have personal knowledge. They may have exited the Zoom meeting, correct?

Mr. Lotoc. Yeah—

Mr. Vinluan. You cannot, you cannot say for certain.

Mr. Lotoc. *Iyong nakita ko roon sa video, ang pinakahuling nag-exit, I think tatlo yata iyon, Sir. Yeah. Pero most of the time nandoon ho iyong mga media personality, nagtanong po sila, nag-inquire po sila, at nag-participate po sila roon.*

Mr. Vinluan. All right. At any rate, each participant was asked, and I quote in paragraph 11 of the affidavit or the minutes, it says here, "Do you hear the statement of VP?" "Yes, *huwag kang mag-alala, ma'am, sa security ko kasi may kinausap na ako...*" which ends in "and then he said yes," correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Okay. *So, sa madaling salita*, insofar as the interviews conducted by the NBI, *wala nang tanong tungkol sa ibang statement ni VP Sara noong press con, tama?*

Mr. Lotoc. Yeah, *base rito sa document.*

Mr. Vinluan. All right. *Iyan lang ang tinanong niyo, tama? Iyan lang? Iyan lang statement na iyan ang tinanong ninyo?*

Mr. Lotoc. *Base sa document, Sir.*

Mr. Vinluan. Didn't you have enough time to ask about other statements made by VP Sara in order to establish context?

Mr. Lotoc. Your Honor—

Mr. Vinluan. Yes or no, if you can, please.

Mr. Ligutan. Let the witness answer.

Mr. Vinluan. The Presiding Officer already directed a more responsive answer.

Mr. Lotoc. Your Honor, November 26 video—

Mr. Vinluan. No.

Mr. Lotoc. *—nakita namin na may admission na ginawa, ni-reiterate ng Bise Presidente—*

Mr. Vinluan. No, that's not my question. My question is, did you have enough time to ask about.

Mr. Ligutan. Let the witness answer, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. No, no, no. Attorney Lotoc, the question was, did you show any other video or parts of the video other than this one?

Mr. Lotoc. Based on the document, Sir, *eto lang ho iyong mga tinanong ko.*

The Presiding Officer [Senator-Judge Escudero]. *Iyan lang ang tinanong sa* part of video. *Walang ibang* part ng video? Based on the document.

Mr. Lotoc. Based on the document, *ito lang po*, Your Honor.

The Presiding Officer [Senator-Judge Escudero]. Okay.

Mr. Vinluan. All right. In other words, the agents focused only on this one statement by VPSara, correct?

Mr. Lotoc. Based on the interview.

Mr. Vinluan. And the Q&A used a targeted question, correct?

Mr. Lotoc. Based on the document, Sir, based on the interview, we asked *them kung nandoon sila, kung nag-participate sila, o kung narinig ba nila iyong utterances na iyon.*

Mr. Vinluan. All right. The whole video was around 2 hours and 26 minutes. Now, if my math is correct, that is 60 minutes per hour, so 120 minutes plus 26 minutes, so a total of 146 minutes total, more or less. And are you telling this court that the portion shown was just about one minute?

Mr. Ligutan. Asked and answered, Your Honor, please.

Presiding Officer [Senator-Judge Escudero]. Answered.

Mr. Ligutan. The same topic many times over.

The Presiding Officer [Senator-Judge Escudero]. Counsel, I understand that you're trying to emphasize a point, but to manage the court's time, kindly move on to your next question.

Mr. Vinluan. So, you think that by showing only a portion of the video, that portion was taken out of context?

Mr. Lotoc. Your Honor, we authenticated the whole video and we saw what happened on that online press conference, Sir.

Mr. Vinluan. All right. By the way, did the interviewee sign the minutes of the meeting?

Mr. Lotoc. In so far as the late Cyden Reyes—

Mr. Vinluan. If you know. I'll go through it one by one—

Mr. Lotoc. I think *may huli yata na walang pirma iyong isa na—*

Mr. Vinluan. Can we, can we direct your— But, you know, as a lawyer, that if a document is unsigned, that document will be treated as a mere scrap of paper, correct?

Mr. Lotoc. Yes, Your Honor.

Mr. Vinluan. All right. So, that is the standard operating procedure, correct? That you sign the document, correct?

Mr. Lotoc. I don't know *kung tama iyong ibinigay na docs. Ang signatory diyan ay si Attorney Asuncion.*

Mr. Vinluan. Yeah. In fact, let us show that document for the benefit of this court.

Mr. Lotoc. *Iyan ho iyong—*

Mr. Vinluan. Yeah. Let me direct your attention to pages 203 to 207 of Annex G⁹. This pertains to the minutes of the meeting involving Rubrico of SMNI. Can we display first the first page? So, the interviewer was Ria Vanessa Asuncion.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. *Hindi pa siya sure kung good morning or good afternoon.*

Mr. Ligutan. What is the relevance, Your Honor?

Mr. Vinluan. And she conducted the interview, correct?

Mr. Lotoc. It appears so.

Mr. Vinluan. All right. But let's go on to the signature page now. So, in other words, there appears to be a signature above the name Jayson Rubrico. All right. Can you state for the record whether Atty. Ria Vanessa D. S. Asuncion signed this document?

Mr. Lotoc. In that document, no signature of Atty. Ria Vanessa Asuncion.

Mr. Vinluan. So, was this a failure to observe SOP on your part?

Mr. Lotoc. I think we have to ask, Attorney Vanessa *baka meron siyang ibang document.*

Mr. Vinluan. But again, you're the supervisor of this minutes of the meeting, and you were the one who attached these documents in your affidavit of investigation.

Mr. Lotoc. *Ang nag-prepare ho ng mga docs na yan, I instructed them— the executive officers and the agent in case to prepare those documents for the Department of Justice.*

Mr. Vinluan. My only point is this, Mr. Lotoc. We are talking here about filing a case against the Vice President of the Philippines, who is the second highest official of the land, and you used an unsigned document as part of your exhibits. Is that what you're trying to tell the court?

Mr. Lotoc. You can ask Atty. Ria Vanessa D. S. Asuncion again, Sir, *kung anong nangyari riyan.* Insofar as I am concerned, *kumpleto ho iyong tatlo—1, 2, 3—ito ho iyong pang-apat.*

Mr. Vinluan. All right.

Mr. Lotoc. *Siguro, kailangan kong tanungin si XO kung ano ang nangyari riyan.*

Mr. Vinluan. All right. So, let's go to the affidavits that were executed after the interviews. Okay. *Pahabol na ito lahat, tama? Kasi this was pursuant to the Feb. 5 certification, eh. So hinabol ninyo ito lahat, tama?*

Mr. Lotoc. *Hindi hinabol, kinomply ho namin iyong requirement ng DOJ.*

Mr. Vinluan. You want to use the term *kinomply*. Okay, *sige*. The interviews were in December—November to December 2024—but the affidavits were in February 10, 2025, correct?

Mr. Lotoc. Again, Your Honor?

Mr. Vinluan. *Iyong mga interview mismo, November to December 2024, kinonduct. Pero iyong mga affidavit attesting to those interviews, February of 2025 na in-execute, tama?*

Mr. Lotoc. Based *sa* document, Sir.

Mr. Vinluan. At any rate, this was made pursuant to the Feb. 5 DOJ certification, correct?

Mr. Lotoc. Can I see the document, Sir?

Mr. Vinluan. Okay. So in short, *hinanapan kayo ng DOJ ng affidavits* that's why you attached additional ones to the revised Affidavit of Investigation. Is that what happened?

Mr. Lotoc. Again, the affidavit was not revised. *May mga attachment lang ho na ni-require yung Department of Justice.* So, *kinomply* (comply) *ho namin at saka sinubmit* (submit) *ho namin.*

Mr. Vinluan. Yeah. Even your own director referred to it as revised, *'di ba?*

Mr. Ligutan. Objection, argumentative.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. Let's not make an issue about that.

Mr. Ligutan. Exactly.

Mr. Vinluan. I'm just asking if these were attached to the second judicial Affidavit of Investigation. So, in other words, the agent who executed these affidavits were John Mark Calilung, Gierran, and Asuncion, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. And each agent executed their own affidavit, correct?

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. So, all were based on their personal knowledge, correct?

Mr. Lotoc. Again, Sir. Based on—based on their personal knowledge?

Mr. Vinluan. Okay. So nothing was supplied to any agent, correct?

Mr. Lotoc. I don't understand the question, Sir.

Mr. Vinluan. So, nothing was supplied. *Ibig sabihin, hindi binigay sa kahit anong agent yung isusulat niya doon sa affidavit?* Independent nila ginawa lahat iyan.

Mr. Lotoc. Iyong affidavit ng mga witness?

Mr. Vinluan. Correct, yes.

Mr. Lotoc. Yes, Sir.

Mr. Vinluan. All right. So, in other words, what you're telling this Court is that these are bona fide affidavits and not template affidavits, correct?

Mr. Lotoc. Bona fide and not what, Sir?

Mr. Vinluan. Template. *Iyong hindi pinirmahan lang basta.*

Mr. Lotoc. Well, I think you can ask, Sir, the one who signed the affidavit, Sir.

Mr. Vinluan. Yes, so *ganoon—hindi.* But, again, this is part of your affi—these are attachments to your Affidavit of Investigation. So, you should have checked these at least, correct?

Mr. Lotoc. Your Honor, *sa practice ho namin, may mga templated na talaga kung common na iyong question. Ginagawa ho talaga iyon.*

Mr. Vinluan. Ah, okay.

Mr. Lotoc. Now, *para ma-clarify ho kayo, pwede n'yo hong tanungin iyong—*

Mr. Vinluan. Thank you, thank you. So, in other words, you used template affidavits.

Let me direct your attention to the affidavit of John Mark Calilung, pages 170 to 171 of the Articles of Impeachment G⁹. Allow me to read a portion of its paragraph: 5. It says there, "No joke"—can you flash that on the screen? It says there, "No joke, no joke. *Nagbilin na ako*"—*iyon, sige.* Can we focus on that part? *Iyan.* So here. *Iyan.* So, *nag—*"No joke,

no joke. *Nagbilin na ako, ma'ama.*" Here. On the bottom portion. "*Nagbilin na ako ma'ama, 'pag namatay ako.*"

All right. Do you confirm that there is a typographical error in the spelling of "ma'ama" which was incorrectly spelled as "ma'ama"?

Mr. Ligutan. Your Honor, Your Honor, with all due respect, Your Honor, please. What's the relevance of a typographical error from being—

Mr. Vinluan. We will demonstrate that, Your Honor. I'm just laying the basis.

Mr. Ligutan. What's the relevance? Typographical error—

The Presiding Officer. On a short leash, Counsel, show the connection and relevance.

Mr. Vinluan. Can we confirm first, Your Honor, if he confirms that there's a typographical error on Calilung's affidavit?

Mr. Lotoc. I think since the signatory is here—Agent Calilung and Atty. Van Angluben, *silahang ang makakasagot.*

Mr. Vinluan. All right. So, he cannot confirm?

So, let me direct your attention to the affidavit of Gierran, Agent Angeli Jeanne Gierran, pages 178 to 179 of AOI's Annex G⁹. Again, let me read from paragraph 5 as well. It says here—can we zoom that portion? "No joke, no joke. *Nagbilin na ako, ma'ama, 'pag namatay ako.*" So, do you confirm that there's also a typographical error in the spelling of the word "ma'ama" which was also incorrectly spelled as "ma'ama"?

Mr. Lotoc. You can ask the one who signed this affidavit, Sir.

Mr. Vinluan. So, you cannot confirm also?

Mr. Lotoc. You can ask, Your Honor, the one who signed it.

Mr. Vinluan. One last, pages 199 to 200 of Annex G⁹ as well. This is now the affidavit of Ria Asuncion. Can I go to paragraph 5 also? O. "No joke, no joke. *Nagbilin na ako, ma'ama.*" Can you also confirm that there's a typographical error in the spelling of "ma'ama" which was also incorrectly spelled as "ma'ama"?

Mr. Lotoc. Again, you can ask the one who signed the affidavit.

Mr. Vinluan. All right. So, in other words, all three affidavits contain the exact typographical error of the word "ma'ama," same paragraph number, and do you still maintain that these affidavits were independently executed?

Senator-Judge Zubiri. Mr. Presiding Officer.

The Presiding Officer. Before I recognize Senator-Judge Zubiri, Counsel, I think *inamin naman na ni Attorney Lotoc na may mga template sila. Kumbaga, may mga de-ka-hon silang affidavits.*

Tama ba, Attorney Lotoc?

Mr. Lotoc. *Opo*, Your Honor.

The Presiding Officer. So, *posibleng isa 'to sa mga dekahon n'yong affidavit?* Is that possible?

Mr. Lotoc. Yes, Your Honor. *Kasi same lang ho iyong utterances, Sir. Kaya siguro iyong pag-copy-paste diyan, kung ano ho iyong unang na-copy-paste doon sa utterance, iyon na ho iyong—*

The Presiding Officer. *Kaya nga.* So, *kasi parehong number 5, parehong "ma'ama," 'di ba?* Meaning, *may point naman si Attorney—may point naman iyong Counsel for Respondent, so it's possible na isa 'to sa mga dekahon n'yong affidavit?*

Mr. Lotoc. Yes, Your Honor.

MANIFESTATION OF SENATOR-JUDGE ZUBIRI

Senator-Judge Zubiri commended the diligence of the Counsel for the Respondent in conducting the cross-examination but, considering that the proceedings had already lasted approximately six hours, he proposed that the continuation of the cross-examination be deferred until the following day.

INQUIRY OF THE PRESIDING OFFICER

In response to the Presiding Officer's inquiry, Attorney Vinluan informed the Court that the cross-examination was approximately halfway through. He also noted that it was the first opportunity for the Respondent, through Counsel, to confront the witnesses against her, explaining that she had not participated in the proceedings before the Committee on Justice of the HOR for the reasons stated in her petition for *certiorari*.

Presiding Officer Escudero clarified that the Court was not limiting the Respondent's right to complete the cross-examination but was merely determining whether to continue that evening or resume the proceedings the following day. Attorney Vinluan replied that the Respondent was amenable to either course but, in deference to the request of Senator-Judge Zubiri, agreed to continue the cross-examination the following day.

Thereafter, the Presiding Officer thanked Attorney Lotoc, reminding him that the subpoena requiring his appearance at the following day's hearing remained in effect and that he would continue his testimony under the same oath previously administered, proceeding to discharge him for the day.

ORDER OF THE PRESIDING OFFICER

Presiding Officer Escudero informed the Court that it had received the Respondent's memorandum on the requests for the issuance of subpoenas *duces tecum* for bank records, records of the Anti-Money Laundering Council (AMLC), and the Bureau of Internal Revenue (BIR). Upon inquiry, the Prosecution confirmed that it had likewise submitted its memorandum.

The Presiding Officer then directed that copies of the parties' submissions be furnished to all Senator-Judges and reminded the parties that oral arguments on the requests would be heard on Wednesday after the presentation of the Prosecution's witnesses.

MOTION OF SENATE PRESIDENT GATCHALIAN

Upon motion of Senate President Gatchalian, following consultation with Senator-Judge Cayetano (A), the Court approved, without objection, the issuance of a subpoena requiring NBI Director Matibag to appear on Monday, July 20, 2026, at 2:00 p.m., in view of his scheduled official engagement in Bangkok the following day.

Presiding Officer Escudero emphasized that, if necessary, the witness would remain until the completion of the cross-examination, redirect, and recross-examination.

INQUIRY OF THE PRESIDING OFFICER

Presiding Officer Escudero inquired about the remaining witnesses to be presented by the Prosecution, and said that based on his understanding, there are two remaining witnesses, on deck, namely Atty Lopez and Captain Bello who shall be presented in that order. Representative

Defensor confirmed that based on their earlier manifestation, they were supposed to present Atty. Lopez following the completion of Attorney Lotoc's testimony, including the cross-examination and, if necessary, his redirect and recross-examination.

ADJOURNMENT OF THE IMPEACHMENT TRIAL

The Presiding Officer declared the impeachment trial adjourned until two o'clock in the afternoon of Tuesday, July 14, 2026.

It was 8:12 p.m.

I hereby certify to the correctness of the foregoing.

Approved on July 14, 2026

Atty. RENATO N. BANTUG JR.

Clerk of Court

